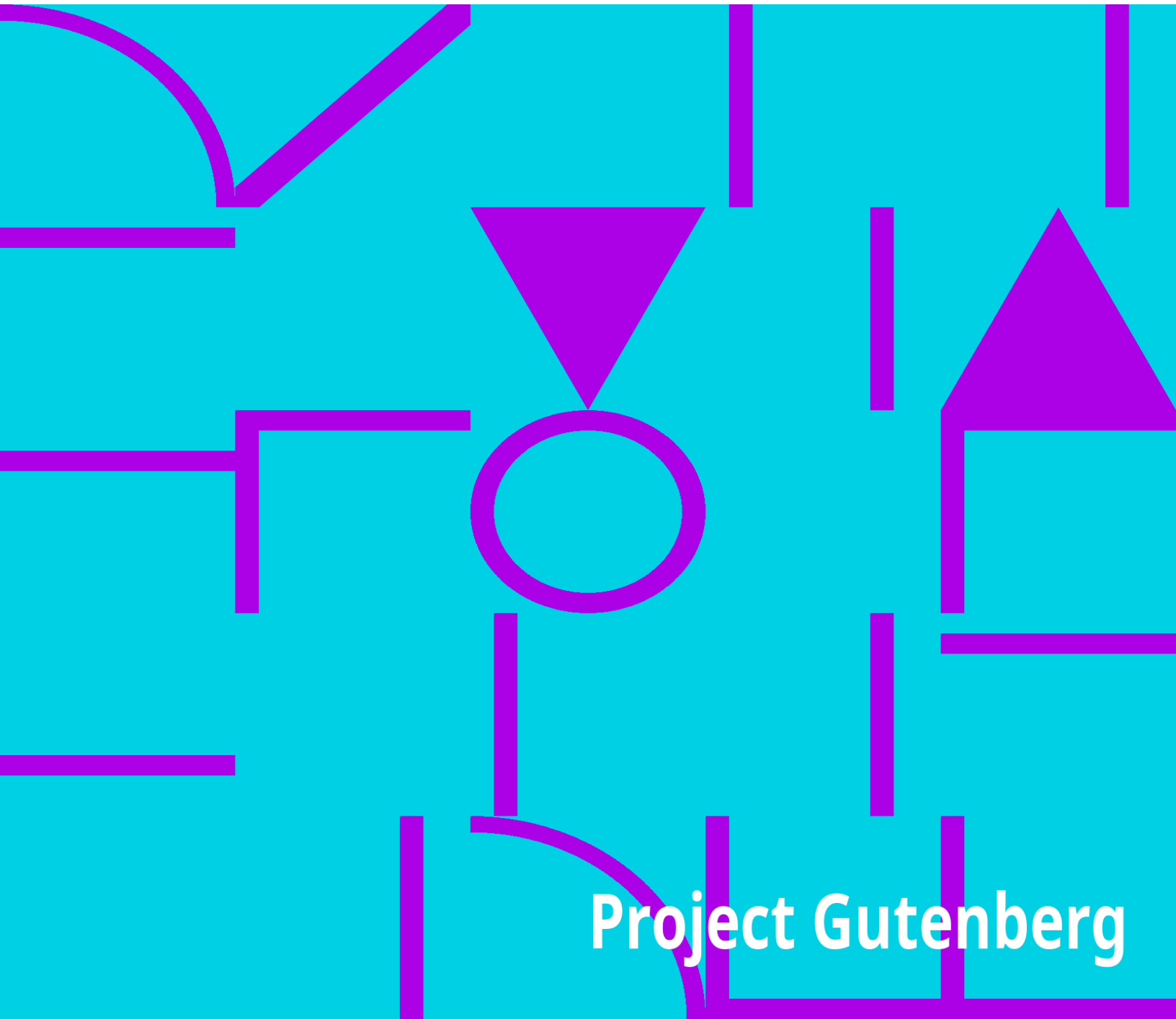


In the Shadow of the Hills

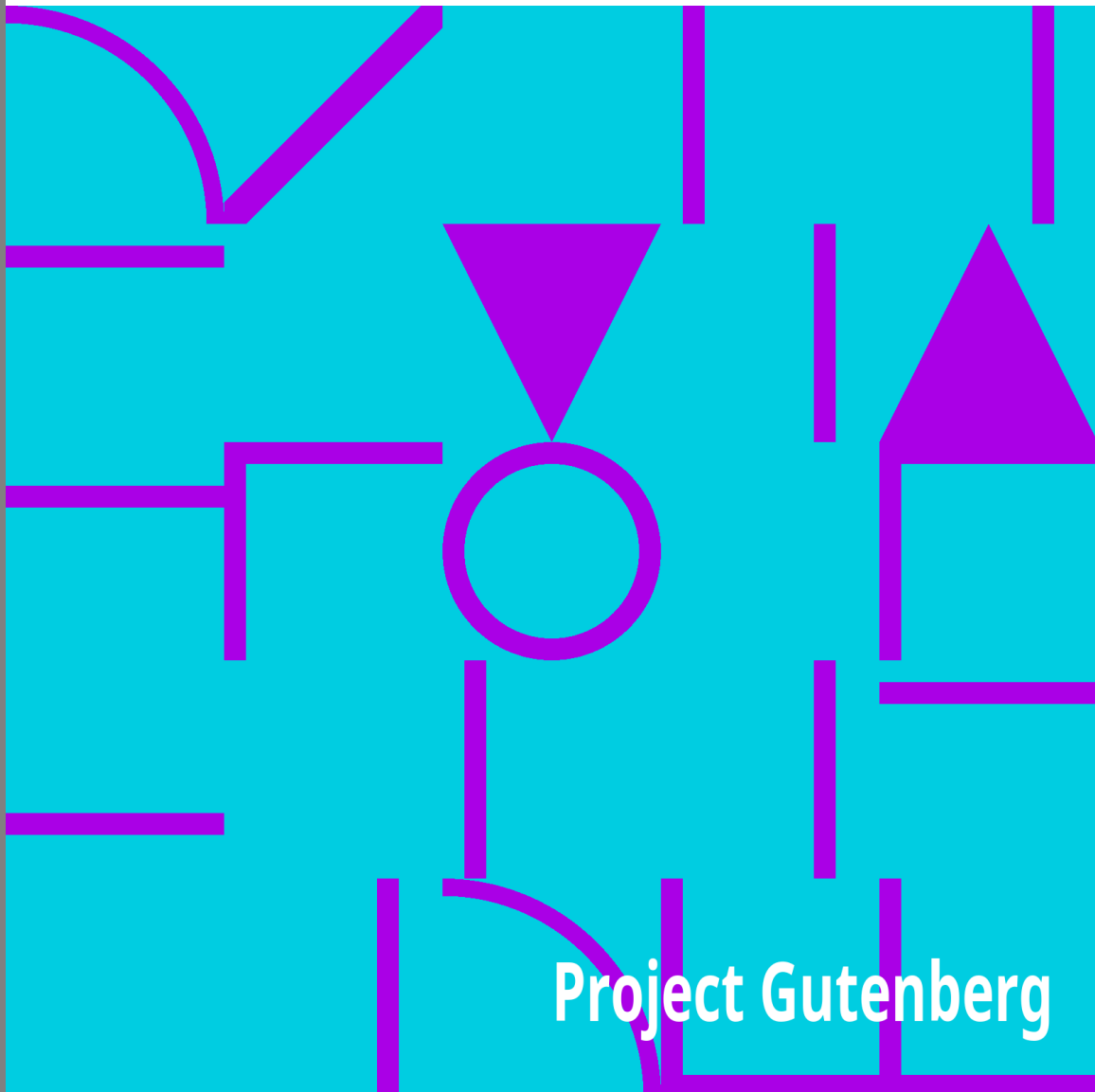
George C. Shedd



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In the Shadow of the Hills

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SHADOW OF THE HILLS ***

IN THE SHADOW OF THE HILLS

BY THE SAME AUTHOR

The Princess of Forge
The Isle of Strife
The Incurable Dukane
The Lady of Mystery House
The Invisible Enemy
In the Shadow of the Hills

IN THE SHADOW OF THE HILLS

BY
GEORGE C. SHEDD

AUTHOR OF
"THE LADY OF MYSTERY HOUSE," ETC.

NEW YORK
THE MACAULAY COMPANY

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IN THE SHADOW OF THE HILLS

IN THE SHADOW OF THE HILLS

CHAPTER I

IN A HOSTILE COUNTRY

Eastward out of the Torquilla Range the Burntwood River emerged from a gorge, flowing swift and turbulent during the spring months, shallow and murmurous the rest of the year, to pass through a basin formed by low mountains and break forth at last from a canyon and wind away over the mesa. In the canyon was being erected the huge reservoir dam which was in the future to store water for irrigating the broad acres spreading from its base.

The construction camp rested on one of the hillsides above the dam. And here one summer afternoon a man stepped forth from the long low tarpapered shack that served as headquarters, directing his gaze down the road across the mesa at a departing automobile. He was Steele Weir, the new chief, a tall, strong, tanned man of thirty-five, with lean smooth-shaven face, a straight heavy nose, mouth that by habit was set in grim lines, and heavy brows under which ruled cold, level, insistent, gray eyes. He had come suddenly, unexpectedly, returning with Magney, the engineer in charge, when the latter had been summoned east for a conference with the company's directors. He had replaced Magney, who was now whirling away to the nearest railway point, Bowenville, thirty-five miles distant.

He thoughtfully watched the car, a black spot in a haze of dust, speeding towards the New Mexican town of San Mateo, on the Burntwood River two miles below camp, its cluster of brown adobe houses showing indistinctly through the cottonwoods that embowered the place. For Magney he felt a certain amount of sympathy, for the engineer was leaving with a recognition of defeat; he was a likeable man, as Steele Weir had discovered during their brief acquaintance, a good theoretical engineer, but lacking in the prime quality of a successful chief—fighting spirit and an indomitable will.

Under Magney the work of construction had been inaugurated the previous summer, but progress had not been as rapid as desired; there had been

delays, labor difficulties, local opposition during the months since; and Weir had been chosen to succeed Magney. In his profession Weir had a reputation, built on relentless toil and sound ideas and daring achievements—a reputation enhanced by a character of mystery, for the man was unmarried, reserved, without intimates or even friends, locking his lips about his life, and welcoming and executing with grim indifference to risk engineering commissions of extreme hazard, on which account he had acquired the soubriquet of “Cold Steel” Weir.

Who first bestowed upon Weir that name is not known. But it was not misapplied. Cold steel he had proved himself to be a score of times in critical moments when other men would have broken: in pushing bridges over mountain chasms, in mine disasters, in strikes, in almost hopeless fights against bandits in Mexico. And it was this ability to handle difficulties that had brought about the decision of the directors of the company to put him in charge, as the man best qualified, at San Mateo, where the situation was unsatisfactory, costly, baffling.

Since his arrival a week before he had been consulting with Magney, studying maps and blue-prints, examining the work and analyzing general conditions. What had been accomplished had been well done; he had no criticism to offer on that score. It was the delay; the work was considerably behind schedule, which of course meant excessive cost; and this had undermined the spirit of the enterprise. In a dozen places, in a dozen ways, Magney, his predecessor, had been hampered, checked, defeated—and the main contributing cause was poor workmen, inefficient work. On that sore Weir’s skillful finger fell at once.

Standing there before the low office building he watched Magney depart. He, Steele Weir, had now taken over full charge of the camp and assumed full responsibility for the project’s failure or success. His eye passed beyond the distant automobile to the town of San Mateo—a new town for him, but a town like many he had seen in the southwest and in Mexico. And aside from its connection with the construction work, it held a fascinating interest, a profound interest for the man, the interest that any spot would which has at a distance cast a black and sinister shadow over one’s life. San Mateo—the name lay like a smoldering coal in his breast!

At length he turned and strode down the hillside to the dam site in the canyon. The time had come to shut his hand about the work and let his hold be felt. He located the superintendent directing the pouring of concrete in the frames of the dam core, Atkinson, a man of fifty with a stubby gray mustache, a wind-bitten face and a tall angular frame. When Weir joined him he was observing with speculative eyes the indolent movements of a group of Mexican laborers.

“Those *hombres* don’t appear to be breaking any speed records, I see,” Weir remarked, quietly.

“Humph,” Atkinson grunted.

“What do they think this is? A rest cure?”

The superintendent’s silence suddenly gave way.

“I ought to land on ’em with an ax-handle and put the fear of God in their lazy souls,” he exclaimed, bitterly.

“Well, do it.”

“What!”

“Do it.”

“Say, am I hearing right?” Atkinson swung fully about to stare at the new chief. Then he went on, “They’d quit to a man if made to do a man’s work; I supposed that Magney had told you that. A dozen times I’ve been ready to throw up my job from self-respect; I’m ashamed to boss work where men can loaf and I must keep my tongue between my teeth. I was considering just now the matter of leaving.”

“No need, Atkinson. From this time these men will work or get their dismissal.”

The other pushed his hat atilt and rubbed his head in surprise.

“What about that ‘company policy’ of hiring nothing but local labor to keep the community friendly which Magney was always kicking about?” he asked. “That was what made him sorer than anything else, and beat him. He said the directors had tied his hands by promising that no workmen should be imported. If they promised that, they sure bunkoed themselves. Friendly, huh.”

“The people haven’t been friendly, eh?” Weir said.

“Does it look like it when these Mexicans won’t work enough to earn their salt? They openly boast that we dare neither make them work nor fire them. They say Sorenson and his bunch will pull every man off the works if we lift a finger; and they all know about that fool promise of the directors. Friendly? Just about as friendly as a bunch of wildcats. This whole section, white men and Mexicans, are putting a knife into this project whenever they can. Do you think they want all that mesa fenced up and farmed? This is a range country; they propose to keep it range; they don’t want any more people coming here—farmers, store-keepers, and white people generally.”

“That’s always the case in a range country before it’s opened up,” Weir said. “But they have to swallow the pill.”

“Let me tell you something; they don’t intend to swallow it here. They figure on keeping this county just as it is, for only themselves and their cattle and woolies, and everybody else keep out. The few big sheep and cattle men, white and Mex, have their minds made up to that, and they’re the only ones who count; all the rest are poor Mexicans with nothing but fleas, children, goats and votes to keep Sorenson and his gang in control. They’ve set out to bust this company, or tire it out till it throws up the sponge. They’ve spiked Magney, and they’ll try to spike you next, and every manager who comes. That’s plain talk I’m giving you, Mr. Weir, but it’s fact; and if it doesn’t sound nice to your ears, you can have my resignation any minute.”

“I’ve been hoping to hear it. From now on drive this crowd of coffee-colored loafers. Put the lash on their backs.”

A gleam of unholy joy shone in Atkinson’s eyes as he heard Weir’s words.

“All right; that goes,” he said. “But I’m warning you that they’ll quit. You’ll see ’em stringing out of camp for home to-night, and those who hang out till to-morrow will leave then for sure. By to-morrow night the dam will be as quiet as a church week-days. They’ll not show up again, either, until you send word for them to come back—and then they’ll know you’ve surrendered. Magney tried it once, just once. And that’s why you found me chewing tobacco so lamb-like and saying nothing.”

“Turn your gat loose,” Weir said. And turning on his heel, he went back to headquarters.

Before Atkinson fired a volley at the unsuspecting workmen he crossed the canyon to where a cub engineer was peering through a transit. The superintendent had overheard a scrap of gossip among the staff one evening before Weir’s arrival when they were discussing the advent of the new chief.

“What was that name you fellows were saying Weir was called by?” he asked.

The boy straightened up.

“‘Cold Steel’—‘Cold Steel’ Weir. Anyway that’s what Fergueson says,” was the answer. “I never heard it before myself. His first name’s Steele, you know, and he looks cold enough to be ice when he’s asking questions about things, boring into a fellow with his eyes. But he’s up against a hard game here.”

“Maybe. But a man doesn’t get a name like that for just parting his hair nice,” Atkinson remarked. “He told me to stretch ’em”—a horny thumb jerked towards the workmen—“and you’ll see some real work hereabouts for the rest of the afternoon.”

“And to-morrow will be Sunday three days ahead of time.”

“Sure.”

“What then?”

“You know as much about that as I do. Make your own guess.” With which the speaker started off.

The morrow was “Sunday” with a vengeance. The majority of the laborers demanded their pay checks the minute work ceased at the end of the afternoon; Atkinson tightened orders, and by noon next day the last of the Mexicans had quit. The fires in the stationary engines were banked; the concrete mixers did not revolve; the conveyers were still; the dam site wore an air of abandonment. In headquarters the engineers worked over tracings or notes; and in the commissary store the half-dozen white foremen gathered to smoke and yarn. That was the extent of the activity.

Two days passed. After dinner Weir held a terse long-distance telephone conversation, the only incident of the second day; and it was overheard by no one. On the fourth day this was repeated. At dawn of the fifth he despatched all of the foremen, enginemen and engineers with wagons to Bowenville; and about the middle of the afternoon, accompanied by his assistant, Meyers, and Atkinson, he sped in the manager's car down the river for San Mateo, two miles below the camp.

Of the town Steele Weir had had but a glimpse as he flashed through on his way to the dam the morning of his arrival twelve days earlier. It had but a single main street, from which littered side streets and alleys ran off between mud walls of houses. The county court house sat among cottonwood trees in an open space. A few pretentious dwellings, homes¹⁸ of white men and the well-to-do Mexicans, arose among long low adobe structures that were as brown and characterless as the sun-dried bricks of which they were built. That was San Mateo.

Before doors and everywhere along the street workmen from the dam were idling. As Meyers brought the automobile to a stop before the court house, news of Weir's visit spread miraculously and Mexicans began to saunter forward to hear the engineer's words of surrender, couched in the form of a suave invitation to return to work. While the crowd gathered the three Americans sat quietly in the car. Then Steele Weir stood up.

"Who can speak for these men?" he demanded.

A lean Mexican with a long shiny black mustache and a thin neck protruding from a soiled linen collar elbowed a way to the front.

"I'm authorized to speak for them," he announced, disclosing his white teeth in an engaging smile.

"Are you one of the workmen?"

"No. I'm a lawyer and represent them in this controversy. By your favor therefore let us proceed. You've come to persuade them to resume work, and that is well. But there are conditions to be agreed upon before they return, which with your permission I shall state—first, no harsh driving of the workmen by foremen; second, full wages for the days they have been idle; third, no Sunday work."

The engineer regarded the speaker without change of countenance.

“Have you finished?” he asked.

“Yes. There are minor matters, but they can be adjusted later. These are the important points.”

“Very well, this is my reply: I, not the workmen, make the terms for work on this job—I, not these men, name the conditions on which they may return. And they are as follows: no pay for the idle days; if the workmen return they agree to work as ordered by superintendent and foremen; and last, they must start for the dam within an hour or not at all.”

Incredulity, amazement rested on the Mexican spokesman’s face as he listened to this curt rejoinder.

“Preposterous, impossible, absurd!” he exclaimed. Then revolving on his heels so as to face the crowd he swiftly repeated in Spanish what Weir had said.

An angry stir followed, murmurs, sullen looks, a number of oaths and jeers. The lawyer turned again to the engineer, spreading his hands in a wide gesture and lifting his brows with exaggerated significance.

“You see, Mr. Weir, your position is hopeless,” he remarked.

“Ask them if they definitely refuse.”

The lawyer put the question to the crowd. A chorus of shouts vehemently gave affirmation—a refusal immediate, disdainful, unanimous.

“We’ll now discuss the men’s terms,” the lawyer remarked politely and with an air of satisfaction.

“There’s nothing more to discuss. The matter is settled. They have refused; they need not seek work at the dam again. Start the car, Meyers.”

The roar of the machine drowned the indignant lawyer’s protest, the crowd hastened to give an opening and the conference was at an end.

“Drive to Vorse’s saloon; I want a look at Vorse,” said Weir. “I see the place a short way ahead.”

When they entered the long low adobe building an anemic-appearing Mexican standing at the far end of the bar languidly started forward to serve them, but a bald-headed, hawk-nosed man seated at a desk behind the cigar-

case laid aside his newspaper, arose and checked the other by a sidewise jerk of his head.

He received their orders for beer and lifted three dripping bottles from a tub of water at his feet. His eyes passed casually over Steele Weir's face, glanced away, then came back for a swift unblinking scrutiny. The eyes his own met were as hard, stony and inscrutable as his own. Finally Vorse, the saloon-keeper, turned his gaze towards the window and extracting a quill tooth-pick from a vest pocket began thoughtfully to pick his teeth.

"You're the new manager at the dam?" he asked presently, still considering the street through the window.

"I am."

"And your name is Weir?"

"You've got it right."

The questions ended there. The three men from camp slowly consumed their beer and exchanged indifferent remarks. At the end of five minutes the Mexican lawyer, clutching the arm of an elderly, gray-mustached man, entered the saloon.

They lined up at the bar nearby the others. The older of the pair regarded the trio shrewdly, laid a calf-bound book that he carried under his arm upon the counter and ordered "a little bourbon." When he had swallowed this, he addressed the men from the engineering camp.

"Which of you is Mr. Weir?"

"I am he," Steele replied.

"Mr. Martinez here has solicited me, Mr. Weir, to use my offices in explaining to you the workmen's point of view in the controversy that exists relative to the work. I'm Senator Gordon, a member of the state legislature, and I have no interest in the matter beyond seeing an amicable and just arrangement effected."

Steele Weir fixed his eyes on the speaker with an intentness, a cold penetration, that seemed to bore to the very recesses of his mind. In that look there was something questioning and something menacing.

“There’s no controversy and hence no need of your services. The men stopped work, refused to return, and now the case is closed.”

“My dear sir, let us talk it over,” said the Senator, bringing forth a pair of spectacles and setting the bow upon his nose.

The engineer’s visage failed to relax at this pacific proposal.

“I gave them their chance and they declined; they’ll have no other,” he stated. “Those men have browbeaten the company long enough. They refused, and as I anticipated that refusal I made preparations accordingly; a hundred and fifty white workmen arrived at Bowenville from Denver this morning and a hundred and fifty more will come to-morrow. They will do the work.”

The Senator’s lips quivered and the upper one lifted in a movement like a snarl, showing tobacco-stained teeth.

“The matter isn’t closed, understand that,” he snapped out. “We have the directors’ promise no outside labor shall be brought in here for this job, and the promise shall be kept.”

“The new men go to work in the morning,” Weir said.

“You’ll repent of this action, young man, you’ll repent of it.” The Senator seized the whisky bottle and angrily poured himself a second drink. “You’ll repent of it as sure as your name is—is—whatever it is.”

The engineer took a step nearer the older man. His face now was as hard as granite.

“Weir is my name,” he said. “Did you ever hear it before?”

“Weir—Weir?” came in a questioning mutter.

“Yes, Weir.”

The speaker’s eyes held the Senator’s in savage leash, and a slight tremble presently began to shake the old man. Atkinson and Meyers and even the volatile Mexican lawyer, Martinez, remained unstirring, for in the situation they suddenly sensed something beyond their ken, some current of deep unknown forces, some play of fierce, obscure and fateful passion.

A shadow of gray stole over Gordon’s lineaments.

“You are—are the son of—” came gasping forth.

“I am. His son.”

“And—and—”

“And I know what happened thirty years ago in this selfsame room!”

The whisky that the Senator had poured into his glass suddenly slopped over his fingers; his figure all at once appeared more aged, hollow, bent. Without further word, with his hand still shaking, he set the glass on the bar, mechanically picked up the law book and walked feebly towards the door.

Steele Weir turned his gaze on the saloon-keeper, Vorse. The man’s right hand was under the bar and he seemed to be awaiting the engineer’s next move, taut, tight-lipped, malignant.

“That was for you too, Vorse,” was flung at him. “One Weir went out of here, but another has returned.”

And he led his companions away.

CHAPTER II

A COMEDY—AND SOMETHING ELSE

Towards noon one day a week later Steele Weir, headed for Bowenville in his car, had gained Chico Creek, half way between camp and San Mateo, when he perceived that another machine blocked the ford. About the wheels of the stalled car the shallow water rippled briskly, four or five inches deep; entirely deep enough, by all appearances, to keep marooned in the runabout the girl sitting disconsolately at the wheel.

She was a very attractive-looking girl, Steele noted casually as he brought his own car to a halt and sprang out to join her, wading the water with his laced boots. As he approached he perceived that she had a slender well-rounded figure, fine-spun brown hair under her hat brim, clear brown eyes and the pink of peach blossoms in her soft smooth cheeks.

But her look of relief vanished when she distinguished his face and her shoulders squared themselves.

“Has your engine stopped?” he inquired.

“Yes.”

“I’ll look into the hood.”

“I prefer that you would not.”

For an instant surprise marked his countenance.

“You mean that you desire to remain here?” he asked.

“I don’t wish to remain here, but I choose that in preference to your aid.”

The man, who had bent forward to lift one cover of the engine, straightened up at that. He considered her intently and in silence for a time, marking her heightened color, the haughty poise of her head, the firm set of her lips.

“To my knowledge, I never saw you before in my life,” he remarked at last.

“What, may I ask, is your particular reason for declining my services?”

She was dumb for a little, while she tucked back a stray tendril of hair. The act was performed with the left hand; and Weir's eyes, which seldom missed anything, observed a diamond flash on the third finger.

"Well, I'd choose not to explain," said she, afterwards, "but if you insist——"

"I don't insist, I merely request ... your highness."

A flash of anger shot from her eyes at this irony.

"Don't think I'm afraid to tell you!" she cried. "It's because you're the manager of the construction camp; and if you've never seen me before, I've at least had you pointed out to me. I wish no assistance from the man who turns off his poor workmen without excuse or warning, and brings want and trouble upon the community. It was like striking them in the face. And then you break your promise not to bring in other workmen!"

As she had said, she did not lack courage. Her words gushed forth in a torrent, as if an expression of pent up and outraged justice, disclosing a fervent sympathy and a fine zeal—and, likewise, a fine ignorance of the facts.

"Well, why don't you say something?" she added, when he gave no indication of replying.

Steele could have smiled at this feminine view of the matter that violent assertions required affirmations or denials.

"What am I supposed to say?" he asked.

Apparently that exhausted her patience.

"You'll please molest me no longer," she stated, icily.

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"Very well."

He raised the hood and inspected the engine. During his attempts to start it, she sat nonchalantly humming an air and gazing at the mountains as if her mind were a thousand miles away—which it was not.

"Something wrong; it will have to be hauled in," said he finally.

No reply. Steele returned to his own car and descending into the creek bed worked his way around her. When he was on the far bank, he rejoined her

again, carrying a coil of rope. One end of this he fastened securely to the rear axle of her runabout.

“What are you going to do, sir?” she demanded, whirling about on her seat and glaring angrily.

“Drag you out.”

“You’ll do nothing of the kind!”

“Oh, yes,” was his calm response.

“Against my wishes, sir?”

“Certainly.”

“This is abominable!”

“Perhaps.”

“I’ll put on the brakes.” And put them on she did, with a savage jerk.

But nevertheless Weir’s powerful machine drew her car slowly up out of the creek upon the road, where he forced it about until it pointed towards San Mateo. Then he retied the rope on the front axle.

“Now for town,” said he.

“Why did you haul me out of there, I demand to know?”

“Why? Because you were a public obstruction blocking traffic. If you had remained there long enough you would have become a public nuisance; and it’s the duty of every citizen to abate nuisances. No one would call you a nuisance, of course,—not to your face, at any rate. But travelers might have felt some annoyance if compelled to drive around you; they might even have had you arrested when they learned you were acting out of willful stubbornness.”

In a sort of incredulous wonder, of charmed horror, the girl heard herself thus unfeelingly described.

“You—you barbarian!” she cried.

“Ready? We’re off for town now.”

“I’ll run my car in the ditch and wreck it if you so much as pull it another inch!”

“I don’t like to be frustrated in my generous acts; they are so few, according to common report. Well, we’ll leave the car, but it must be drawn off the road.”

When this was accomplished, Weir replaced the rope in his machine. Then he returned to her.

“What now? Do you intend to sit here in the hot sunshine, to say nothing of missing your dinner?”

“That doesn’t concern you.”

Weir shook his head gravely.

“You must be saved from your own folly,” said he.

Before she had realized what was happening, he had opened the door of the runabout, swung her out upon the ground and was marching her towards his own machine. Stupefaction at this quick, atrocious deed left her an automaton; and before she had fully regained her control they were speeding towards San Mateo, she at his side.

“This is outrageous!” she gasped.

Steele Weir did not speak until they entered town.

“Where is your home?” he asked.

“Turn to the right at the end of the street.”

It was before a house of modern structure, banked with a bewildering number of flowers and shaded by trees, that he halted the car. He alighted, bared his head, assisted her to descend, bowed and then without a word drove away, leaving her to stare after him with a baffling mixture of feelings and the single indignant statement, “And he didn’t even wait long enough for me to thank him!” Nor did her perplexity lessen when her car was left before the door during the afternoon by one of the camp mechanics to whom Weir had telephoned from San Mateo and who had put it in running order.

Weir himself proceeded to Bowenville, where matters regarding shipments and the unloading of machinery engaged him the rest of the day. Into his mind, however, there floated at moments the image of the girl’s face, banish it as he would. He had learned her name by asking who was the owner of

the house where she had alighted, information necessary to direct the mechanic as to the delivery of the stalled car. Hosmer it was; and the residence was that of Dr. Hosmer. Presumably she was his daughter. And what a vivid, charming, never-surrender enemy! Lucky the chap who had won this high-spirited girl.

The memory of her eyes and her personality was still with him when he ate his supper that evening in a restaurant in Bowenville. His own past in relation to the other sex had been starred by no love affair, not even by episodes of a sentimental nature; the character of his work had for long periods kept him away from women's society, but further than this there was the shadow upon his life, the shadow of mystery that obliged him to follow a solitary course. He considered himself unfree to seek friendships or favors among women. By every demand of honor he was bound to solicit no girl's trust or affection until that mystery was cleared and his father's innocence established. It was for this reason that he seemed even to himself to grow more hard, more harsh, more silent and aloof, until at last he had come to believe that no fair face had the power to arouse his interest or to quicken his pulse.

But now, this girl he had met at the ford!

Long-stifled emotions struggled in his breast. Sleeping desires awoke. His spirit swelled like a caged thing within the shell of years of indurated habit. A strange restlessness pervaded him. He had a fierce passion somehow to rip in pieces the gray drab pattern of his commonplace life.

Perhaps it was this revolt against the fetters of fate that caused him to welcome the chance for action that presently was offered. The restaurant was of an ordinary type, with a lunch counter at one side, a row of tables down the middle and half a dozen booths along the wall offering some degree of privacy. In one of these Steele Weir was smoking a cigar and finishing his coffee before making his ride back to camp. From the booth adjoining he had for some time been hearing scraps of conversation; now all at once the voices rose in protest and in answering explanation, in perplexed appeal and earnest assurance.

Weir's own reflections ceased. His head turned and remained fixed to listen, while the cigar grew cold between his fingers. For ten minutes or so his attitude of concentrated harkening to the two voices, a girl's and a man's,

remained unchanged. Little by little he was piecing out the thread of the confidential dialogue—and of the little drama being enacted in the booth.

His brows became lowering as he gathered its significance, his lips drew together in a tight thin line. He did not move when he heard the man push back his chair to leave the place, nor alter his position until there came the sound of the door closing at the front of the restaurant. Then he reached for his hat, stood up and went lightly around into the other booth, where he pulled the green calico curtain across the opening.

A girl of about seventeen, of plump clean prettiness, still sat at the table, which was littered with dishes. The cheap finery of her hat and dress showed a pathetic attempt to increase her natural comeliness. At this minute her face showed amazement and a hint of apprehension.

“What are you coming in here for?” she demanded.

“I want to talk to you for a little while,” Weir replied, seating himself. “You will please listen. I’ve overheard enough of your talk to catch its drift; you came here to be married, but now this man wants to induce you to go to Los Angeles first.”

“That isn’t any of your business,” the girl flashed back, going white and red by turns.

“I’m making it mine, however. You live up on Terry Creek, by what I heard; that’s not far from my camp. I’m manager at the dam and my name’s Weir.”

At this statement the girl shrank back, beginning to bite the hem of her handkerchief nervously and gazing at him with terrified eyes.

“I’m here to help you, not harm you. You’ve run away from home to-day to marry this fellow. Did he promise to marry you if you came to Bowenville?”

“Yes.”

“And now he wants you to go with him to Los Angeles first, promising to marry you there?”

The girl hesitated, with a wavering look.

“Yes.”

“He gives you excuses, of course. But they don’t satisfy your mind, do they? They don’t satisfy mine, at any rate. It’s the old trick. Suppose when you reached the coast he didn’t marry you after all and put you off with more promises and after a week or two abandoned you?”

“Oh, he wouldn’t do that!” she cried, with a gulp.

“That’s just what he is planning. He didn’t meet you here until after dark, I judge. You’ll both go to the train separately—I overheard that part. Afterwards he could return from the coast and deny that he had ever had anything to do with you, and it would simply be your word against his. And which would people hereabouts believe, tell me that, which would they believe, yours or his, after you had gone wrong?”

The girl sat frozen. Then suddenly she began to cry, softly and with jerks of her shoulders. Weir reached out and patted her arm.

“What’s your name?” he asked.

“Mary—Mary Johnson.”

“Mary, I’m interfering in your affairs only because I know what men will do. You must take no chances. If this fellow is really anxious to marry you, he’ll do it here in Bowenville.”

After a few sobs she wiped her eyes.

“He said he didn’t dare get the license in San Mateo, or his folks would have stopped our marriage.”

“Then you should stay here to-night, go to the next county seat and be married to-morrow. His parents are bound to learn about it once you’re married. A few days more or less make no difference. And though I should return to my work, I’ll just stay over a day and take you in my car to-morrow to see that you’re married straight and proper. Why go clear to Los Angeles?”

“He said it would be our honeymoon—and—and I had never been away from here.”

“What’s his name?”

She hesitated in uncertainty whether or not she should answer.

“Ed Sorenson,” came at last from her lips.

Steele Weir slowly thrust his head forward, fixing her with burning eyes.

“Son of the big cattleman?” he demanded.

“Yes, sir.”

“And you love him?”

“Yes, oh, yes!”

Weir sat back in his seat, lighted a cigarette and stared past her head at the opposite partition. The evil strain of the father had been continued in the son and was working here to seduce this simple, ignorant girl, incited by her physical freshness and the expectation that she should be easy prey.

“Well, I doubt if he loves you,” he said, presently.

“He does, he does!”

“If he really does above everything else in the world, he’ll be willing to marry you openly, no matter what his father may say or do. That’s the test, Mary. If he’s in earnest, he’ll agree at once to go with us to the next county seat to-morrow and be married there by a minister. Isn’t that true? Answer me that squarely; isn’t it true?”

“Yes, sir.”

“Then by that we’ll decide. If he agrees, well and good; if he refuses, that will show him up—show he never had any intention of marrying you. I’m a stranger to you, but I’m your friend. And you’re not going to Los Angeles unmarried!”

The last words were uttered in a level menacing tone that caused Mary Johnson to shiver. To her, reared in the humble adobe house on her father’s little ranch on Terry Creek, a man who could manage the great irrigation project seemed a figure out of her ken, a vast form working against the sky. His statements were not to be disputed, whatever she might think.

“Yes, sir,” she said, just above a whisper.

“All right. Now we’ll wait for him. He was coming back for you, wasn’t he?”

“Yes. I was to stay at the hotel till train time.”

“Is this your grip?”

Weir jerked a thumb towards a worn canvas “telescope” fastened with a single shawl strap, resting in the corner of the booth.

“It’s mine. Yes, sir.”

“How old is Ed Sorenson,” he asked, after a pause.

“About thirty, maybe.”

“How old are you?”

“Seventeen next month.”

“But sixteen yet this month.”

“Yes, sir.”

He said nothing more. As the minutes passed, her timorous gaze continued steadfastly on the stern countenance before her. She dully expected something terrible to happen when Ed Sorenson appeared, for she knew Ed would be angry; but she had been powerless to prevent the intrusion of this terrible stranger.

Fear, in truth, a fear that left her heart cold, was her feeling as she contemplated Weir. Yet under that, was there not something else? A sense of safety, of comforting assurance of protection?

“You—you won’t hurt Ed if he won’t go with us?” she asked, in a low voice. “If he gets mad and won’t marry me here, I mean?”

The man’s eyes came round to hers.

“I’ll just break him in two, nothing more, Mary,” was the calm answer.

CHAPTER III

THE ENEMY'S SPAWN

The curtain to the booth was flung back.

"I've the train tickets; come along to the hotel—" exclaimed the man who quickly entered. But the words died in his mouth at sight of Weir sitting in the place he had vacated.

He was over average height, of strong fleshy build, with a small blonde mustache on his upper lip. Under his eyes little pouches had already begun to form; his mouth was full and sensual; but he still retained an air of liveliness, of carelessness and agility, that might at first sight seem the spontaneity of youth. He wore a brown suit, a gray flannel shirt and Stetson hat—the common apparel of the country.

"Who the devil are you? And what are you butting in here for?" he exclaimed, with a vicious spark showing in his pale blue eyes. At the same time he clapped a hand on Weir's shoulder, closing it in a hard grasp.

Instantly Weir struck the hand off with his fist.

"Keep your dirty flippers to yourself," he said, rising.

The blood faded from the other's countenance, leaving it white with rage.

"Get out of this booth, or I'll throw you out."

It was Weir's turn to act. Like a flash he caught Sorenson's elbow, jerked him forward, spun him about and dropped him upon the chair.

"Sit there, you cradle-robber, until I'm through with you," he commanded.²⁵ "And if you don't want everybody in this restaurant to know about your business with this girl, you'll lower your voice when you talk."

Sorenson shot an uneasy glance towards the curtain and his wrath became not less furious but better controlled. Clearly public attention was the last

thing he desired in this affair. He leaned back, staring at Steele Weir insolently, and produced a cigarette, at which he began to puff.

“Mary, get ready. We’ll be going in a minute,” said he.

“No, you’ll not, Sorenson. I’ve taken a hand in your game. This girl says you’re going to marry her, is that right?” The other rolled his eyes upward and began to whistle a jig tune softly. “Well, this is the plan she and I’ve made. She’ll remain at the hotel to-night—as will you and I—and to-morrow we’ll drive to another county seat in my car and you’ll secure a licence there. Then you’ll go to a minister’s, where I’ll act as a witness, and the ceremony will be performed. Afterwards the pair of you can proceed to Los Angeles, or elsewhere as you please, on your wedding journey.”

“You’re quite a little planner, aren’t you?” the other jeered.

“That’s the arrangement if you agree.”

“I don’t agree.”

Mary Johnson, in whose eyes a light of hope had dawned during Weir’s low-toned statement, began nervously to bite her lip.

“Won’t you do it, Ed?” she asked, timidly.

“We’ll do as I planned, or nothing,” he stated. Then with sudden spite he continued, “You’re responsible for this mixup. What did you let this fellow in here for while I was gone? Didn’t you have sense enough to keep your mouth shut?”

Steele halted him by a gesture.

“Don’t begin abusing her; you’re not married to her yet. I overheard your talk and guessed the low-lived, scoundrelly trick you proposed to play on her.”

“You damned eavesdropper——”

“Sure, eavesdropper is right,” Weir interrupted, coolly. “So I just stepped in here from my booth next door to discuss the situation with her; you can’t mislead an innocent girl like her with the intention of shaking her when you get her into a city, not if I know about it and am around. If you sincerely intend to marry her, and will do so to-morrow in my presence, then I’ll withdraw. Afterwards I mean, of course.”

Sorenson arose.

“Come, Mary. Stand aside, you!”

“She doesn’t go with you,” the engineer stated.

For a moment the men’s eyes locked, those of one full of blue fire and hatred, those of the other quiet as pieces of flint.

“And she shall keep with me while I telephone to your father that you brought her here under promise of marriage, a girl of sixteen, without her own parents’ consent, and now refuse to marry her,” Steele added.

A sneer twisted the other man’s mouth.

“My father happens to be in the east, where he’s been for a month,” he mocked. “If he were here, he wouldn’t believe you; he’d know you were a liar. He knows I’m engaged to marry——” Bite off the words as he tried, they had escaped.

“Ah, that’s the way of it!” Weir remarked with a silky smoothness. “You expect to marry some other girl—and have no intention whatever³⁷ of marrying Mary here.”

“To hell with you and your opinions!”

“First, you coax her to Bowenville by a promise, then you persuade her by more promises to go to Los Angeles,” the engineer proceeded steadily, “and there you would betray and abandon her to a life on the streets, like the yellow cur you are.”

Sorenson snapped his fingers and moved round to the girl’s side.

“Pay no attention to him,” he addressed her. “He’s only a crazy fool.”

But she drew back against the wall, staring at him with a strained, searching regard.

“Will you marry me to-morrow as he asks?” she questioned anxiously.

“No. I explained the reason why once. Come on; let’s get away from him. Then I’ll make everything clear and satisfactory to you.”

For a moment she stood wavering, picking at her handkerchief, her face pale and unhappy, questioning his countenance. Finally she turned to look at Steele Weir, standing silently by.

“You never said you were engaged to another girl; you told me I was the only one you loved,” she muttered in a choked voice. “But I see now you won’t marry me. You wish me to go with you—but not to marry. I’m going away—away anywhere. By myself! Where I’ll never see any one!” Burying her face in her hands, she shook with sobs.

“This is what comes from your putting an oar in,” said Sorenson, lifting his fist in a burst of fury to strike Weir.

The latter at once smote him across the mouth with open palm at the vile epithet that followed. Sorenson staggered, then lunged forward, tugging at something in his hip-pocket, while the table and dishes went over in a crash.

Before he could draw the weapon Steele’s fingers shot forth and seized his wrist; his other hand closed about Sorenson’s throat in an iron grasp. Slowly under that powerful grip the younger man’s struggles ceased, his eyes dilated, his knees yielded and gave way. The revolver was wrenched from his numbed hold. His eyeballs seemed afire; his breast heaved in violent spasms for the denied breath; and his heart appeared about to burst.

“You miserable skunk!” Weir said, barely moving his mouth. “I ought to choke the life out of you.” Then he released his hold. “I’ll keep this gun—and use it if you ever try to pull another on me! Now, make tracks. Remember, too, to pay your bill as you go out.”

When Sorenson had straightened his coat, giving Weir a malignant look during the process, he departed. His air of disdainful insolence had quite evaporated, but that he considered the action between them only begun was plain, though he spoke not a word. Weir, however, heard him give a quieting explanation to the waiter hovering outside, who had been drawn by the crash of dishes.

“Thought a fight was going on,” the aproned dispenser of food said to Steele when he and the girl emerged.

“Just an accident. Nothing broken, I imagine,” was the response.

“You couldn’t break those dishes with a hammer; they’re made for rough work.”

“If there’s any damage, this may cover it.” And Steele tossed the fellow a dollar.

Outside the restaurant he slipped his hand inside Mary Johnson's arm and led her along the street. With him he had brought the old strapped grip.

"Where you taking me?" she asked, in a worried quaver.

"Home, Mary."

"Oh, I'm afraid to go home."

"Are you afraid of your own father and mother? They're the ones to trust first of all."

"But when father—mother is dead—sees the telescope, he'll want to know where I've been. He doesn't know I have it. I told him I might stay with a girl at San Mateo over night, and then sneaked it out."

"The best thing is to tell him all about this occurrence."

"Oh, I can't."

"Then I shall. Leave that part to me."

And though her heart was filled with fresh alarms and fears at the prospect, there seemed nothing else to do. She longed to flee, to hide in some dark hole, to cover her shame from her father and the world, but in the hands of this determined man she felt herself powerless. What he willed, she dumbly did.

Terry Creek flowed out of the mountains four miles north of San Mateo, an insignificant stream entering the Burntwood halfway down to Bowenville. The Johnson ranch house was a mile up the canyon, where the rocky walls expanded into a grassy park of no great area. They reached the girl's home about half-past nine that night.

For two hours Weir remained talking with the father, describing the affair at Bowenville, fending off his first bitter anger at the girl and gradually persuading him to see that Mary had been deceived, lured away on hollow promises and was guiltless of all except failing to take him into her confidence. At last peace was made. Mary wept for a time, and was patted on the head by her rough, bearded father, who exclaimed, "There, there, don't cry. You're safe back again; we'll just forget it."

Outside of the house, however, where he had accompanied Weir to his car, he said with an oath:

“But I’ll not forget Ed Sorenson, if I go to hell for it. My little girl!”

“She’s half a child yet, that’s the worse of his offense,” Steele replied, savagely.

“Mary said you choked him.”

“Some. Not enough.”

“I’ll not forget him—or you, Mr. Weir.”

Steele mounted into his machine. He thoughtfully studied the rancher’s bearded, weather-tanned face, illuminated by the moonlight.

“At present I’d say nothing about this matter to any one. Later on you may be able to use it in squaring accounts,” the engineer advised.

“I hope so,” was the answer, with a bitter note. “But talking would only hurt Mary, not Ed Sorenson. Whatever the Sorensens do is all right, you know, because they’re rich. The daughter of a poor man like me would get all the black end of the gossip; and I can’t lift a finger, that’s what grinds me, unless I go out and shoot him, then hang for it. For the bank’s got a mortgage on my little bunch of stock, and on my ranch here, and Sorenson, of course, is the bank. Gordon and Vorse and a few others are in it too, but he’s the bull of the herd. If I opened my mouth about his son, I’d be kicked off of Terry Creek, lock, stock and barrel. That’s the way Sorenson keeps all of us poor devils, white and Mexican, eating out of his hand. I’ve just been poor since I came here a boy; the gang in San Mateo won’t let anybody but themselves have a chance. And I reckon old man Sorenson wouldn’t care much if his boy had ruined my girl. Cuss him a little, maybe; that would be all. But I won’t forget the whelp. Some day my chance will come to play even.” “Sure; if one just keeps quiet and waits,” Steele agreed. “Well, I must hit the trail. If you want work any time, come over to the dam; we can always use a man with a team.” Johnson nodded. “After haying is done, maybe. And remember, I’m much obliged to you for looking after my little girl. I won’t forget that, either.” He reached up diffidently and shook hands with the engineer. Weir’s grip was sympathetic and sincere.

CHAPTER IV

A SECRET CONFERENCE

On a certain afternoon Felipe Martinez, the lean and restless attorney who had acted as the Mexican workmen's mouthpiece, observed through the broad plate-glass window of the San Mateo Cattle Company's office an incident that greatly interested him. For the moment he forgot the resentment kindled by Sorenson's abrupt refusal and brutal words when he asked for the nomination for county attorney. The election was in the autumn; the nomination was equivalent to election; and Felipe considered that he had too long been kept apart from that particular spoil.

Martinez had once had a slight difference with the banker, and now outrageously Sorenson had recalled it. He had stated that Martinez should hold no political office; he gave offices only to men who did exactly as he advised; his exact words were that the Mexican was "tricky and no good." And picking up his hat Sorenson who had that day returned home from the east went out of the bank, leaving Martinez to stare out of the window and meditatively twist a point of his silky black mustache.

It was before the window that there occurred the meeting between Sorenson and the manager of the dam. Martinez perceived the two men glance at each other and pass, but after a step or two both men halted. As if worked by a single wire, they slowly swung about for a second look. The Mexican's nimble brain calculated that they could not have previously met and in consequence their behavior bespoke something out of the ordinary.

The pair stood exactly where they had turned, three or four paces apart, he noted. The Mexican's mind palpitated with a slight thrill of excitement. The manner of each of the men was that of a fighting animal looking over another animal of the same sort: neither uttering a word, nor stirring a finger, nor yielding a particle in his fixed unwinking gaze. Martinez could almost feel the exchanged challenge, the cold antagonism, the hostile curiosity, the matching of wills, the instant hate, between the men.

Though they had not met before, to be sure, nevertheless they were enemies. Was it because of the discharge of the workmen? Then Martinez' mind flashed back to the scene in Vorse's saloon when Gordon had showed such sudden emotion at the engineer's name and his enigmatical reference to some event in the past. That was it! Something which had occurred thirty years ago, probably something crooked. Men committed deeds in those early days that they would now like to forget. He, Martinez, would look into the matter.

Sorenson passed out of sight, and Weir likewise proceeded on his way. Thereupon the lawyer sauntered over to the court house, where presently he became engrossed in a pile of tomes in the register's office. As examining records is a part of a lawyer's regular work, it never excites curiosity or arouses suspicion.

That same evening Martinez perceived Vorse enter Sorenson's office. Vorse, he recalled, had been included in the engineer's threatening remarks to Gordon. Shortly thereafter Gordon himself ambled along the street and passed through the door. Last of all, Burkhardt, a short, fleshy, bearded man, went into the building. The vultures of San Mateo, as he secretly called them, had flocked together for conference. Presently Martinez strolled by the office, outwardly displaying no interest in the structure but furtively seeking to catch a glimpse of the interior through a crack of the drawn shade. But in this he was unsuccessful.

Of one thing he was certain, however. His prolonged examination of the county records had revealed an old bill of sale of a ranch and several herds of cattle from one Joseph Weir to Sorenson, Vorse, Gordon and Burkhardt. He had placed his finger on the link connecting the engineer with these men, the entire four, as this old bill of sale thus recorded showed the intimate though unexpressed partnership of the men, which was common knowledge over the country; and intuition told him also that this private assembly of the quartette quickly on Sorenson's return home had its inspiration in the new manager of the dam.

Martinez determined to continue his investigations. Events might yet prove that it would have been much better for the cattleman to have given him the political nomination. Truly, it was possible. In any case, it would do no harm to have "something on" Sorenson and the others, these rulers of San

Mateo. And there was the opposite side of the affair—Weir's side; so it looked as if there might be profit either way.

The four men sitting in the railed-off space in the San Mateo Cattle Company's office constituted the cattle company. Moreover, they comprised the financial, political and general power of this remote section of New Mexico. In face, manner, garb, they were dissimilar. Vorse, clothed in gray, was hawk-nosed and impassive; and though now, like his companions, wealthy beyond simple needs he nevertheless continued the operation of his saloon that had been a landmark in San Mateo for forty years. Burkhardt was rough-featured, rough-tongued, choleric, and coatless: typically the burly, uncurried, uncouth stock man, whose commonest words were oaths or curses and whose way with obstinate cattle or men was the way of the club or the fist. Gordon was the wily, cautious, unscrupulous politician; he had represented San Mateo in the legislature for years, both during the Territorial period and since New Mexico had become a state, and was not unknown in other parts of the southwest; but he was "Judge" only by courtesy, the title most frequently given him, never having been admitted to the bar or having practiced, and engaged himself ostensibly in the insurance and real estate business. Like the others, his share of the large cattle, sheep and land holdings of the group made him independent. Sorenson, the last of the four and in reality the leader because of a greater breadth of vision and a natural capacity for business, was dressed in a tailored suit of greenish plaid—a man with bushy eyebrows, a long fleshy nose, predatory eyes, a heavy cat-fish mouth and a great, barrel-like body that reared two or three inches over six feet when he stood on his feet. But one thing they had in common, in addition to the gray hair of age, and that was a joint liability for the past. For years they had believed that liability extinguished through the operation of time. They had considered as closed and sealed the account of early secret, lawless acts by which they had acquired wealth and a grip on the community. They were now law-observing members of society; they controlled even if they sometimes failed to possess the goodwill of the county—and they were not men to measure position by friendships; their councils determined how much or how little other men should own and in local politics their fingers moved the puppets that served their will.

With the entrance here of the powerful group of financiers who were constructing the irrigation project they recognized the threat to their old-

time supremacy. Cattle and sheep interests would succumb to farming; a swarm of new, independent settlers would arrive like locusts; and their leadership would eventually be challenged if not ended. New towns would spring up. New money would flow in to dispute their financial mastery. New leaders would arise to assail their political dominion. And against the prospect of all this they had initiated a secret warfare, endeavoring by stealth to ruin the irrigation company at the beginning and nip the danger in the bud.

Now it had been revealed all at once that they had not only a general and impersonal enemy in the form of the company, but a specific one in the form of a man, its manager. Out of nowhere he had emerged, out of thirty years' silence, a sinister figure who tapped with significant finger the book of their secret past while his eyes steadfastly demanded a reckoning. Did he know all, or nothing? Knowing, did he deliberately leave them in doubt in order to shatter their confidence?

At least one of the four had been badly shaken on learning Weir's identity, and all now were uneasy. It was as if Fate after a long silence was about to open the sealed record.

"Perhaps you were just imagining things, Judge," Sorenson was saying.

Senator Gordon moistened his lips and tugged nervously at his gray mustache.

"No, no," he exclaimed. "Just ask Vorse. The man said his name was Weir and that he was the son of Joe Weir. Then—then——"

"Well?" Sorenson demanded, frowning at the other's visible trepidation.

"Weir added, 'And I know what happened thirty years ago in this selfsame room.' Those were his very words. Isn't that true, Vorse?"

"Yes."

"They could mean only one thing," said Gordon.

"When the Judge went out he said to me," Vorse stated, "'That was for you too.' I had my hand on my gun under the counter as he said it, ready if he made a move. He knew what I had there, but it didn't faze him. He's a better man than Joe Weir ever was, I want to remark, and different; he has nerve and a bad eye. He knows something, lay your bets on that."

“How much? How much? If we only knew how much!” Judge Gordon vouchsafed, testily.

“How would he know anything? Joe Weir didn’t know, so how can this fellow know? Don’t get scared at a shadow.” It was the bearded, rough-tongued Burkhardt who spoke, concluding his words with a blasphemous oath.

“There’s the Mexican who saw what happened—and that boy who looked in at the back door,” Gordon asserted. “We just caught sight of him and couldn’t make out his face against the light. Then he had skipped when we ran there. We never did learn who he was.”

“Do you think he remembers?” Sorenson said, scornfully. “He may be dead. He may be on the other side of the world. Just some kid who happened to drift by at the minute and look in, and there’s not one chance in a million he’s anywhere around these parts yet. He would have blabbed long ago to some one if he had been; don’t figure him in, he’s lost.”

“Saurez isn’t, though.”

At this Vorse put in a word.

“He saw more than one killing in those days when he was roustabout for me. It was only one more to him. Probably he has forgotten it. Anyway,” Vorse ended with deadly emphasis, “he knows what would happen to him even now if he remembered it and talked. Leave him out of the calculation too.”

“Then that just makes the four of us,” said Burkhardt. “Nobody else. So this fellow Weir doesn’t know a thing.”

“But we can’t be absolutely sure,” Judge Gordon replied.

“Well, he’d need proof, wouldn’t he?”

“Certainly, to bring legal action. But how do we know he hasn’t even that? Look all around the question as a lawyer does; let us assume the millionth chance, for instance. Suppose that he somewhere met and became acquainted with that boy. Suppose that he learned the latter had been here at the time and saw the shooting; and heard his story. Suppose that Weir knows this instant where he is and can produce him as a witness in court.”

“I reckon in this county his testimony wouldn’t count for much,” Burkhardt, who had been sheriff, stated, with a harsh laugh.

Sorenson, however, was impressed by the Judge’s reasoning, for he drummed with fingers on the desk and sat in brooding silence. So likewise sat Vorse, who had heard Weir’s utterance and beheld his face.

“He knows something,” he repeated, in a convinced tone. “Or he’s⁴⁹ a damned good bluffer.”

“I passed him here at the door this afternoon,” the banker remarked. “I turned to look at him, guessing who he was, and he had stopped and was looking at me. Cool about it too. We’ll have to watch him.”

“Perhaps if we just tip him off to keep his mouth shut tight, that will be enough,” Burkhardt suggested. “If he knows the four of us are ready——”

Vorse sniffed.

“You think he can be bluffed?” he said. “You haven’t seen him yet; go take a look. We’ll not throw any scare into him. If he were that kind, he wouldn’t have told us who he is. He wanted us to know he’s after us, that’s my opinion. He wants to shake our nerve—and he shook the Judge’s all right that day at my bar.”

“He did,” Gordon admitted. “The thing was so infernally unexpected. Almost like Joe Weir himself appearing. I didn’t sleep a wink that night, what with my heart being bad and what with seeing him.”

“Suppose he *has* proofs?” Vorse asked after a pause, while his narrowed eyes moved from one to another of his companions.

A considerable silence followed. The question jerked into full light the issue that had all the while been lurking in the recesses of their minds—an issue full of ghastly possibilities. Judge Gordon’s fingers trembled as he wiped with handkerchief the cold sweat on his brow.

“We’re all in it,” Vorse added.

Burkhardt brought his fist down on the desk with a sudden crash.

“If he has proofs, then it’s him or us,” he exclaimed, while the blood suffused his face. “Him or us—and that means him! I’ll never go behind bars!”

“Sure not. None of us,” Vorse said.

“It will mean——” Judge Gordon began in an agitated voice, but did not finish.

Sorenson gave a nod of his head. His bear-trap mouth was compressed in a determined evil line.

“Exactly. He’ll never use his proofs. We’re in too far to halt now if matters come to the point of his trying to use them. He has a grip on us in one way; he knows we can’t declare his father, Joe Weir, did the killing; that would make us—what do you call it, Judge?”

“Accomplices after the fact. Besides, it would then come out that we had taken over and shared among us his stuff, fifty thousand apiece. It’s a deplorable situation we’re in, gentlemen, deplorable. If we were but able to start the story Joe Weir believed and fled because of, it would cut the ground out from under this man’s feet at once.”

“It’s him we’ll cut, not the ground under him,” Burkhardt growled, thrusting his hairy chin forward towards the lawyer. “And cut his damned throat.”

“I hate to think of our being forced to—to homicide. Even justifiable homicide.”

“Homicide nothing! It’s just killing a rattlesnake waiting in the brush to strike. That’s the way we used to do in the old days, and if he’s going to bring them back that’s what we’ll do again.”

Sorenson smiled grimly.

“We’ll wait till we’re sure he has the proofs, then——”

“Then we’ll act quick and sure,” Vorse shot out.

“And quietly,” the cattleman added. “We’ll take no more chances this time. It will be arranged carefully beforehand; all four of us will be in it, of course,—equal responsibility; and there’ll be no witnesses.”

Judge Gordon’s face wore a pallid, sickish look.

“I hope to God there’s some other way out of it,” he muttered.

“So do all of us,” Burkhardt snarled. “But if there isn’t, it means guns. For you, too, along with the rest of us.”

Sorenson leaned forward and gazed from under his heavy brows, compelling Gordon to meet his fixed look.

“You were keen enough at the time for your share of Joe Weir’s stuff,” he said. “So you’ll play the hand out to the end now, the bad cards as well as the good. You’re no better than the rest of us, and it was you who hatched the scheme for cleaning him up and who put over the story.”

“I know, I know. But—but this would be too much like cold-blooded murder.”

“Murder!” Sorenson grated. “Did you look straight into this fellow Weir’s eyes? Didn’t you see something there that resembled murder? He’d like only the chance to kill us one by one with his own hands: I saw that much. Just as Burkhardt said, it’s him or us. After you told me about him, I had only to take one look. If he has the goods on us—well, he’ll have to die. Make up your mind to that. We’re back to the time of thirty years ago and fighting for our lives. We were not only all in on the Weir job, but the Dent killing—all of us. Remember that. If the facts become known, we’ll be run into some other county and court and hanged. And every enemy we’ve made in these years past will put up his head and clamor for our blood. Let that sink into your mind.”

The effect of this low fierce utterance was to hammer the truth home. The Judge was ashen. Vorse’s face appeared like an evil mask. Burkhardt glowered savagely.

At that instant there sounded the faint report of a shot in the street. Then as the group sat unmoving, rigid, keyed to the highest pitch of expectancy, there followed quickly two more shots. Afterwards, silence.

“A gun-play!” issued from Vorse’s lips, softly.

They all sprang up to hasten to the door.

CHAPTER V

A SHOT IN THE DARK

Steele Weir driving his car down the street in the dusk had caught sight of Felipe Martinez standing near the cattle company's office. He stopped close by, beckoned. Martinez would do as well as another.

"You're a notary, I suppose?" he questioned.

"Yes, Mr. Weir. Most of us lawyers here are," he replied politely, when he had advanced.

"I've some papers I want acknowledged to-night. Must get them into the mail going down to Bowenville in the morning."

"Only too pleased to facilitate your business, Mr. Weir. My office is down a few doors."

"Jump in."

"It's but a few steps."

"Then I'll get out here." And the engineer stopped the engine and descended to the ground.

Along the street open doorways and windows were already beginning to make yellow panels of lamplight in the thin gloom. The air was still warm, balmy, scented by the lingering aroma of the greasewood smoke of supper fires in Mexican ovens. Stars were jewelizing the sky. Few persons moved in the twilight.

One of these was a man who, standing at the door of a native saloon across the street and a little farther up, had come diagonally over towards the bank on seeing the engineer halt his car. He walked with a slouching haste seldom exhibited by a Mexican and gained the spot as Weir stepped out. There he slackened his pace while he scanned the American with an intense, slow gaze that the engineer, chancing to raise his eyes, squarely met.

The Mexicans always looked at him and fell silent when he passed since he had shown who was master at the dam. In the eyes of some was merely stupid curiosity, in some a shrinking, and in many a half-veiled hostility. That did not trouble Weir. In Mexico he had dealt with recalcitrant workmen of more lawless nature than these. He usually ignored them altogether now as they no longer were in his employ. But this man seized his attention.

It was not yet too dark to mark his face as he lounged past, slowly turning his head about as he progressed until his chin was on his shoulder, staring back. His look the while remained riveted on Weir—a steady, contemplative, evil regard. In Chihuahua the engineer had once seen a notorious local “killer” who had that same gaze.

Martinez had also glanced at the fellow.

“Who is that man? One of the discharged workmen?” Weir asked him, when moving forward they in turn had passed the Mexican.

“No, I imagine not. At any rate, he doesn’t belong in San Mateo or anywhere hereabouts. I know everybody for fifty miles, for I’ve been active in social and political affairs. He’s unknown to me. A stranger.” Then a little farther along: “Here is my office, Mr. Weir. I’ll have a light in an instant. Ah, now. Be so good as to have a chair and we’ll expedite your business.”

As Martinez filled out the acknowledgment blanks on the papers, his eyes furtively skipped over the vital portions of the documents. The latter were connected with company business. He had hoped they would be personal so that he might learn something more of this manager’s affairs, possibly more of his secret antagonism for Sorenson and his friends. Any intrigue appealed to the thin, slippery lawyer’s soul, but most of all some one’s else intrigue into which he might profitably put a finger. However, from these papers he was to learn nothing.

He had considered all possibilities of the affair, all possible solutions of what long ago might have occurred between Joseph Weir, undoubtedly the father of the man sitting across the table from him, and the four men now conferring in Sorenson’s office. This was no petty squabble, he divined. There was something going on under the surface that was big—big! And very dangerous too, for the spirit of that moment in Vorse’s bar was not to

be mistaken; it had been tense, electric. Utmost caution on Martinez's part would therefore be necessary.

As between the two parties, his sympathies at present inclined towards Weir. The refusal on the latter's part to reemploy the Mexican workmen on their own terms was purely a matter of policy, and the lawyer's first gusty anger had long been forgotten. But not so Sorenson's sneering words of that afternoon. They struck to the heart of his vanity, breeding an animosity that would last. Had not the banker stated that the lawyer should hold no political office whatever? After all his services? Had he not definitely shown that Martinez might never expect anything there? Well, the lawyer wasn't one tamely to yield his rights; he did not propose always to remain a scrimping, pettifogging attorney, existing on crumbs.

When with a flourish he had appended his name to the acknowledgments and affixed his seal, he sat back thoughtfully studying the engineer, who was carefully examining the paragraphs for errors. He knew his business, did Martinez; the man would find no mistakes. Then the lawyer's eyes suddenly glistened. He arose and closed the door as Weir thrust the documents into a stout linen envelope, addressed and stamped.

"I'll be pleased to see your letter goes in the mail in the morning," he said, returning to his place. "The stage leaves at eight-thirty."

"Post-office is closed now, I suppose. Very well. It will be an accommodation," the engineer responded.

Martinez leaned forward.

"If you can spare the time, I should like to have a little talk with you," said he. "Pardon me if I appear presumptuous, but as you're aware, Mr. Weir, I overheard your words to Judge Gordon in Vorse's saloon. I inferred—check me at any instant if you consider this none of my business!—that there exists some unpleasant feeling between you two gentlemen and possibly others. Judge Gordon has always handled the company's business in his private capacity of counselor. As you know, he's a silent partner in many enterprises with Sorenson, Vorse and a man named Burkhardt. They run this town and county. You should also know that they're secretly opposed to your irrigation project, whatever they profess. They've misled the people into believing it will work an injury to this district, whereas it will of course

be beneficial. Unfortunately too they lead the people by the noses—but not me! I refuse to be subservient.”

He paused to note the effect of his words.

“Now, Mr. Weir, these are facts you can confirm if you’re not already informed of them, which I imagine you are. Because I’m independent in my opinions and actions, I stand in disfavor with these gentlemen, which may or may not be an objection in your view to what I have in mind. And this is it. I should be pleased to execute any legal work that you care to give me; it might be of advantage to your company at times to have an attorney other than Judge Gordon, who is aligned against you and will serve his own interests first. He’s in a position to cause you embarrassment.”

“Our eastern attorneys draw all documents.”

“Of course. But I was thinking of delays more than anything else. There are a thousand ways a lawyer can push or halt matters at will, and your project will never be free of legal red tape until completed—if then! I’m not unselfish in this, I admit; the business would be valuable to me. But aside from that, I’ll give you this advice anyway:—secure another lawyer in any case, one without antagonistic personal interests, if you can find another in San Mateo besides me. See, I’m frank! That may sound egotistical, but really I’m the only free man of the lawyers here. And I’ve paid for my liberty!” He made a sweeping gesture to indicate his shabby office. “If I had taken orders, I could have been county attorney and probably a judge. But I respect myself too much to take orders from Sorenson and his bunch. I choose this sort of thing in preference.”

Steele Weir maintained a non-committal silence. Again the thin dark-skinned lawyer swiftly weighed the man before him, considered the dangers in which he might become involved if he went a step farther, recoiled, then grew bolder. Sorenson had marked him for poverty and nonentity; under the favoring shelter of the irrigation company’s power he might arise from both. For at moments the acute Mexican sensed the inevitable victory of the new forces at work; this, one of the last strong-holds of old time cattle and sheep interests, would break down and yield to the plow and fence.

“Now, there’s something more, though I hesitate to mention it,” he went on, doubtfully. “While Sorenson and his crowd run things, it’s not because the

people—and that means us Mexicans chiefly—love them. We're indolent by nature; we idle rather than work; borrow when we can rather than earn—I speak of our race, but we're learning that work proves best in the long run. These men have squeezed my people, and robbed them, and kept them down. Nothing more would I wish than to see these leaders deposed. It's no secret they've built their wealth by questionable methods, but who can prove it?

“Do you know what I suspect? You have something on Sorenson's crowd. That's why they're uneasy; that's why the four are sitting over in the cattle company's office this minute with their heads together, meeting the minute Sorenson arrives home. I saw them go in. Leaving aside the question of your own affairs, I'd like to have matters changed here in this county so that every man has a fair chance. Anything that will bring that about enlists my interest. When I heard your statement to Gordon and saw his face, I knew there was something in the past that alarmed him. I recalled a name I had once run across when abstracting a title——”

It was not this ingenious twisting of the truth that caused the lawyer to become filled with sudden dismay and stop, but the savage hardening of the engineer's face.

“Go on,” Weir commanded.

“Well, the name was Joseph Weir. I looked it up again to be sure, and found the property had been deeded to Sorenson and the others, who still have it. I wondered——”

“What did you wonder?” came with a devouring look.

“If—if Joseph Weir received consideration according to law.” Martinez' courage flowed back again. “I'll make no attempt to justify my curiosity, sir, except to say that more than one man in the southwest was done out of property in early days; and the practice has not ceased, for that matter. But in these days the means is usually legal and Mexicans the victims. Sharp mortgage dealings and so forth. Now, if I've said too much, I'll instantly forget all about it. On the other hand——”

“Well?”

“I might be of assistance. If you wish to look into that old transaction, that is. If there was anything crooked about the deal, and I set it down that there

was with Sorenson mixed in, and with Vorse and Burkhardt the witnesses named in the deed and Judge Gordon taking the acknowledgment of Joseph Weir's signature, as the record shows, then there should be some weak spot that could be attacked. There may be men yet alive conversant with the circumstances; they may know whether duress or fraud was exercised, supposing the sale was not honest. Some of the old Mexicans may remember Weir, and could give a clue; they have good memories for things of those days. Of course, if the transaction was all right, then I'm all wrong in my suppositions."

Weir arose.

"I can give you some of the company business, perhaps considerable of it," he said.

Martinez sprang up, an expression of gratitude upon his face. He had not realized all that he had hoped for, but he was nevertheless delighted.

"I'm really sincere when I give you a thousand thanks, Mr. Weir," said he, spreading his arms wide. "I'll not make promises as to the efficiency of my services; let results speak for themselves."

"I always do," was the comment. "But I'll tell you what I demand in any one associated with me—absolute trustworthiness first of all, then loyalty and ability."

"Which leaves nothing," Martinez smiled.

He preceded the engineer and swung the door open, stepping aside. To the visitor's question regarding fees for the acknowledgments taken, he waved a declining hand.

"Nothing, nothing. Delighted to render you the service."

"Very well."

"I'll attend to the letter," the lawyer again assured him.

"Come out to the dam in a day or two."

"To-morrow, if you wish."

"To-morrow afternoon will do."

Steele Weir's frame filled the lighted doorway as he stepped forth from the office. He paused to accustom his eyes to the darkness, for during his colloquy with the attorney full night had descended. On the same side of the street with himself and perhaps twelve or fifteen paces off he saw a girl's figure appear and disappear before a window as she moved along.

Then suddenly a tongue of red flame darted at him across the street, where lay a space of unlighted gloom. His hat was whipped off his head. The sharp report of a shot cracked between the adobe walls. With an unbelievably rapid movement Steele Weir drew the revolver in his pocket, and which he had carried ever since his encounter with young Sorenson in the restaurant, fired twice where he had seen the flame and leaped aside into the darkness beside the doorway. There he waited, half crouching, for a further attack.

But none came. Men began to run towards the place. Shouts and calls echoed along the street. In two minutes a crowd was surging before Martinez' door wildly asking questions.

Weir pocketed his pistol and walked back into the office, where he found his bullet-pierced hat lying on the floor and the attorney standing frozen with astonishment. A stream of people followed at his heels.

"Who did this shooting? Do you know, Felipe?" a tall raw-boned white man who led them asked hastily.

"This gentleman, Mr. Weir, was fired on, sheriff," Martinez burst out volubly.

"And I fired in return," the engineer stated. "The fellow was across the street in the dark. You might look over there."

Turning and pushing his way through the packed door, the sheriff disappeared. The crowd melted away again. Presently as Weir glanced about he saw a new figure at the doorway, staring at him. He went towards the girl there outlined in the lamplight.

"Was that you I saw moving along just before the exchange of compliments, Miss Hosmer?" he asked.

"Yes. I was coming towards you on my way home."

"It probably gave you a fright."

“It did, indeed. I heard the shot and saw your hat knocked off. I just went cold in my tracks. At first I believed you killed.”

“I’m very much alive, as you see.”

“But it was dreadful! Who would fire at you from the dark? Some one tried to murder you!”

“It looks like it. Still here I am, ready to move your car out of the water next time it’s stalled.”

She entered the room slowly.

“Who in San Mateo would do such a terrible thing, Mr. Martinez?” she addressed the lawyer. The pallor was still on her face and her eyes were large with horror.

“Ah, Miss Janet, if we but knew! We’d lay hands on him and send him to the penitentiary.”

Real emotion struggled in the lawyer’s words. With the return of his senses he had just begun to realize by what a narrow margin the assassin’s bullet had missed destroying his future client and prospects.

A growing murmur across the street attracted their attention. Then as they continued to chat of the event, the sheriff reappeared, directing half a dozen men who laid a burden in the light of Martinez’ doorway.

“You got him,” he said to Weir, with ominous significance. “One bullet through the head, one through his stomach. He’s good and dead.”

Weir walked forward and inspected that outstretched figure. It was the man whose gaze had been so malevolently fastened upon him as he joined Martinez before Sorenson’s office.

“Who is he?” he asked.

“A strange Mexican. Some of these men say he showed up this morning and hung around the saloons, not talking much. Haven’t you ever seen him, before?” The question expressed a perplexed curiosity.

“Once. When Martinez and I were coming here to transact some business. He was taking a good look at me then when he passed us. That wasn’t over half an hour ago. Never saw him before that.”

“He shot at you first?”

“I had just stepped out of this room. Could I see him hiding over there? Or know he was there?” Then he added, “I was taken by surprise, but I marked the flash of his gun.”

The sheriff, Madden by name, looked at Weir appreciatively.

“You can use a gun yourself,” said he, briefly.

Martinez now repeated the fact of the dead man having fired the first shot, which Janet Hosmer confirmed.

“Well, is there anything more?” Weir questioned.

“Not to-night, I reckon,” Madden replied. “We’ll have an inquest in the morning; show up then. Where will I find your father, Miss Hosmer?”

“At home.” Then to the engineer she explained, “Father acts in the absence of the coroner, who’s away just now.”

“I’m very sorry this happened on your account,” said he.

“And I’m very glad you were not hurt.”

Outside the corpse was being borne away, followed by the curious, avid crowd of Mexicans.

“You’re still shaken by the thing,” said Steele Weir. “It’s enough to upset any girl. Let me walk home with you, or you may be starting at shadows all the way.”

CHAPTER VI

JANET HOSMER

A silvery brightness shone in the east as they came out of Martinez' office, that increased as they went forward until all at once the moon arose into view, lighting the street, disclosing the flanking lines of squat buildings, revealing the tall cottonwoods about the court house and elsewhere thrust up in the town.

Janet Hosmer breathed a sigh of relief. The darkness had seemed potent for further evil, but now it was as if the latter retreated with the shadows. She felt a desire to go on alone, to separate herself from this companion with whom chance had brought her in contact at a dramatic moment, to get away from the whole terrible affair. Involuntarily her spirit shrank at the nearness of the man, for though he had struck back in self-defense he nevertheless had killed another and the act somehow appeared to set him apart from ordinary men, isolate him, give him the character of an Ishmael.

Yet her feelings were confused. Against this inclination was an avid curiosity, or rather a wonderment, as to what must now be occurring in his soul. Her eyes sought his face as he walked beside her. Neither had spoken; and his countenance wore the same stern contained aspect, calm, forceful, as the first time she had ever observed it. But what was below the surface? What were the thoughts now revolving in his mind and the emotions flowing in his breast? She could read nothing on that composed mask of a face. Was it possible for a man to slay another human being, even justifiably, without suffering a hurricane of the spirit?

But perhaps he had killed men before. The fact of his carrying a weapon and his swift deadly fire pointed ominously to previous experience.

"Did you ever shoot any one before?" popped from between her lips. Then she stopped, clapping her hand over her mouth in consternation and staring at him palely.

Weir had halted too. He regarded her in silence for a little, a slight smile resting on his face. They stood before the cattle company's office and his look went past her once to embrace the small darkened building.

"I'm not a murderer by trade, if that's what you mean," said he, at last. "But I've killed a man or two before, yes." Then at the white anguish of her lips and cheeks, his tone softened a degree as he went on. "Unfortunately since becoming of age I've had to fight. If not men, then the earth. If not the earth, then men. Sometimes both together. You saw what happened to-night; that fellow was unknown to me. He was not a workman who had been discharged and felt he had a grievance——"

"Oh, no!" she interjected. "The Mexicans here wouldn't attempt to murder you, however angry they might feel."

"I'm not so sure of that," he answered.

"But I am; I know them, I've lived among them!"

"Well, let that go. The man tried to kill me, at any rate. However, he was merely a tool, hired for the business by some one else. Ordinarily I don't discuss my affairs with any one, but since you've raised the matter I'll just say that I've enemies in San Mateo who are anxious to dispose of me."

"Such enemies here!"

"Yes. Who would be delighted to see me lie where that dead man lies and who are apparently determined to effect it." He touched her sleeve warningly. "But you will speak of this to no one."

"No, oh, no! Not a word!"

Steele gazed at her steadily. He already repented disclosing even so little of his private concerns, an impulse altogether at variance with his close-mouthed habit, but he had, for some vague reason, felt it necessary to explain his course, to justify himself to this clear-eyed, fine-spirited girl. He could not let her rest under a misapprehension that he was a brute who reveled in blood-spilling. And as he regarded her a conviction that she was absolutely to be trusted settled firmly into his mind.

She would be staunch; oxen and ropes could not drag information from her once she had determined not to speak. Yes, she would be loyal to her given word—and to her friends. Weir's eyes glanced at the diamond on her finger.

It would be a girl like her with whom he would have chosen to mate if fate had not directed his feet on a road which seemingly left him no choice but incessant and solitary struggle.

“I hate it all; I have nothing but crusts and nettles!” he exclaimed, with sudden fierce passion. And with a quick movement of his hand he beckoned her on.

Submissively she accompanied him, her bosom rising and falling with a quickened rhythm. Too much had happened, one thing piling on another, for her to sort her thoughts or to attempt to understand things yet; and in her tossing state of mind she went at his gesture as one follows a guide, or as a simple matter of course.

In her mental turmoil that last passionate utterance of the man played like a lambent flame. Tense, violent, spontaneous, it had come from the heart. What harsh lot he had lived and sufferings borne she could not even guess; but no man spoke with such unconscious bitterness who had not undergone pain and travail of spirit. His head was now turned a little towards her as they walked: she perceived him staring at the moonlit street, his lips compressed, his brows knit.

Then he glanced about at her, his face clearing. “Pay no attention to what I said,” he remarked. “I shouldn’t have let loose that way. Hello, what’s on now?”

Before them, and in front of the court house, was a packed crowd, people who had run forth at the sound of shots, augmented by those who had since arrived upon the scene. It was motionless.

“Stand back, stand back; don’t trample the body!” came Sheriff Madden’s voice in an angry order.

The crowd surged a little apart in the center.

“How do you know this dead man fired the first shot?” asked some one, vehemently.

The voices went lower so that Steele Weir and Janet Hosmer, who had paused at the edge of the throng, were able only to catch the tones.

“Who was that who questioned the sheriff?” Weir whispered.

“Mr. Burkhardt, I think. Sounded like him.”

So intent were the Mexicans upon the occurrence in their midst that those close by remained with backs towards the pair, failing to notice their presence. All craned eagerly to miss nothing of the controversy.

“How do you know this engineer didn’t start it?” came Burkhardt’s voice again.

“Don’t be a fool; there were witnesses.”

“I’d like to talk to those witnesses. I doubt if they really saw anything. It looks to me as if there’s another side to this shooting.”

“Well, of course you know—you, sitting there in Sorenson’s office, as you say,” was the ironical retort.

At this juncture another voice interposed.

“Madden, we want no mistake here. This Weir doesn’t bear a very good reputation for peacefulness, from what I’ve learned. If this Mexican has simply been shot down——”

“Who is that?” Steele demanded of the girl. “I can’t see him.”

“That”—Janet Hosmer’s speech faltered—“that is Mr. Sorenson. Oh, they misunderstand! Let me push in there and tell them how it happened.”

The engineer’s hand closed about her arm.

“You’ll do nothing of the kind,” he commanded, low.

“But——”

“No. Remain quiet and listen.”

Her eyes flew up to his at this extraordinary course, so injurious to his own interests. She was anxious to press to the front and declare his innocence in the affair of everything but defending his life from an assassin. She could not understand why he also was not eager to spring forward, why he restrained her. Then she saw the implacable hatred on his face.

A thrill quivered through her body. The feeling she had at that instant was one of being on the point of seeing behind the curtain of a mystery, of making a discovery so sinister that she would gasp. Her very finger almost rested upon it. Why were Mr. Sorenson and Mr. Burkhardt talking as they

were? Trying by innuendo to make it seem her companion might have been guilty of a crime? Could it be— Her blood slowly congealed to ice at the horror of where her reasoning led.

Could it be they were the enemies he meant!

Such a thing was too dreadful, too absurd. They, the respected leaders of the community, could never put a pistol in the dead wretch's hand to slay this man beside her. Mr. Sorenson! The father of Ed, whom— She stared blankly at her left hand.

Yet the banker's heavy, smooth words continued to assail her ears steadily. She grasped their import once more.

“—for the story is too thin. No man could hit another across the street in the dark as this engineer claims, not only once but twice put a bullet where it would kill. Probably the dead man had something on this Weir, and the latter knew it. It's not impossible he found the fellow in his path, drew and murdered him at once, quickly put a hole in his own hat and then carried the body across the way, running back to Martinez' office. The thing could have been done in a minute. Martinez' himself wouldn't have seen how it was worked. I'm not saying that was exactly how it was done, or that this Weir did actually murder him, but—investigate, Madden, investigate.”

Steele Weir felt an angry tug at his sleeve. He looked around and beheld Janet Hosmer's eyes distended with incredulity.

“Come away, come away,” she whispered. “I should never have believed it if I hadn't heard with my own ears!”

Keeping close to the line of buildings, they skirted the crowd, still unnoticed, and left it behind. She walked with quick nervous steps; her hand yet unconsciously grasped his coat sleeve. All the way to her home, which they found dark since a messenger had called the doctor to the court house and the Mexican girl servant also was gone, she said nothing.

“Come up on the veranda; I want to talk,” she announced when he opened the gate.

“Wouldn't it be best if you took your mind off the whole thing, by a book or something else? I'll go.”

“As if I could take my mind off! There are matters in this I must know. You may wonder when I say it, Mr. Weir, but this happening concerns me more than you dream.” Her dark glowing gaze brooded on him with a sort of intense determination. Then she went on, “It—it involves my whole future as well as your own, though in a different way. So come inside, if you please.”

Weir in silence accompanied her upon the dark, broad, vine-clad porch. In the half-gloom he found chairs for them.

“I’m going to the point at once,” she declared. “Why did Mr. Sorenson talk in such a fashion?” And he could feel her bending forward as if hanging on his answer.

“That’s the one thing I can’t discuss,” said he.

“I must know, I must know.”

“And unhappily I must refuse.”

“Oh, Mr. Weir, if you could but understand what this involves for me, you wouldn’t hesitate! I was shocked at the shooting, but I saw its necessity on your part; you’re not one to run from a foe, a cowardly foe least of all. But what I heard there in the street horrified me. I couldn’t believe it; I can scarcely credit my ears yet. Mr. Sorenson and Mr. Burkhardt were not near when you were attacked; they are not acquainted with the circumstances or facts as you, Mr. Martinez and I know them; they apparently didn’t appear until the crowd started away with the dead man. Yet at once—”

“Ay, at once,” Steele Weir let slip.

“At once, immediately, when they had barely heard the story, they began to tear it to pieces and suggest another, making you out a villain. You’re only an acquaintance, sir, scarcely more than a stranger, but as I listened it outraged all my sense of justice. Mr. Sorenson, of all men! My brain was in a whirl. But it’s steady now.”

The engineer failed to open his lips at her pause.

“I’m no fool, Mr. Weir; I think of other things besides dressing my hair and using a powder puff. I can sometimes put two and two together—when I see the ‘twos’ clearly. Now, tell me why Mr. Sorenson talked as he did, for I must have my eyes clear.”

“Ask me anything but that, Miss Hosmer.”

He sat distressed and uneasy at her prolonged muteness. Suddenly she questioned quietly:

“Are those two men the enemies you spoke of?”

“It will save me embarrassment if I go,” he remarked, starting to rise. “I don’t want you to hate me, you know, and still I can’t say anything.”

Her grasp pulled him imperatively back.

“You shall not go yet.”

“Then I can only continue to decline making answers. I frankly say that I regret having uttered a word of explanation.”

“I don’t regret it. And I intend to keep questioning you, however rude you may think me. I must know,” she cried impetuously, “and I shall know! Mr. Sorenson is one of the men you referred to, or he would never seek to direct suspicion at you. I saw the look on your face, sir, as he spoke. But why should you two be enemies! You come here a stranger to San Mateo, or have you been here before sometime? Did you know him before?”

Again he could feel her eyes straining at him.

“It seems mad to think of him and Mr. Burkhardt, and perhaps others, hiring some one to shoot you down from a dark doorway. It is utterly mad—crazy. But why should they want to convict you, in the crowd’s opinion at least, of murdering the man. It would not be just trouble about the dam—oh, no. But I can’t see through it at all. Why won’t you tell me? You can trust me—and I want to help you as well as help myself. You certainly don’t hold against me my silly nonsense and unkind words of the day you brought me home from the ford.”

“I didn’t think them silly; they delighted me,” he responded. “I hadn’t had anything happen to me so refreshing in years.”

“We must be friends. Something tells me they’re going to make you trouble over this shooting, and you’ll need friends.”

“Something tells me you’re right in both respects,” he laughed.

“And friends must stick together.”

“That’s what they should do.”

In the dusk of the vine-clad, flower-scented place where they sat he experienced the subtle power of this intimacy. Not a soul stirred in the empty moonlit street before the house. No sounds disturbed the warm peace of the night. In this secluded spot only there ran the murmur of their voices.

“I could never stand by and see any man unjustly accused and defamed if I knew he was innocent, without lifting up my word in defense,” she proceeded. “But let me ask if on your side you’re treating me fairly?”

Weir could have groaned.

“You have a noble spirit, Miss Hosmer. You’re more courageous and kind than any girl I’ve ever known. Would you have me reveal what my best judgment tells me should remain untold?”

“But what of me? Would you keep it to yourself if my future happiness might turn on it?”

The appeal in her words shook Steele’s heart.

“How does this business affect your happiness? How?” he asked, in perplexity.

Now it was her turn to hesitate. Why should she pause, indeed, before telling to this man what every one else knew. Yet hesitate she did, from a feeling she could but partly analyze. Of her fiancé she had already had disturbing secret doubts that had increased of late: doubts of his habits, his character and the genuineness of his love; so that it was with a little eddy of dissatisfaction and shame that she admitted the relationship. More she questioned her own love as an actual thing. In a startling way, too, this silent, forceful man, so deadly in earnest and so earnestly deadly, so terrible in some aspects, seemed at the instant to dwarf the other in stature and power as if the latter were a plump manikin.

Perhaps at the last minute she had a shiver of dread at what might issue from the engineer’s lips in the way of facts if he took her at her word and told her what she had demanded to know. Did she want to know? Suppose she let the affair rest where it was and went forward to the future in the comfortable assurance of ignorance.

In that case, it might be wooing later revelations that then could not be escaped, revelations like consuming lightnings. She would settle it now once for all.

“It does concern my future and my happiness vitally,” she declared, earnestly. “For this reason——”

“Yes?”

“I’m engaged to marry Ed Sorenson, son of Mr. Sorenson.”

Weir leaped to his feet.

“Good God! That fellow!” he exclaimed, astounded.

Without another word he sprang down the steps and strode away. Janet Hosmer, grasping the arms of her chair and staring after him, saw him once bring down his clenched fist on nothing. Then he passed rapidly along the street and out of sight.

CHAPTER VII

IN THE COIL

The Spirit of Irony couldn't have devised a more intolerable situation. So thought Steele Weir as he strode away from the dwelling, still laboring under the emotions provoked by the girl's disclosure, wincing at his own biting thoughts and writhing at his own helplessness. It needed only this revelation to cap the whole diabolical evening.

He could not have remained with her now if his life had depended on it. She, engaged to that scoundrel Ed Sorenson! How could she have been so blind to the lustful beast's nature? She must love him, of course. He must have been careful to exhibit to her only such qualities as would gain her affection and respect, or rather hollow shams of qualities he never had possessed. Propinquity, lack of rivals in this little town, no doubt were largely responsible for her feeling for the man. But it was like standing by and seeing her fair young body, her fresh pure life, her high soul, flung to a devouring swine.

And by the rules of the game he couldn't open his lips to utter a word of warning! That was the worst of it, that was the worst of it. No, not by the rules of the game; not, for that matter, by the rules of life; for the latter run that only can the person concerned see with his or her own eyes what a loved one's character is, and must make and abide by her own judgments.

Steele Weir all at once stopped in his tracks. He stared straight before him for a time seeing Janet Hosmer's face as it appeared when she anxiously gazed at him from Martinez' door, coming out of the night like a pallid moon-flower. At that instant she had feared he had been wounded; her heart was fluttering with anguish. The tension of his body relaxed and his hands slowly unclosed and involuntarily his eyes went up to the moon sailing serenely in the sky above the treetops and the flat-roofed adobe houses. What vaster blessing could life bestow than to have such a look come seeking one beloved!

He went on thoughtfully.

“She shall not marry him,” he said to himself, with a quick resolve.

What were the rules of any game when an innocent girl’s happiness was at stake? Did he care for conventions, or even the contempt she herself might feel for him for apparently belittling her lover? He could stand that, so that her eyes were opened and the fellow’s yellow heart made plain. At the proper time he should act, view his part as she might. A snap of his fingers for being misunderstood! He would go his own way afterwards.

The thing had its curious features, too. No mistake, the shock of hearing Sorenson senior talking to the sheriff and the crowd, working up sentiment, had stirred her indignation and wonder and uneasiness and alarm. She was no fool, as she had said. She had a clear, practical mind, give it something to work on. Her intuition had immediately grasped the fact that there might be cellars under the Sorenson household of which she knew nothing and which should be promptly entered with a strong light. Whether the momentary desire would last, that was the question. To-morrow, or the first time she found herself in Ed Sorenson’s reassuring presence, she might consider that her brain had been upset by events of this night, jiggled awry in a sort of moonlight madness, and her apprehensions as to happiness unfounded shadows.

Well, Weir would strike later.

He turned into the main street. Evidently the body of the dead Mexican had been carried into the jail behind the court house, or somewhere. The throng had dispersed, though its elements were every place talking, in pairs or in little knots of people. As he came along, these fell silent at his passing. They stared at him, motionless, expressionless, with the characteristic Mexican stolidity that is the heritage of Indian blood. By his automobile he found Martinez posted, stroking his long black mustache and regarding Sorenson’s office, which was still lighted though the curtain remained drawn over the broad plate-glass window.

“Just wanted to give you a whispered word,” he said, in Steele Weir’s ear, darting a glance towards some of the Mexicans who, drawn by insatiable curiosity, were lounging nearer.

“Speak,” said the engineer.

“I came out of the office after you did and heard the talk.” He made a covert movement of forefinger towards the nearby building. “The four of them are in there again. I saw you listening to Sorenson here in the street; and would you care to have me express my opinion as to what the signs indicate, Mr. Weir?”

“Go ahead.”

“In the light of what I suggested during our talk in my office, the silly twaddle of Burkhardt and Sorenson is understandable. I look right through their scheme. They always frame up something against anybody they want to dispose of; they do it in business matters regularly, and very skillfully. They immediately perceived a chance, sir, in this unfortunate encounter of yours and laid hands on it; their talk was the first delicate maneuver to ‘frame’ you.”

“Sure,” was the unperturbed answer.

Martinez laid a finger on Weir’s lapel.

“Frankly, feeling hasn’t been good towards you because of the work controversy at the dam,” he went on, with another swift glance about. “They will use that. On the other hand, you have Miss Janet and me as witnesses in support of your story. Unfortunately Miss Janet is, as you may not be aware, engaged to——”

Martinez paused dramatically.

“Well?”

“To Ed Sorenson,” the lawyer half-hissed. “Nothing could be worse.”

“Why?”

“Why? Look at the position she’ll be in. Consider the pressure they can put on her through that fact—and they’ll not hesitate to do so, in one way or another. Innocent as a dove, she is, Mr. Weir.” He thrust his head forward, showing his lips drawn apart and shining teeth tight set. “And she’s never heard a rumor of his hushed-up affairs with poor, ignorant, Mexican girls who knew no better.”

“We’ll simply have to trust to her courage to tell the truth on the proper occasion.”

“Ah, but they’ll trick her some way.”

“And you?”

Martinez straightened, smiled, twirled his mustache.

“I? They aren’t quite foxy enough for that, Mr. Weir,” he boasted, with glistening eyes.

The engineer was almost ready to believe that, but cunning was not the only weapon in his enemies’ arsenal. How would this lean lawyer stand up under intimidation, bribes, threats?

“I trust so, Martinez,” said he. “Do you think they will try to get me sometime by an out-and-out gun-play?”

“No, no, no.”

“Do you think they could if they tried?” Weir inquired, grimly.

The attorney paused with finger and thumb on the point of his mustache, lifted his eyebrows and smiled broadly.

“They’ll consider twice before they attempt it, after your expert exhibition this evening,” said he. “It was amazing, your speed, your accuracy.”

Steele tapped the man on the breast, who experienced a distinct tremor at that significant touch and at the veiled menace in the dam manager’s eyes.

“There’s always one bullet in my gun for the man who betrays me, Martinez.”

The lawyer licked his lips. On general principles he disliked statements that committed one to the future. But it was necessary to say something.

“To be sure. I should feel the same in your circumstances,” he responded. Then as Weir turned to his car, he continued: “The inquest to-morrow morning should be over early. I’ll visit you in the afternoon as planned.”

“Don’t forget that letter,” Weir called out.

Martinez marveled. Kill a man, and still remember a letter! That magnified his respect immensely. Cool, that fellow! Then a slight shiver as if a chill from those black peaks west of the town had struck through his flesh rippled along his spine; for he had been over at the jail with the crowd and had viewed that dead body lying there on the stone floor. Not only cool, but

dangerous and deadly, this engineer. He, Martinez, must be discreet; it would not do to risk gaining Weir's enmity. That cold-faced man could not be "monkeyed with."

Martinez gnawed his mustache and eyed the dully illuminated office window. He wondered if those four men inside had not at last found their match, perhaps their master. Any one with half a brain could see there was going to be a desperate struggle between the four and the one, and he was not exactly sure yet that he wanted to venture farther into the affair. But the very danger fascinated him with its subtle and obscure features, exactly suited to his manipulation.

A man who had been standing apart sauntered nearer.

"Señor," he addressed the lawyer in Spanish.

Martinez whirled about.

"Ah, it's only you, Naharo."

"He is a bad fighter, eh?" And the man, almost white because of intermixed blood, moved a hand in the direction Weir's car had gone.

"Perhaps not bad. Quick with a gun, however," was the careful reply.

"With his fists also. I saw, or if I did not see, I very nearly did so—it is the same—saw him use them in Bowenville. And on that dog of an Ed Sorenson who would have seduced my little Dolorosa, as he did Cristobal's daughter, if I had not perceived what he was at."

The lawyer's ears were instantly pricked up. He caught the man by the shirt-sleeve.

"Come with me," he said.

Once they were in his office he carefully closed and locked the door, drawing the window shades. Literally he rubbed his hands one over the other as he bade Naharo take a chair. Then the pair of them rolled and lighted cigarettes.

"Perhaps I should say no more, Señor Martinez."

"It will go no farther. And if the engineer and Ed Sorenson had a fight, then it must have been for that reason the latter's father spoke as he did to-night.

You heard him.”

“Yes. And I did not understand why. It was not because of what happened at Bowenville, unquestionably not, for it had to do with another girl——”

“Ha, a girl! And the engineer mixed in it?”

“Listen. As I say, he would not have told his father, because he keeps such things quiet; it is four years since he last had to pay money to settle a matter. Some think he now behaves, but it is not true. But he is more careful. So his father did not know about this.”

“Tell it all, Naharo.”

The other inhaled a puff of smoke and half-closed his eyes. Though nearly white, he retained the Mexican’s high cheek bones, and languor, and unforgiving nature.

“I was in Bowenville, freighting up flour to the store of Smith’s. I had loaded by evening, to make an early start next day. I had gone into the restaurant for supper, taking a seat far down at the end of the counter near the kitchen. I was tired and thinking only of my food. As I ate, there was a crash in one of the stalls and I looked about. There was a fight, of course. But it ended at once. Then I observed Ed Sorenson come out presently, jerking his collar and tie straight. He was mad. He had been whipped, too. For he yet looked as if he wanted to kill the other man in there, but he went away. Soon the other man came out and with him was a young white girl, whom I did not know. The man was this engineer and he carried an old piece of baggage, not such as he would carry but as the girl might, for she looked like a ranch girl who was poor. The girl was scared. The man was calm as a priest. That scoundrel Ed Sorenson had been beaten. Aha, so; it was clear. The engineer had put a spoke in the fellow’s wheel. Then I walked to the door and saw the two get into a car and start on the trail this way. After that, I resumed my supper. You perceive, the man had taken the girl away from the wolf.”

Martinez’ restless eyes wandered about the room as he digested this account.

“Did you see the dead man?” he inquired, casually.

“Yes, señor.”

Their looks met, held for an instant, dropped. Each read the thought of the other: the motive for the attack on the engineer was clear. But some convictions are better not expressed.

“I should have liked to see Señor Weir do the shooting,” Naharo stated. “Dios, such shooting! Two shots, two hits. And in the dark!”

Martinez’ grinned.

“It will not please—whoever hired the dead man. He was hired for the job, of course.”

“Unquestionably, señor,” was the reply.

CHAPTER VIII

THE GATHERING STORM

At the inquest next morning no outward sign indicated what Weir's enemies might be at. Indeed, none of them was present. The engineer made a statement; the two witnesses, Janet Hosmer and Felipe Martinez, were briefly interrogated, and the finding was returned that the unknown Mexican had met death from two bullet wounds while attempting to kill Steele Weir.

One spectator there was who took a strong interest in proceedings, Ed Sorenson. When, however, Janet Hosmer was notified by her father, who was in charge, that she could withdraw, the young fellow hastened to lead her away, with an audible remark that it was a shame she had had to be "dragged into this disreputable gun-man's bloody show." Meaning Steele Weir, naturally.

That feeling was being intensified against him was only too apparent in the hostile manner of the crowd and in the silence with which it received the finding. There was his former unpopularity, to begin with; there was now added a race resentment, for the slain man, stranger though he was, was Mexican; and finally, he knew not what distilled poison of lies concerning his innocence in the night fray. Nothing more was needed to reveal the swelling hate which secret fear of Weir but increased than a volley of curses and abuse hurled at his head from a native saloon doorway as he passed in his car on his way home.

During the following week the engineer was too occupied with dam work to have time for other matters. He pushed the concrete construction and inspired his men with something of his own indomitable spirit, who had learned of the cowardly attack in San Mateo and rallied to his standard with a zeal and ardor for which the fact of employment alone did not account. He had become a leader as well as their "boss." From Meyers down to the humblest workman the camp had for him a new admiration, a new respect

and a new loyalty, which he could not help but feel; he had proved that he could deliver the “goods”; and if the Mexicans wanted war, the Americans here would be glad to oblige them. Nor did they wait to let San Mateo know the fact.

“We’re wid ‘Cold Steel’ Weir, our boss, four hundred of us, till ye can skate on hell,” a huge Irishman, one of half a dozen standing at Vorse’s bar on Saturday night, remarked when the saloon-man uttered a sneer at the manager. “Say that agin and we’ll tear your rotten booze joint to pieces and make ye eat it! And if another stinkin’ greaser tries to wing him from the dark, we’ll come down here and wipe your dirty little town off the map! That goes both ways from the jack!” He snapped his fingers under the other’s nose by way of added insult.

A petty series of hostile acts against the company developed. Teamsters were stoned by boys, which left them raging and murderous to discover the men who set them on. Half a carload of cement in sacks was ripped open and emptied on the earth at Bowenville. After Meyers, Weir’s assistant, found his automobile tires slashed to bits on coming out of the post-office in San Mateo, it became necessary always to go in pairs, one man to remain on watch. Weir himself just avoided a serious accident one evening at dusk while a mile from the dam when he instinctively ducked in his car as something grazed the top of his wind-shield. A wire had been stretched across the road from a telephone pole to a tree, at just the height to strike him at the throat.

He halted and removed the deadly contrivance. Men on watch of his movements could have prepared it against his return; and, indeed, he thought he detected a pair of flitting shadows behind a row of willow bushes lining a Mexican irrigation ditch, but in the dusk he could not be sure. On running thither, he found no one.

The camp was not of a temper, however, to allow the attacks to be all on one side. Atkinson, the superintendent, came to Weir one morning towards the end of the week and informed him workmen were drifting down to San Mateo nightly in hope of trouble.

“They’ll get a knife put into them,” Steele Weir replied, with a frown that did not entirely hide his satisfaction at this evidence of support.

“Maybe; and again maybe not,” the superintendent stated, grinning. “A bunch jumped some of our boys last night and I guess when the dust settled there were a couple of Mexicans beaten nearly to death.”

“Call the men all together this noon,” Weir ordered.

At that hour he gave them a talk for what he called their long-eared cussedness, and laid down a little law and wound up with a number of reasonable explanations for the same. Every man who went out hunting trouble was a camp liability, and would be fired. He did not propose to give the town authorities a chance to jail workmen and impair the dam work, just the thing they were waiting to do. The men should keep away from San Mateo, or at least avoid disputes and rows. If they spent no money there whatever it would sting the town where it would hurt the most, in its pocket-book; and he himself was transferring the company bank account to Bowenville, by way of example. If any man felt the need of change from camp, he could have two days off at the end of the month to spend at Bowenville. But keep away from the Mexicans!

“And if they come up here huntin’ us when we show up no more?” yelled the same big Irishman who had paid his respects to Vorse.

“In that case, tear their heads off,” was the reply. “But put on your gloves first or you’ll dirty your fingers.” Which bit of rough humor caught the crowd’s fancy and won a roar of laughter.

Later as the crowd dispersed to eat Atkinson said to Meyers, “The boss knows how to handle men all right, all right; he put sugar on the pill. The gang went off grinning. They know they’ve got to be good—but only up to a limit.”

Meantime Felipe Martinez had not been idle. He rode up to engineering headquarters on his pony one evening and carried Weir out into the open where their words would not be overheard. He reported that he was quietly working for information of Weir’s father among the older Mexicans who would be likely to remember him, but proceeding cautiously so that no one would suspect his purpose. He represented himself to them as undertaking to write a history of San Mateo County; he must depend upon them for data of early days; it would be a fine book bound in leather, in which their names and possibly their pictures would appear;—which never failed to flatter the

parties with whom he talked. And the lawyer laughed with amusement as he related the success of his method.

“I have already seen some thirty or forty people, a few of whom recalled your father, but no more. But this afternoon,” he continued, “I discovered a woman who worked at the Weir ranch house.” Martinez perceived the engineer’s attention quicken. “She said the Weirs had a little boy of four years of age, perhaps five. You, Mr. Weir, of course. They suddenly paid and discharged her one day, packed a trunk and drove hurriedly off; and the next morning Sorenson took possession of the ranch and she went home. They drove off in a great haste—there was no railroad anywhere near here then—and that was the last she ever saw or heard of them.”

“Yes.”

“One thing more there was: she said there was a story that went around for awhile afterwards that Weir and another had lost their ranches and cattle gambling. For that reason Weir left the country; and for that reason, too, the other man, Dent, by name, committed suicide in Vorse’s saloon where they had gambled. She said Saurez, an old man living with his son up a little creek, would know about that, for he used to clean out Vorse’s bar-room in those days.”

Steele Weir grasped Martinez’s shoulder in a quick grip.

“He did! Get everything he knows out of him,” he commanded.

“Leave it to me, Mr. Weir. I understand how to wheedle facts out of these old fellows.”

But it was doubtful if the engineer heard his words. He had dropped his hand, stood opening and shutting his fingers, while on his face grew the hard implacable look that always whetted the attorney’s curiosity.

Weir walked up on the hillside when Martinez had ridden away and there sat down on a rock. It was a rift, though but a faint rift, that this news made in the blank dark wall he had to confront; and he wished to think. Proof as well as knowledge of what had happened in his father’s case was what he must have. Acting on intuition he had been able to put fear into the hearts of the four men responsible for making his father’s life a hell, but proof of their guilt was necessary to make them suffer in a similar fashion, to reveal

their crime to the world, to destroy them. Now at last, here was a possibility. If this former roustabout of the saloon knew anything!

Well, he must be patient—the mill of the gods grinds slowly. But when finally he had gained all the strands and woven the net! Unconsciously his hands arose before his face like talons closing on prey and shut on air, until their veins swelled. That was how he would serve them, those men. Though they might fall on their knees and implore mercy, not one beat of pity should move his heart.

It was almost dark when he arose. Behind him the great peaks soared against the last greenish twilight. In the shacks the camp lamps were showing at windows. At one side and in the canyon the concrete core of the dam appeared white in the gloom, like a bank of snow. The murmur of voices, an occasional distant laugh, came from men's quarters.

Presently he slanted down the hillside past the camp, until he struck into a road leading towards town, where he began to walk forward, hatless and without coat, through the soft dusk. He was disinclined for work as yet, the work always piled on his desk; he desired yet for a little to rest his spirit in the evening calm.

His thoughts had softened and turned to Janet Hosmer. He had not seen her since the morning at the court house. He had not spoken with her since that interview upon her veranda, which had terminated with his shocked utterance. That he had thus given away to his feeling he had a hundred times repented; and that he had so brusquely departed he was profoundly chagrined. But what could he have done? No explanation was possible. The situation in which he had been allowed of but one thing, escape.

With the rising tide of emotion reflected by memory of that moment his steps had quickened. All at once he discovered before him the rippling sheen of water. He was at Chico Creek, a mile from camp, where he first had met Janet Hosmer. Engaged with his tangled problem, he had been unaware of the distance covered.

Pausing but an instant he waded through, smiling to himself at thought of that afternoon's spirited encounter with the girl. She had not dreamed then, nor he, that events would fling them together in a more dramatic second meeting at Martinez' door.

Suddenly he perceived a white-clad figure before him, standing motionless, leaning forward to peer his way as he walked forth from the ford.

“It’s you, Mr. Weir?” came in soft inquiry.

“Yes. How in the world do you happen to be here, Janet Hosmer?”

She laughed.

“I thought I recognized you marching through the stream, so I wasn’t alarmed.”

“No one would think of harming you, I’m sure.”

“But anyway I should have vanished if you had been a stranger.”

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“Not being one, you remained. I had no idea of such luck as this when I set out for a walk.”

Both pleasure and satisfaction sounded in his voice.

“I was just taking a little stroll myself,” said she.

CHAPTER IX

AN UNEXPECTED ALLY

“Let me take the chance first thing to apologize for my behavior the night we talked on your porch,” Steele Weir exclaimed. “Your statement of being engaged surprised me into words and conduct that has had me in an unhappy state of mind ever since. Mr. Sorenson’s talk to the crowd stirred my anger. Had I known your exact relationship to him and his son, I should have made no mistakes.”

“I had urged you to speak, had I not?”

“Grant that. But I don’t stand excused.”

“There was no questioning the sincerity of your last expression that night, in any case,” she said. “But I’ve not been indignant because of what you exclaimed or because you hate the Sorensens. ‘Hate’ isn’t too strong a word, is it? I’m none the less interested however to know what it’s all about. You see I don’t take any stock in the reasons commonly given: that you’re a ‘bad man,’ an agent of a rich corporation trying to put our people out of business, a public menace and all the rest.”

“Is that what they say?” Weir asked, with a laugh.

“Part of it. Nor does it fool father, for he said only yesterday that there’s something more at bottom of the feeling against you than merely a fight of moneyed interests. He knows from what I told him that that dead man tried to murder you; yet he hears constant talk of your ‘crime,’ of evidence being gathered against you by the county attorney, Mr. Lucerio, and of the penalty you shall pay. All absurd, to be sure.”

“Mr. Martinez tells me the same,” Steele responded. “But he says also that all the people do not believe the stories.”

“That’s true.” And she appeared to reflect upon the circumstance.

To Weir nothing could be stranger than this talk on the dark road with the girl who, too, should be naturally opposed to him. In fact, here at this very spot and at their first meeting she had announced herself as a critic and an enemy. He could smile over that now; she herself probably did smile at the recollection. Yet she was calmly discussing his situation without animus or even unfriendliness.

How could that be possible if she actually loved the man whom she expected to marry, Ed Sorenson? Why did she not at once spring to arms in defense of the Sorenson side? Unless—unless she suspected the baseness of her lover and his father, and fear had replaced love.

All at once she spoke.

“They will put you in jail if they can, and bring you to trial, and—and——”

“And hang me, that’s what you hesitate to say,” Steele finished for her. “Whom do you mean by ‘they’?”

“The people.”

“Are the people here in this county really ‘they’? Do the people, that is, the mass of poor ignorant Mexicans, have anything to do with public affairs? Both you and I know they do not.”

“Why deny it!” she sighed. “It’s generally known that four men, with a few more at their skirts, run things. They nominate the men who are to fill office—there’s only one political party in the county worth mentioning—and give them orders and expect them to obey. For that reason father would never accept an office. He could be coroner; he could be county treasurer; he could go to the legislature; or anything else—if he would but wear their political livery. But he prefers to be a free man. I used to think nothing of it, see no wrong in such a state of affairs, for everything went along well enough and about the same as ever as far as I could see.”

“Possibly you didn’t see everything that was occurring below the surface even then.”

“Exactly what father told me yesterday. We talked about everything under the sun, I imagine. And I informed him that you walked home with me the night of the shooting; I had not spoken of it before.”

“That was proper; he should know it.”

“He doesn’t share in the feeling against you, Mr. Weir, let me assure you of that. Ever since he heard my explanation of the shooting and then met you at the inquest, he’s convinced that you’re being done a great injustice.”

Steele experienced a warm glow of pleasure.

“I liked your father at first sight,” said he, simply. “But where does all this leave us?” He spoke in a light tone of amusement that he was far from feeling. “Our position is—odd.”

“It is,” she assented so earnestly that he began to laugh.

“You mustn’t allow it to disturb you. I’m really presuming upon your kindness of heart and innocence in enjoying your company now. Acquaintance with me is a rather serious matter here in San Mateo and carries consequences. You don’t think for an instant that I’d allow my personal pleasure—and pleasure it is to be with you, needless to say—to bring you into ill-favor among your friends and to make you the subject of gossip. I appreciate your good spirit towards me; and I admire you greatly. But it will be well if I admire you at a distance hereafter.”

“I don’t see whose business it is except mine.”

To Steele Weir it was like pushing aside the only thing that brightened his hard, toilsome existence thus to abjure future companionship with her.

“Good heavens, do you fancy that comes easy for me to say?” he exclaimed, drawing a deep breath. “I never before knew any one who—well, I’ll stop there.”

“Who what?” she demanded.

“I nearly overstepped the bounds.”

“Oh, that’s it.”

What imp of perversity was in the girl? Weir stared at her for a moment through the gloom.

And then she remarked that she must be returning home, and said she would be glad if he would accompany her part way as there was a Mexican’s house half way to town where a particularly vicious dog always rushed out. The dog rushed out exactly as she had predicted, barking

savagely, so that she slipped her arm into the engineer's and held fast until they were past.

"He does that only after dark; I hadn't expected to walk so far and it was still light when I set out," said she.

The touch of her fingers on his sleeve, the light swing of her form at his side, the subtle fragrance that emanated from her hair and face, this intimate nearness on the dark road, the heavy scent of flowers in the bordering fields,—all sent the blood thumping from his heart. If he—if he were in Ed Sorenson's place, what love he could pour out!

Ed Sorenson, the double-faced wretch who while engaged to her had attempted to entice away for his own vile gratification the simple, trustful girl on Terry Creek, he was to marry this sweet and charming companion. What diabolical tragedies life could mix!

"See, the moon is rising," she said.

Over the edge of the mesa the yellow globe was bulging, rayless for the moment, round and full.

"We're almost at the edge of town, and I'll stop here," he replied. "As I said, I'd not bring down upon your head a single unpleasant word."

"My head's not so tender," she responded quickly. "But I think you're right—for the present." A tight little smile followed the words. "We'll see."

"That's best."

"But I propose to stand by you. I told you that night I couldn't remain indifferent when I saw an innocent man persecuted."

"You give me a tremendous amount of happiness."

"If I do, I'm glad. I don't believe you ever had much of it. Do you know what is said? That you never smile. But I can swear that isn't true, and I'm beginning to wonder if you really are—Heavens, what was I about to say!"

"Go ahead. It's nothing terrible, I wager."

"Well, I won't finish that, but I'll ask a question even more impertinent, if I may. Frankly, I'm dying of curiosity to know."

Weir turned his head to listen to the approach of a horseman. He could see the man galloping towards them for town, having turned into the road from a lane a short distance off, his horse's hoofs striking an occasional spark from a stone. Then the engineer looked smilingly at Janet Hosmer.

"I'll tell you anything—or almost anything." One subject alone was sealed.

"It's that name."

"Name?"

"'Cold Steel.' How did you get it?"

"It was just pinned on me a few years ago. I'm not particularly proud of it. I don't even know the rogue who gave me the label. And it means nothing."

"Even your enemies are using it,—and I understand what it signifies." She bent her eyes upon him for a time. "That is, what it signifies to your friends."

"And to my enemies?"

"More gossip. They say it's because you're a gun-man and a knife-man. Oh, I wish I didn't have to have my ears filled with such vicious slander! But it means the same to enemies as to friends if they would but admit it. I'll wait until this rider passes, then I must go."

No thought of friends or foes, both, or of any such person as Ed Sorenson in particular, was in Steele's mind as he made answer.

"I'd stand here forever if you didn't go," he said, with a low eagerness that caused her breath to flutter in spite of herself.

On her part, her mind was whispering, "He means it, I believe he really means it." Which caused her to lift and lower her eyes hurriedly, and feel a peculiar sense of trepidation and excitement. Odd to state, she, too, just then had no recollection of any such being as Ed Sorenson, which was the extreme of unloverliness.

"Before I do go, I've something to tell you," she said hurriedly, dropping her voice. "It's this: the dead man's name was"—here her tone went down to a mere sibilance—"Pete Ortez."

He leaned forward, once again the hard fierce man she had seen in Martinez' office the night of the shooting.

"How did you learn that?"

"It—well, it was let slip inadvertently in my presence."

Weir would not press her further. Nor was there need, for the sudden embarrassment on her face and indeed the information itself could have but one source, the man who knew, Ed Sorenson.

"You're the equal of a thousand ordinary friends," he declared. "I can make use of that item. Step aside, please; we're in the middle of the road." And he drew her from in front of the horseman advancing upon them.

They said nothing, but waited for the man to pass. But he pulled his mount from a gallop to a trot, and from a trot to a foot pace, and at last when squarely even with them came to a full stop. From under his broad hat brim he silently considered the girl in white summer dress and the bare-headed engineer.

Then he began to shake with laughter, which lasted but an instant. So insulting, so sinister was that noiseless laugh that Janet's hand had flown to Weir's arm, which she nervously clutched. As for Weir, his limbs stiffened—she felt the tightening of the arm she grasped—as a tiger's body grows taut preparatory to a spring.

The short, fleshy, insolent rider sitting there in the moonlight was Burkhardt.

"Ed Sorenson better keep an eye on his little turtledove," he remarked. And touching heel to his animal he swung ahead for town.

For one dazed minute they stared after him.

"Shoot him!" she suddenly said, through shut teeth.

"I haven't my gun along, or I'd be glad to oblige you."

"He deserves killing, the wretch!"

"On more accounts than one," he replied, quietly.

So quietly and so gravely, in truth, that her gust of rage subsided before the low-spoken menace of the words. No quick anger was his but a steady and

deadly purpose. Again she felt the hard-held force, the mystery of the man, as if flowing suddenly upward from subterranean channels. What wrong had he suffered, what undeserved torture at the hands of this man and others thus to freeze his soul?

But he immediately turned to her, asking, “Does that upset the broth?”

A wan smile greeted his words.

“I expect it will keep the cook busy, anyway,” she said.

CHAPTER X

BY RIGHT OF POSSESSION

Janet Hosmer made no effort to guess what her fiancé would say when next he called, or to prepare a defense of explanations and excuses. She was not that kind. What was necessary to be stated at the proper time would arise to her lips. Nevertheless she had a heaviness of heart, a natural distress as to the unpleasantness in prospect; and had only the slightest hope that Ed would ignore or refuse to hear Burkhardt's story. The man would tell her lover, of that she might rest assured, out of hatred for the engineer if for no other reason.

She knew how passionately Ed was set against Steele Weir, for a score of times she had heard his incensed opinions, increasing lately to tirades. It had seemed strange at first that one could be so bitter over a simple difference like that of who should work at the dam. But ever since Weir had uttered his hoarse exclamation regarding her engagement, words so full of protest and amazed indignation, she was aware the cause went deeper.

At that moved ejaculation of her companion that night something, too, had settled on her heart like a weight—an indefinable foreboding. The anxiety aroused about Ed's father and his integrity came to include Ed likewise. Loyalty of course required that she accept the man she had promised to marry, without reservations. As between him and others there should be but one choice. But did she really know him? Was he simply the open, jolly, generous, upright adoring fellow he appeared? Or were there less pleasant, more ignoble sides to his character? Was he, as well as his father, capable of a mean, unworthy, selfish persecution of another?

The engineer had made no open accusation against him—or against any one, for that matter. She had done her best to get him to express himself, but he had refused. Enemies he might have, but he would not discuss the fact beyond admitting it was true. Only at moments when his restraint slipped could she measure his feelings. Quite different that from Ed Sorenson's

voluble, heated denunciations of the other. Yet, heavens, how appalled this reserved man had been at hearing of her engagement! Far more than words, far more than any open charge, did his face and incredulity, both so patently sincere, bespeak the mistake she was making and justify gnawing doubts of her lover.

As she approached her home Ed Sorenson came dashing out to spring into his runabout waiting before the gate. At sight of her he pulled up short.

“Ah, here you are,” he said.

“Yes, here I am,” was her reply.

“You doubtless know what I’ve been told,” he stated, significantly.

“No, I don’t. I can only suspect.”

“Is it true you’ve been meeting this man Weir on the quiet? Meeting him while engaged to me? You know what I think of him, and what every other respectable person thinks of him.”

“Was that Mr. Burkhardt’s report? That I am meeting Mr. Weir on the quiet, to use your words?” she countered.

Sorenson made an angry gesture at what he considered an evasion.

“Janet, listen. He said he saw you at the edge of town, that you were both bare-headed, standing close together, arms locked. Good heavens, can’t you imagine my feelings on hearing what he had to say! He stopped me on the street and drew me aside to put me on my guard, he said. Burkhardt wouldn’t just make up a yarn like that against you, and he’s a good friend of mine. He didn’t say half what he suggested.”

The girl turned her face towards the house, shut her eyes for an instant. She could picture the rider’s brutal leering face and unspoken insinuations; and her brain also placed in the scene her lover greedily if angrily drinking in the tale. Harkening to it instead of knocking the man down, that was the worst of it. Harkening—and believing.

“I’ll not deign to resent your remark of meeting Mr. Weir ‘on the quiet’,” said she, quietly. “I met him on the road accidentally.”

“Don’t you think I’m entitled to know something about it?” he asked, with an edged tone.

“What is it you desire to know?”

Nearly an oath of wrath escaped his mouth, but he kept his control.

“Janet, you know what kind of a man he is,” he said. “You know what I feel against him, and father, and all our friends, and the town. And the whole town, too, will probably hear of this, with a lot of gossip added that isn’t true.”

“But I met him accidentally.”

“You didn’t have to chat with him like an old friend.”

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Janet Hosmer gave him a slow, meditative look.

“How do you know how I talked with him?”

“You talked with him. That in itself was too much.”

“I don’t view it in that light,” she responded. “He was perfectly civil. Whatever public opinion may be regarding the shooting, I know he killed the man in self-defence. So that’s nothing against him. You would have done the same in his place.”

Ed Sorenson leaned towards her.

“You were mistaken, Janet. I’ve said before that I feared you were, but the prosecuting attorney has witnesses to the gun-play that he’s dug up. Martinez saw nothing; how could he from inside the office? And remember that you’re only a girl, Janet; in the darkness and with the excitement you were confused. I haven’t a doubt this scoundrel Weir made you believe you saw what never occurred, when you appeared in Martinez’ office. When you’ve thought it over, you’ll realize that yourself. These new witnesses tell just the reverse of what you fancied happened. I’m going to see that you’re away from San Mateo when the man’s tried, as he will be.”

No reply coming from her, he continued:

“He deceived you then and he’ll endeavor to poison your mind right along. You’re too trustful. Now, I was angry at first, but if there was anything in this meeting to-night that was out of the way, it was his doing, I know. If he got familiar with you, as Burkhardt hinted——”

“Well?”

“I’ll kill the dog with my own hands!”

“You may rest easy. His conduct was irreproachable, Mr. Burkhardt to the contrary.”

Sorenson regarded her in perplexity, divided between anger and doubts. Too, a new feeling unaccountably sprang into his breast—jealousy. In the end apprehension all at once filled his mind, darkening his face and bringing down his brows.

Uneasy as at first he had been after the row in the restaurant, he had eventually dismissed the matter from his mind, for no rumor of it had reached San Mateo. Neither Weir nor Johnson, the girl’s father, had blabbed of it, so his alarm passed; they didn’t want to talk of it for the girl’s sake, any more than he wished it known, was his grinning conclusion. The deuce would have been to pay if Janet had got wind of the business. But now his fears came winging back a hundred-fold as he stared at her.

“What did he say to you?” he asked, in a tense voice.

“Not that tone with me, if you please.”

Sorenson, however, was past observation of her mood or temper.

“He told you a lot of lies about me, didn’t he?” he went on, not hiding the sneer. “And you believed them.”

“He didn’t say much, but what he did say was to the point. I don’t recall that there were any lies.”

“There were, of course. It would be just his chance to give you his made-up story about me and that Johnson girl. That was what so interested you.”

“No, he didn’t say anything about you and any girl except me. Then he only said he was sorry he couldn’t have the pleasure of my friendship——”

“Ay-ee,” the other grated. His lips worked above his teeth.

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A shudder passed over Janet Hosmer’s skin at the sound and the sight, for she had never seen him like this. A cold hand might have been closing about her heart: his glare was animal-like and bestial. His nature at the instant stood unclothed.

“And he said he would be at pains to avoid even chance meetings with me, because it would make talk and cause me annoyance.”

“He’ll not meet you another time if I have anything to say about it.”

“I see. But I wanted you to understand that he told me no lies, nor repeated any story—about you and a Johnson girl, I think you said.”

A visible breath of relief lifted his breast. He now would have been glad for some one to boot him along the street for ever mentioning the thing. He almost had put his foot in it. Apparently she was not interested in seeking further knowledge of the subject that he so ill-advisedly had brought up. Lucky for him she hadn’t the inquisitiveness of some girls.

The narrow escape restored a trace of his good humor, and he was shrewd enough to divert her mind before the incident made an impression. He reached out and patted her shoulder.

“Don’t think me a scold, darling,” said he. “Burkhardt upset me with his news, that was all. He hates that gun-man so much that it’s no wonder he was angry at seeing him hoodwink you. He probably imagined a lot. Just don’t speak to Weir if he tries to stop you again. And pretty soon we’ll have him where he won’t interfere with anybody.”

“When will that be?”

“The county attorney’s still collecting evidence. Nothing will be done before the grand jury meets, which is in a couple of weeks. You must arrange to go off on a visit about that time.”

“Why?”

“So you won’t have to go through the ordeal of appearing in court. There are ways of fixing such things.” He laughed softly. “Especially here in San Mateo County. It’s too rotten a business for you to have to step into, this murder. Come along down to the drug store and have some ice cream.”

“Not to-night. I’m feeling a little tired.”

“Then let us rest on your porch. I haven’t seen you twice in the last week.”

“Some other evening, Ed. I promised father to help get up his account books.”

“You’re not angry with me?” he asked. “If you’re not, give me a kiss before I go.”

A sharp smile showed on her lips.

“I’m not angry, but I’m going to penalize you to that extent. If you must have a cheek to press, go kiss——” She paused, while the conviction darted into his mind that she had remembered that Johnson girl blunder after all, then said: “Mr. Burkhardt’s cheek.”

Again relief swept him.

“Come, be kind, Janet,” he began. But she was already through the gate and skipping up the walk, vanishing in the gloom of the veranda. The screen door clapped shut. “Peeved, all right. I’ll have to be extra-nice to her for a day or so until she calms down,” he murmured to himself. “Must send her a box of chocolates and some magazines to-morrow to show my contrite heart; that always gets ’em. Hang it, it’s time to fix a day, too. We’ve been engaged long enough. She sure has a figure and face—a beaut! I guess she didn’t smell the booze on my breath. Got to be careful about that till we’re married.” He jumped into his car.

The screen door had clapped shut, but Janet had not entered. She had employed the artifice to convey the impression it had. She did not wish to go in to her work just yet, for calm as she had appeared during the interview her emotions were running full tide. Love Ed Sorenson? Marry him? She groped for and dropped into a wicker chair, her head sinking in shame and self-abasement. Never—never!

And before her mind swam another face, a face with the hair ruffled about the brow, clear of eyes and strong-lined, as she had beheld it in the moonlight of the road.

All at once she tugged at a finger, fiercely pulling off the engagement ring. She rubbed her cheek as well, with an angry hand, for the memory of kisses was burning her as by fire.

Then she sat quite motionless for a long time.

“I’ll just ask father,” she exclaimed. “There can’t be more than a dozen Johnsons around here.”

Which would have given Ed Sorenson a fresh jolt in his breathing apparatus if he had overheard, and shriveled the cocky self-assurance with which he sipped a high-ball that moment at Vorse's bar.

CHAPTER XI

JANET AND MARY

In a region as sparsely settled by white people as San Mateo and its adjoining counties there were not, as Janet put it, more than a dozen Johnson families. In fact, there were but two, she learned from her father: one at Bowenville, the small railroad town of three hundred people, a merchant with a wife and four little children; the other a rancher on Terry Creek, whose wife was dead and who had one child, a girl of sixteen or seventeen years of age.

"I may be away at dinner time, so don't wait for me," she told her father next morning. "I'm going out in the country a few miles—and you know my car! If you'd just let me squeeze some of these patients who never pay, you could have a new car yourself."

"Mine's all right," he smiled.

"But mine isn't. Look at it. You gave it to me only because you scorned to ride in it any longer yourself. It would do for me, you said, but you prance around in a bright shiny one yourself. I blush at the row mine makes; sounds like a boiler factory; I drive only along side streets. If the patients would pay what they owe, I could ride like a lady instead of a slinking magpie."

The doctor leaned back in his chair and laughed (they were at breakfast) and remarked that old friends were best.

"Don't call my asthmatic tin beast a friend; we're bitter enemies," said she.¹⁰⁸

It carried her to Terry Creek about noon, however, safely enough, whither she went with a firm resolution that crushed a certain embarrassment and anxiety. Suppose these people resented her inquiries.

She placed the bearded, tanned rancher at once, when she saw him working on a piece of harness before the door as she drove up. She had seen him in town at different times. She once had stopped here, too, several years

previous when accompanying her father, who had been called to dress the rancher's injured hand. The girl could not have been over twelve or thirteen then, a shabby, awkward girl wearing a braid who came out to gaze shyly at her sitting in the car.

Johnson arose from the ground and approached as she alighted, while the girl's head popped into sight at the door.

"I'm Dr. Hosmer's daughter, Janet," she stated, putting out her hand and smiling. "I've come to see you on a matter. Shall we go into the house?"

With curiosity sharing a vague hostility in his bearing he led her in, where his daughter was setting the table. Janet also told the girl who she was. At once dismay and startlement greeted the announcement. But she invited Janet to be seated, she herself withdrawing to a spot by the stove.

No need for Janet to beat about the bush with her errand.

"Mr. Johnson," she said, "I've come to you and your daughter for a little help if you can give it." That seemed the best way to break down their reserve, an appeal rather than simply blunt questions—and what was it if not an appeal? "What I have to say is just among the three of us and I know it will go no farther. You're acquainted with my father; he's respected by every one."

"He is," Johnson stated, nodding.

"The situation is this, to speak plainly: last night I heard something that has caused me to come to you for information; I'm engaged to Ed Sorenson, and in a moment of anger he denounced Mr. Weir, the engineer at the dam, for having told me a false story—lies—about him and your daughter."

Janet perceived the quick, troubled look exchanged by man and girl.

"Mr. Weir has never mentioned your daughter's name in my hearing; I think him incapable of discussing any one maliciously. He's very careful of what he says. I consider him a very honorable man. At any rate, he said nothing of what Ed Sorenson suggested, and if the latter himself hadn't spoken of the thing I should have had no inkling that there had been anything justifying an inquiry on my part. There may not be. But why should he imagine Mr. Weir had told me 'lies' linking him and your daughter?"

"I know Weir—and I know Ed Sorenson, too," was the rancher's grim rejoinder.

"This is a disagreeable subject, I know. But I'm not here out of mere curiosity, but a desire to learn if something has been concealed from me by Ed Sorenson that I should be informed of. His manner, his words, the whole incident has filled me with doubts. See, I'm trusting you absolutely." And she extended a hand in a gesture bespeaking sincerity.

Johnson peered at her in silence from under shaggy brows.

"I ask myself why Mr. Sorenson took it for granted that the engineer had been telling me false stories and if there was any ground for such fears," she went on. "He had nothing to be afraid of, no matter what might be said, if he had done nothing unworthy. I can't imagine Mr. Weir, for instance, being alarmed in that way."

"They're telling plenty of lies about him, for that matter, but I guess it doesn't worry him any," Johnson said.

"What I ask you touches a delicate subject, perhaps," Janet continued, reluctantly. "You may feel that I'm pushing in where I'm not concerned. But if Mr. Sorenson has done anything discreditable—if he has acted in a way to make me ashamed when I know, then it becomes a matter affecting my happiness too. I would never marry a man who had done something dishonorable, for if I did so knowingly I should be dishonored and dishonorable as well."

Johnson suddenly thrust a brown forefinger at her.

"Do you want to know what Sorenson did?" he demanded, wrathfully.

Janet gripped her hands together. "Yes."

"You'll not go spreading it all around the country? But I guess you won't as long as it would make you out a fool too. I'll not have Mary's name dragged about in a lot of gossip."

"I assure you I shall remain silent, for her sake and my own."

"All right, I'll tell you. You're too good a girl—any decent girl is—to marry Ed Sorenson. He met Mary at a dance last spring in town where she went with some friends of ours, and made love to her but wouldn't let her tell me

or any one. We don't get to town so very often; she never knew he was engaged to marry you, there never happening to be any mention of it to her. Then he got her to go to Bowenville one day awhile ago, under promise to marry her there—Mary is only sixteen, a little girl yet. To me, anyway.”

Janet felt the working of his love in those simple words. Felt it but half-consciously, though, for her own soul was stifling at Ed Sorenson's revealed infamy.

“When he got her there, he told her they would have to go away farther to be married—to Los Angeles.” Again his finger came up, this time to be shaken at her like a hammer. “He never intended to marry her; he planned to get her there, ruin her, and cast her off. That's the sort of man you're going to marry!”

“I remember he expected to be away for a couple of weeks—a business trip, he said. But afterwards he explained that it hadn't been necessary to go.”

“A business trip! Yes, the dirty kind of business he likes. And if it hadn't been that Weir heard him explaining to Mary that she must go on and interfered—there in the restaurant—Ed Sorenson might have succeeded. Mary trusted him, thought he was straight. But he's crooked, crooked as his old man. When Weir told him to his face what he thought of his tricks, he let it out he was engaged to you. Didn't mean to, of course. Weir said he would stay right with them and see that they got married next day before a minister, then Sorenson snapped out he was to marry you. That opened Mary's eyes, that and his refusing to go before a preacher as the engineer demanded. So Weir brought her home to me.

“And that isn't all I know,” he snarled. “Mexicans and cowboys and others have talked—women don't hear these things—how he's had to pay Mexicans hush-money for girls of theirs he's wronged. But what do people care? He's rich, he's old man Sorenson's boy; everything's kept quiet; and he goes around as big as life.” With a muttered oath he turned away, his lips shut hard and his beard sticking out savagely.

He came back to her again.

“The young one gets it from the old one,” he exclaimed. “Bad crooked blood in both of them. I know. I've been here ever since I was a boy and remember things Sorenson believes every one has forgotten, I know how he

got his start, how he and the rest of his bunch cleaned out Dent of his ranch and cattle gambling and then killed him when he discovered they had used marked cards, how at the same time they robbed another man——”

Janet struggled to her feet. She had covered her eyes and bowed her head before the torrent of his vehemence.

“No more, I want to hear no more,” she gasped. “Let me go home. I’m sick.”

“It all makes me sick, too,” he answered. “Sick and sore, both. But it’s the truth. I’m sorry if it’s been a bad pill to swallow, but it’s the God’s truth, girl. I’m sorry it couldn’t be any other way, but I wouldn’t see you marry that scoundrel if I lost a hand stopping you. Mary felt sick at first, too; she’s over it now. You’ll not feel bad long. Better stay for dinner with us.”

“I couldn’t swallow a bite. Thank you for your kindness in asking me—and for telling me what I wanted to know, too. Father never knew, or he would have warned me. People saw I was engaged to Ed Sorenson and would say nothing to father, of course. I shall always count you as one of my best friends, Mr. Johnson. And you too, Mary; you must come down and stay with me sometime, for I imagine you get lonely here. No, another day I’ll remain to dinner—and I want to be alone now.”

They pressed her no further, seeing her wretchedness of spirit. But they walked with her to the car and shook hands with her when she was in and urged her to come again.

When she had disappeared in the aspens among which the trail led, Mary said to her father:

“You said they killed a man named Dent.”

“They did. I saw the killing.”

“And nothing was ever done about it?”

“No. Nobody but me knew of the happening and I’d of had a bullet through my heart if I’d talked. I might yet even now, so see that you keep your mouth shut.”

“You told her.”

“I was mad, so mad I could say anything. But she isn’t the kind to repeat the story; I’m not afraid on that score. She’s clean strain all through.”

“Did you know the man whom Sorenson and the others killed?” Mary questioned, in some awe.

“I knew of him, but I was only a lad then. I saw it all through the back door of Vorse’s saloon where it happened, but I’ve never breathed about it to a soul. I didn’t want to be murdered some dark night. Those four men would see that the job was done quick even now, I’m saying, if they were on to the fact. I know ’em, if nobody else does.”

Mary’s skin crawled with prickles of fear.

“They must be awful bad.”

“They were devils then, and I don’t think they’ve changed to angels to-day, though they try to appear decent. I know ’em; I know what they’ll do once they start. You can’t make sheep out of wolves just by giving ’em a fleece.”

“You said they robbed another man at the same time they killed that Dent.”

“Yes; and it only goes to show the hellish crooks they are. It was another man in the saloon. He was drunk. They made him believe he had killed Dent. Then said they’d help him to get away if he gave them his property. He was a rich fellow who had come out from the east and gone to ranching, a tenderfoot. They took his stuff and he skipped the country with his wife. That was the last of him, and I reckon he believes to this day that he’s a murderer. And that’s how they got the start of their wealth, or a big part of it, Sorenson and Vorse and the other two. They’ve got the San Mateo Cattle Company, with fifty thousand head of steers, and ten or twenty bands of sheeps and ranches, and the bank, and all the rest, and they walk around like honest men. But they’re thieves and murderers, Mary, thieves and murderers! I’d rather be the man I am, poor and with nothing but this little mortgaged piece of ground and my few cattle, than them, who robbed Dent and killed him and then robbed and drove out Weir.”

“Was that the other man’s name?”

“Yes.”

“That’s funny. The same as the man who brought me home.”

“There are lots of Weirs, like the Johnsons.”

“Not so many, I guess. Maybe they’re related. Did the man who skipped have any children?”

“No. None I ever heard of, though I didn’t know much about him. Just him and his wife, I think.”

Johnson had perceived no resemblance between the engineer and the vanished man of whom he spoke. As for that, however, he had no clear recollection of the elder Weir’s face; he was but twelve years old at the time of the dramatic event, thirty years before.

“Now, come along and eat,” he said. “And remember! Not a word of this to a soul.”

Meanwhile Janet Hosmer was driving slowly down the canyon, oblivious that opportunity to unlock the whole mystery had been hers, never dreaming that she had just missed by the slenderest margin what Steele Weir would have given the world to know.

For an instant Fate had placed the key in her hand. She knew it not; it was withdrawn again and the door remained closed and locked while the threads of Destiny continued to be spun.

CHAPTER XII

THE PLOT

In Vorse's saloon, where in the past so many evil ideas for the acquisition of money or power had sprouted, the scheme had its inception. It had been of slow growth, with innumerable suggestions considered, tested, discarded. The intended arrest and trial of Weir had been the first aim; but this had expanded until at last the plot had become of really magnificent proportions, cunning yet daring, devilish enough even to satisfy the hate and greed of its originators, consummate in design, absolutely safe and conclusive.

It was Sorenson who conceived the notion of pulling the irrigation project down in ruins at the moment of Weir's own fall. Judge Gordon a few days later had pieced out the method, which was either to corrupt the workmen to wreck dam and camp or to place them in the equivocal position of having done so apparently though others did it in fact. Vorse and Burkhardt devised the details. Weir should be left free until the blow had fallen on the camp, whereupon he should be immediately clapped into jail on the murder charge, which, coming on top of the "riot," would paralyze all company action and work. From such a crushing double-blow no concern could quickly recover, if indeed the loss did not result in total cessation of construction.

Thus shedding their coats of expedient lawfulness, they reverted under the menace of Steele Weir's presence to the men they were in an earlier age—an age when a few white land and cattle "barons" dominated the region, predatory, arrogant, masterful and despotic; the age just ceasing when the elder Weir and Dent arrived; the age of their youth forty years before, the age when railroads and telegraphs and law were remote, and chicanery and force were the common agents, and "guns" the final arbiters.

To them Weir was like a reincarnated spirit of that age. He guessed if he did not know their past. He had appeared in order to challenge their supremacy,

end their rule, avenge his father's dispossession at their hands. He instinctively and by nature was an enemy; he would have been their enemy in any other place and under any other circumstances. He was a head-hunter, and in turn was to be hunted down. He was the kind who neither made compromises nor asked quarter. He veiled his purposes in as great secrecy as did they, and when he struck it would be suddenly, fiercely, mercilessly—if he struck. They were determined he should not strike, being himself first surprised and crushed, for though in ignorance of what he could bring against them their fears were real. Everything, indeed, about the man antagonized them, alarmed them, stirred their hate and filmed their eyes with blood. He must be destroyed.

“And with him the dam,” Sorenson had said. “Both together.” For there was no effort to conceal among themselves their savage intention.

“He'll never come to trial,” Vorse remarked, with a malignant gleam in his blue eyes and a shutting of his thin lips. “An attempted jail delivery by ‘friends’ will fix that. All they will have to do then is to buy him a pine box.”

“If the man had but stayed away!” Judge Gordon exclaimed. Cunning, not force, was his forte; and the measures in prospect at times had oppressed him with dreadful forebodings. He was growing old, feeble, and here when he was entitled to peace he still had to fight for his own.

In accordance with the scheme Burkhardt vanished from San Mateo for a time, ostensibly on business but in fact on a journey across the Mexican line, where he conducted negotiations with a certain “revolucionista” of no particular notoriety as yet, of avaricious character, unscrupulous nature, and with a small following of fellow bandits and a large animosity for Americans. His ambition was to emulate the brilliant Villa. But pickings had been poor of late, no more than that of stealing a few horses from across the border. To Burkhardt, who had heard of him and sought him out, he listened with interest and bargained with zest. Five thousand in gold for fifty men was like pearls from Paradise. And whatever this Yankee's own private purpose, it was a chance for the chieftain to strike secretly and safely at Americans, in addition.

“They will come through in squads after they've slipped across the line,” Burkhardt reported. “They're to pose as laborers.”

“When?” Sorenson asked.

“Along next week. They’re to drop off down along the railroad at different towns and I’ll run them up into the mountains with some grub. Then we’ll assemble them quietly a couple miles off from the dam, where they’ll be handy on the chosen night. Afterwards we’ll slip them back to the railroad, and they fade into Mexico. Weir’s workmen will be drunk and rowing—and will have done the job, eh?” Burkhardt shook with suppressed, evil laughter.

“If they’re drunk, they may join in and help,” Judge Gordon stated, acutely. “A mob full of whiskey will do anything. If they did take a hand, it would round out the case against them perfectly. Very likely next day they, too, would fade, as you put it, Burkhardt; they would want to get out of this part of country as quickly as possible when they realized what had happened. I see no flaw in our plan. Fortunately the three directors who are coming will be gone by the end of next week.”

“What’s that? What directors?” Burkhardt asked.

“They’re to be here on an inspection trip, so they wrote, and will be pleased to hear our complaints in regard to the question of workmen.” Gordon’s tone was ironical. “I wrote them protesting Weir’s discharge of our people, you remember, but that was some time ago.”

“What’s the use of paying attention to the fools now?”

“We must carry out the farce, Burkhardt, for the sake of appearances.”

“I’d like to blow them up along with their dam!” was the scowling rejoinder, “Well, let ’em inspect. Next time they come back there won’t be any.”

“I believe we should arrest Weir before the thing’s pulled off,” Gordon said, meditatively. “It would be surer.”

Sorenson set his heavy jaw.

“No. I want him to see the wreck; I want him to know just what’s happened before he’s haled away; I want him feeling good and sick already when he gets the next jolt.”

“Sure. It’s him or us, as I’ve said from the first; and I’ve always believed in making a clean sweep,” Vorse remarked. “We have the right line this time. First, make his men drunk and sore; then smash the works; then arrest him quick; and last finish him off with a bullet during a pretended jail delivery.”

“There will be elements of danger in the last,” Judge Gordon stated, cautiously.

Vorse smiled and Burkhardt grinned.

“Not so you’ll notice it,” said the latter. “The town won’t know anything about it until afterwards. Just a few good men at night, masked and working fast, and the thing is done.”

“I’ll not feel easy till it’s over.”

“Keep up your nerve, Judge,” Burkhardt grunted. “You used to be as lively as anybody when you were young.”

“I know, I know. But this Weir isn’t going to stand idle. If he ever gets a chance with his gun——”

“He won’t get it,” said Vorse.

“And he’ll not resist the sheriff when Madden arrests him legally,” Sorenson added. “Nothing could be better for us than if he did. He knows that.”

“Still I’ll be glad when next week is past,” the Judge replied, with a sigh.

CHAPTER XIII

THE CURRENT OF EVENTS

Though outwardly the world's face was as calm as ever, though peace seemed to bask on San Mateo and the broad mesa and lofty mountain range, events were rapidly shaping themselves to bring a thunder crash of contending forces. Not Weir, not even the little evil cabal plotting so desperately against him, guessed the scope and power of the passions to be released.

As a vital impulse towards the climax, though an unconscious one on her part so far as the general play of circumstance was concerned, Janet Hosmer informed Ed Sorenson of her determination to break their engagement. This was the same evening she returned from the Johnson ranch, when he called at her telephoned request. He went to her home under the impression that his box of candy and bundle of new magazines had restored him to favor. He was very jaunty, in fact, and bent on persuading her to name an early day for their nuptials.

Imagine his wrath when she explained that she wished to say that she could not marry him, at the same time handing him his ring and the other trinkets he had bestowed upon her.

"Is it because of our little spat last night about the engineer?" he demanded. "I apologized, Janet. I'm sorry still, and I love you above everything else."

"I think not," said she.

"But I do, Janet. Above everything."

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"No, not above yourself and your vices. You deceived me for a long time, but now I know the truth. You aroused my suspicions when you mentioned a Johnson girl; there's only one Johnson girl hereabouts, as I learned; and this noon I visited her and her father. They informed me fully about your conduct towards Mary at Bowenville and your promises to marry her—that,

when you were engaged to me. There are other things I heard to-day. Of affairs with Mexican girls that are shameful.”

“Lies, lies!” was the passionate disclaimer. “Or if I have been flirting a little, and never since my engagement, it’s no more than any fellow does.”

“You can neither excuse nor justify your words and actions towards Mary Johnson not a month ago.”

“They’re liars, I tell you.”

“Will you confront them and say that?”

Taken by surprise Sorenson hesitated, flushed, and then made a gesture of disdain.

“I’ll not, because I’ll not condescend to answer such baseless charges,” he stated. “I thought you had sense enough not to believe every little thing you hear. Certainly I expect you not to believe this, and I know you won’t on consideration. Then we’ll be married. I came here to-night to urge you to marry me soon.”

“I’ll never marry you, and we’re no longer engaged. You’ve acted faithlessly and dishonorably. You’re not the decent man I thought you were.”

“Don’t you still love me, Janet?”

“No. I don’t think I ever loved you; I was loving a man who didn’t exist, an illusion I imagined to be Ed Sorenson, not your real self. If I loved at all, which I now doubt! And you never loved me, though you may think you did and still do. But it’s not so; for no man who really loved a respectable girl could at the same time do what you did. Think of it! While pretending to love me, you were secretly trying to inveigle that poor ignorant girl away from home. You’re not a man; you’re a beast. The shame and disgust and humiliation I suffer at the thought of my position during that time, your effort to hoodwink both Mary Johnson and me, so fills me with anger I can’t talk to you. Go, go! And please don’t even speak to me hereafter, on the street or anywhere else.”

Instead of departing the man grasped her wrist and gave her a venomous look.

“It was this sneak of an engineer, after all, who told you this lie and turned you against me,” he snarled.

“Let me go. Mr. Weir said nothing. It was you yourself who betrayed yourself, or I should not have known as I do, thank heavens. Stop holding my wrist!”

For an instant Sorenson wavered between whether he should obey her command or strike her as his rage prompted. A very devil of passion beating in his breast urged him to show her her place, deal with her as he would like to do and as she deserved—throw her down and drag her by the hair until she crawled forward and clasped his knees in subjection. But the look in her eyes cooled this half-insane, whiskey-inspired desire.

He took his hand off her wrist, picked up his hat.

“You can’t throw me down this way,” he sneered. “You’re going to marry me just the same, whether you think so or not. I have a voice in this engagement, and you can’t break your word and promise to me because it happens to strike your fancy. Not for a single minute!”

“If you were a gentleman and a decent man you wouldn’t say that.”

“I’m not either, by your judgment, so I do say it. I say it again: you’re going to marry me, willingly or unwillingly. Now if after thinking it over, you want to forget all this and go on as before, all right. If not, our engagement still holds just the same. You may release me, but I haven’t released you. Remember that. And keep away from that engineer if you know what’s best for you!”

With a scowl he stalked out of the house, leaving a very angry, very tremulous and very heart-sick girl. The fellow was in truth not a man, she perceived, but a creature so conscienceless and loathsome that she seemed contaminated through and through by his touch, his words, and their previous relations. How grossly he had deceived her as to his real character! What a horrible future as his wife she had escaped! Nor was she yet free, for he promised to make an infinity of trouble.

That day she could do nothing. Her father noting her face asked what was the trouble, and she told him the whole affair.

"I've heard rumors of late about him and was worried," he said. "You did the only thing, of course. Pay no attention to his words; I'll see he doesn't annoy you."

It was three or four days afterwards that she called Weir up at the dam in a desire to hear the voice of a man she knew to be straight and upright.

"I've wondered if a girl is allowed to look at your dam," she said on impulse, when they had chatted for a moment. "Father, who was at your camp to attend an injured man, says you're making famous progress."

"I'd be more than delighted to show you the work. But—I wonder——"

"Don't let what people say disturb you," she replied quickly, divining his thought. "I've arranged all that." A somewhat obscure remark to Weir.

"Then come any time—and often. I hope to be able to conduct you around, the first visit at least. Next week I may not be able to do so as a committee of directors arrive who'll take my time."

"Oh, indeed," Janet answered, politely.

"A manager has to be directed occasionally, or he may run wild," she heard, with his laugh.

"I'll come before they do," she said.

Quite as she had announced she did run up to the canyon and go with Weir over the hillsides and dam, asking questions and displaying a great interest in the men and the operation of the machinery. The concrete work was nearing an end. Already tracks were laid for the dump trams that were to carry dirt from steam-shovels to the dam to form its main body.

She perceived the immense labor of the project and the coördinated effort required. The necessity in itself of dragging hither from Bowenville all of the supplies, the material, the huge machines, was overwhelming. The responsibility of combining scientific knowledge and raw industry to an exact result struck her as prodigious. The handling of hundreds of subordinate workmen and assistants of various grades and skill demanded exceptional ability, understanding, will and generalship. Yet these things the man at her side, Steele Weir, accomplished and supplied; and appeared quite calm and unmoved about it, as if it was all a matter of course.

She glanced at the ground, flushing. The thought of Ed Sorenson, making only a pretense of doing anything useful and because his father was rich doing nothing in reality but waste himself in vicious practices, was in her mind. What must have the engineer believed of her all this while when he knew Sorenson's true nature and infamous record? Did he suppose her a light-headed feather, indifferent to everything except that her husband should be rich? Very likely. There were plenty of girls of that type. He naturally would suppose her one.

And she could say nothing to put herself in a better light and to gain his respect—for that she now desired greatly. She saw him as he was, a big man, a strong man, a man whose respect was to be prized. Beside him she felt herself small and ordinary. That was all right, but she was determined he should not believe her insignificant, shallow, unworthy, mercenary.

While she could not explain matters openly without shaming herself and still lowering herself in his estimation, he being only an acquaintance, yet there were ways of getting at the end. Janet could act adroitly, like most women, when it best served the purpose.

“Do you know, I just learned from friends of yours on Terry Creek that you're a public benefactor as well as an engineer,” she stated, when they paused on the hillside for a last look at the dam.

“I?” he exclaimed.

His eyes came around and found hers fixed on him.

“I happened to stop at the Johnson ranch. They didn't say so, but I know they would be pleased to death if you would go to dinner there some day. They have some fine fat chickens, if you like chicken fried or baked, and they hesitate to ask you only because they're afraid you'll refuse.”

“Fried chicken is my weakness. Of course I'll go; at the first spare chance.”

But all the while Steele Weir's mind was eddying with wonderment. He had colored at mention of the Johnson ranch, as if he had been caught with a hand in a jam pot. And it meant only one thing: she knew of the Bowenville episode. Involuntarily his eyes flashed to her left hand with which she was brushing back the hair under her hat brim. There was no diamond solitaire on its third finger. Surely, something had happened.

“Well, I must be returning home. I just thought I’d give you a tiny hint,” said she. An odd smile rested on her lips as she spoke, for hints may carry multiple suggestions.

“By Jove!” Weir said suddenly.

Man of action though she knew him to be, she never anticipated he would or could act so directly. He reached out and seized her left hand and scanned it significantly. Then he raised his eyes.

“What does this mean?” he asked, tapping the finger with one of his own. “Does this mean——”

It was Janet’s turn to become scarlet. She tried to smile again, but it was a wavering smile that appeared.

“What does what mean?” she fenced.

“That—well, that the ring is off permanently?”

“Oh, yes.”

“And that there’s now a chance for me?”

Janet’s eyes at that popped open very wide indeed. Meanwhile Weir still held to the palm resting in his own.

“You?” she breathed, faintly.

“Me, yes.”

Presently with a gentle movement she drew her hand free. She had been quite dumbfounded, but not so dumbfounded that she did not realize that this new situation had requirements of its own. He appeared absolutely sincere and resolute.

“But I never dreamed of such a thing!” she stammered.

“Nor I—because until now I hadn’t the right. All I ask is that you give me your friendship—and a chance—and—well, we’ll see.”

“There’s no reason why we shouldn’t be friends,” said she. “We are already, aren’t we?”

“Yes—now. I never actually thought so before.”

“Things have changed,” she stated. And her lips closed with a firm pressure as she spoke. “Or I shouldn’t have been here inspecting the dam, should I?” Again the smile flashed upon her face. “You may consider this a preliminary inspection to that of your high and mighty directors, and I assure you my verdict—is that the word?—is favorable. Now I must be going to the car. Father likes his meals on time.”

“And when shall I see you again?”

The note of eagerness in his voice set her heart moving a bit faster. If he carried on his engineering work as he did his friendship, no wonder he got things done.

“Why, when you wish to call, Mr. Weir. Both father and I shall be pleased to have you come any time.”

“I’ll certainly avail myself of the privilege,” said he. “You must really go now?”

With a feeling of exaltation at this new turn of affairs he watched her drive away from camp, a feeling that persisted during the succeeding days.

The three directors arrived. That was Thursday evening; and Friday and Saturday were devoted to a discussion of construction plans, inspection of the works, analysis of costs and so on. Weir found the men what he expected: quick to comprehend facts, incisive of mind, and though of course not engineers yet able to measure results; while they on their part were appreciative of the exceptional progress made and of his thorough command of the project. They knew the first hour that the right manager was in charge at last.

Saturday afternoon Sorenson and Judge Gordon called at headquarters, by appointment, to discuss the grievance held locally against the company. Weir was present at the meeting.

“As to whether the Mexican workmen who were discharged were actually giving a full return in work for the wages, as you maintain, gentlemen,” said Mr. Pollock, one of the directors and a corporation lawyer from New York, in reply to the visitors’ statement, “that is a question not of opinion but of fact.”

“Fact, yes,” Judge Gordon argued. “Fact supported by the evidence of the three hundred workmen against that of a single man, your manager, who had just come.”

“Are not your three hundred men prejudiced witnesses?” the New Yorker inquired, a slight smile upon his thin face.

“No more than is Mr. Weir.”

“But Mr. Weir is the manager and consequently has the power of decision in such matters.”

“Not to the extent of revoking unfairly your promise, given orally, to be sure, but still given, to employ local labor.” Sorenson was the speaker and his heavy face wore an expression of ill-disguised contempt.

“Agreed. Local labor was to be hired,” said Pollock. “But our company isn’t a philanthropic institution; it’s run on strictly business principles. Any agreement we made implied that local workmen should give exactly what other workmen would give in work.”

“They did so,” Judge Gordon affirmed.

“There was no trouble until this man came,” Sorenson remarked. “I suppose he felt that he had to show his authority.”

“Ah, but there was if not trouble at any rate dissatisfaction on our part,” Pollock stated, tapping a finger on the table. “Construction wasn’t progressing as we knew it should, which was the very reason for getting a new manager, one who could speed it up. But as I said, it all comes down to a question of fact. You gentlemen offer your workmen’s avowals of industry to support your claim; Mr. Weir, on the other hand, gives us some definite records to back up his side. Here they are for the last week the workmen from San Mateo and neighborhood worked—his first week here; and for the succeeding weeks under the men shipped in; in material used, in cubic yards of concrete construction, and in percentage of work finished. Examine them if you please. They show daily and weekly results to be just a trifle less than double for the corresponding time the imported workmen have been here. In other words, the new men have, while shortening the time of completion, given twice as much work for exactly the same wage paid your Mexicans. In other words, too, your local laborers cancelled our agreement by their own incompetence.”

“Your manager could easily have doctored those records,” Sorenson stated, coldly.

“You scarcely mean that, sir,” Pollock instantly replied icily, his amiability vanishing.

“Come, Judge, we may as well go, I think. We’re appealing to a prejudiced court.” And Sorenson arose.

“Our decision to view the matter like Mr. Weir is because his position is sustained by these facts, not because we’re prejudiced, as you insinuate. But I may add that it would not be strange if we were prejudiced, as we’ve become convinced that you gentlemen haven’t been sincere in your attitude towards our company and if anything are strongly hostile. Any one may be deceived for a time, and we were, but not permanently. You would have done much better to have recognized that we have a perfect right to build this project on land that we bought and with water that we acquired. For it will be built in any case and in spite of such local opposition as may be made.” Pollock flicked the ash from his cigar with a careful finger. “That is a mere piece of information or a declaration of war, whichever way you wish to take it.”

“I told you we were wasting our time coming here,” the cattleman said to his companion.

“Good day, gentlemen,” said Judge Gordon, politely.

And the pair went out to Sorenson’s machine.

Shortly after, the two other directors left to catch a train at Bowenville, Pollock planning to stay with Weir to formulate a report during the next day or two for presentation to the entire directorate at its next meeting. Sorenson caught a glimpse of the car whirling through town, with Weir at the wheel, who with Pollock accompanied the departing men that certain unsettled points might be discussed up to the last moment.

As Weir and Pollock were returning, the latter eyed the engineer and laughed.

“You’ve evidently brushed these fellows’, Sorenson’s and Gordon’s, fur the wrong way to please them. But they’ll probably leave us alone from now on.”

“They’ll not leave me alone.”

“Eh? How’s that?”

“Well, I have, as it happens, a little trouble with them on my own hook. A private matter antedating the building of the dam. They’re after me. I had to put a piece of lead into a fellow who tried to kill me from the dark one night. I speak of it in case you should be told and wonder; otherwise I should not have mentioned the thing. I’m not popular in San Mateo, in consequence.”

“Ah, I had heard nothing of that. It interests me. You were not touched.”

“My hat, that was all.”

“Very interesting, very interesting, indeed,” was Pollock’s only comment. But if his tone was casual, his eyes were busy in sidelong study of the engineer, making a new appraisal and drawing fresh conclusions.

Meanwhile several knots were being tied in the web of circumstance. Sorenson took his telephone and conversed briefly with Vorse, passing the information that he had just seen the three directors leaving for the east. So they were out of the way. In reply the saloon-keeper stated that he would start the whisky end of the game that evening. By the morrow, Sunday, when the camp was at rest, the workmen would all be “celebrating.” Burkhardt had reported the last load of “southern cattle” shipped in and driven on the range the previous evening—a seemingly innocent statement that Sorenson understood perfectly. Up in the hills, safely hidden in the timber, lay the fifty men brought from Mexico to make the assault on the dam the next night, men whose instruments of destruction would be fire and dynamite. Twenty-four hours more would bring the moment of action.

Ignorant of all this Ed Sorenson had been forming a little individual scheme that would promote his own affairs, chief of which was to win Janet Hosmer. Drinking heavily ever since his rebuff, he had sunk into a condition of evil determination and recklessness that made him fit for any desperate act. After much meditation fed by whisky, he had evolved a plan that would bring him success. Thereupon he had loaded his car with a quantity of selected stuff and made a mysterious journey at night.

“She’ll learn I meant business,” was his frequent soliloquy.

And while these strands were being knit into the skein Martinez was producing another. Quietly, carefully, persuasively, he had been pursuing his own particular course of eliciting history for use in his “Chronicle,” as he named it,—and for another use concerning which he was as still as death.

That he was successful in obtaining what he had been after was made known to Weir about dusk that evening while he was talking with Pollock in his office. But that he had not been so lucky in covering his tracks was likewise apparent.

The telephone rang. Steele took down the receiver.

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“See Janet Hosmer at once,” Felipe Martinez’ terrified voice came over the wire. “She’ll have it, the paper—the one you want. They’ve learned I got it; they’re after me now. Hammering on the door. If you don’t hurry—”

His words ceased abruptly in an anguished quaver. At the same time Weir heard carried to him the sound of a crash as of a door smashed. Excusing himself hurriedly, Steele Weir seized his holster from a nail and buckled on the belt. Then snatching his hat, he ran outside the building to his car.

“Now, who is he gunning for?” Pollock asked himself aloud, “I rather wish he had invited me along.”

But neither he nor Weir himself, nor any soul in San Mateo, knew that at last the furious torrent of events had burst upon the community. Weir sensed something. But Sorenson brooding on the morrow thought the moment had not yet come. His son was occupied with his own treacherous scheme. Even Vorse and Burkhardt smashing their way into Martinez’ office saw nothing beyond the immediate necessity. Yet the flood was bearing down on all.

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CHAPTER XIV

OLD SAUREZ' DEPOSITION

In order to understand why Vorse and Burkhardt were attacking Martinez' office it is necessary to trace the lawyer's movements and the incidents which precipitated that act. Martinez had, as stated, not been idle. Following the clue obtained from the woman who had worked in the elder Weir's household, he visited the old Mexican named as having been used as roustabout by Vorse in early days. This was old Saurez, whom he knew. The wrinkled old fellow seldom came to town now, spending most of the time sitting against the sunny side of his son's house on Pina Creek, twenty miles south, where he lived.

Martinez in the ten days that had elapsed since informing Weir he had learned of Saurez' possible knowledge of the past had proceeded to make himself agreeable to the gray-headed old man. He had explained his "history." He exercised all the arts of graciousness and flattery. Beginning at the present he worked back through the past to the killing of Jim Dent and the flight of Joseph Weir, extracting tales of early fights, raids, accidents, big storms, violent deaths and killings, making elaborate notes, winning the narrator's confidence and gradually drawing forth the facts he really sought.

Out of all the rambling talk and vague accounts of the Dent and Weir affair Martinez was able to piece together the fragments in a clear statement. This was that Saurez had seen Weir and Dent in Vorse's saloon. The pair had gambled for a time with Vorse, Burkhardt (at that time sheriff), Sorenson and Judge Gordon. After losing for a time Weir refused to continue in the poker game, although he was drunk. Dent played on notwithstanding Weir's urgency to desist; he had already lost all his money and began staking his cattle and finally his ranch. At this stage Weir had gone to sleep at another table, with his head on his arms. Vorse had locked the front door to keep out visitors during the big game. But the back door remained open for air.

Saurez had busied himself cleaning the bar. All at once he saw the players spring up in their game, Dent talking angrily about cheating, marked cards and so on. Then the guns came out when he pointed at a card that was marked—for it had been marked with pinpricks as Saurez saw later on examining the deck, which Dent had perceived in spite of the whisky in him. And Sorenson and Vorse had both shot him where he stood. Yes, shootings were not uncommon. Every one but he, Saurez, had likely forgotten all about the matter. That was long ago.

Afterwards Vorse had sent the Mexican away for something or other, with an injunction to keep his mouth closed. As said, speaking of it now made no difference, though he expected Martinez to keep his promise to publish none of the stories while he was still alive; that was agreed. When the Mexican had left the saloon Weir was yet sleeping, having only raised his head at the pistol shots to stare drunkenly and then relapse. What occurred afterwards Saurez did not know. Weir left the country. Dent was buried, the story being told that he had committed suicide. Every one believed it: had he not lost his ranch at poker? That was the end of the business. Other affairs happened and it was forgotten.

On this Saturday Martinez had persuaded Saurez to accompany him to San Mateo. It would be necessary to sign the stories, he explained lightly, to give them proper weight and in order that when the book was published after Saurez' death they would be seen to be true accounts, with Saurez' picture that a photographer would make appearing in the middle. He, Saurez, would be famous, and his sons and grandsons would have copies of the book in their houses to show visitors and the priest. Ah, it would be well to have the priest witness Saurez' signature, then sceptical people would know indeed that the stories were Saurez' own accounts. So on and so on.

The matter required infinite precautions, patience, skill on the lawyer's part. He had prepared two or three dozen depositions of events, as a husk for the real kernel. With Saurez in his office at last he telephoned the priest to call at once and unostentatiously caught on the street four other Mexicans of the better class, bringing them in. When the priest arrived he closed the door and explained his desire they should act as witnesses to Saurez' statements. He had already solicited the *padre's* advice as to the history; the others all had heard of it; he gave them a number of the most harmless depositions to read; and set Saurez to work making his mark on the rest of the papers.

During the reading and the accompanying lively discussion of the witnesses, he had them pause to witness Saurez' mark with their own names in the places provided. About the tenth deposition when their attention was confused and flagging he slipped the account concerning Weir and Dent,¹³⁸ a many-paged attestation, upon the table, so folded that nothing but the signing space was visible. It was the critical instant for Martinez; his thin body was more nervous than ever, his eyes brighter and more restless. But at last the ordeal was over.

Saurez' heavy black cross was at the bottom of the important deposition, the priest and the other four men had appended their names, and all that remained to do was for Martinez to fill out the acknowledgment and affix his seal. He whisked the document behind his back and called attention to a humorous episode in a paper one of the men still held, starting a laugh. Then he suggested they rest and opened a bottle of wine, over which the others congratulated Saurez and Martinez and predicted a wonderful fame for the "Chronicle." Finally the lawyer perceived, as he said, that Saurez was weary. Anyway, it was supper-time. The remaining papers could be signed another day.

The witnesses departed, much pleased with the affair.

"Walk up and down outside for a little time while I straighten the sheets, then we'll go eat and afterwards I'll drive you home to bed," the attorney said. "The fresh air will give you an appetite. Behold, you're already becoming a famous man! I shall preserve these documents safely as they are tremendously important to our town, our state, our country!" And a grandiloquent gesture accompanied the words. "Come back in a little while, my friend, then we'll see how much food you can hide away."

Saurez much gratified at these words and at everything went out slowly, for he was troubled by rheumatism. The instant his back disappeared Martinez sprang to the table, swiftly filled out the acknowledgment of the old man's signature to the Weir document, clapped the page under the seal and pressed home the stamp. Then pushing the folded statement into an envelope and that into his pocket, he leaned back with a sigh of exhaustion. The thing was accomplished at last, but the strain had been great. Weir's command to secure evidence had been obeyed. Only the promise to await Saurez' death, troubled Martinez, and with a convenient sophistry he decided that an

agreement not to print the narrative in a book did not extend to using it in court. Weir would be delighted—it was a famous coup.

How long Martinez sat reveling in this well-earned satisfaction he was unaware, until with a start he glanced at his watch. Three-quarters of an hour had passed. He went out to look for Saurez. But he was not in sight and though several persons had seen him they could not say where he had gone. Martinez went again into his office. When another half-hour had drifted by he decided the old man had encountered friends and either caught a ride home or gone with one to supper. So Martinez proceeded to his own meal.

Yet he was pervaded by an unaccountable uneasiness. The sun had set in a bank of clouds and night was not far off. He made another search for the old Mexican, inquiring here and there, until he was informed by one that he had seen Saurez in Vorse's saloon talking with Vorse and sipping a glass of brandy. That was half an hour before. A chill of fear spread over the lawyer's skin.

Determined, however, to learn the worst, he stole to the saloon and peered over the slatted door. The Mexican bar-keeper was wiping a glass; Vorse was not in sight; and—ha! there was Saurez himself drowsing by a table. Martinez slipped in and made his way to the rear.

“Come; time to go home,” he said softly, giving the old Mexican's shoulder a shake. This did not arouse the sleeper, so he added force to his hand, at which the other sagged forward limply.

Martinez jumped back. Next he stood quite still, staring. Then he approached and lifting the drooping head, gazed at the wrinkled face and glazed eyes.

“Miguel, come here!” he exclaimed, anxiously. “Saurez is dead.”

“Dead!” The bar-keeper ran to the spot, eyes large with alarm and excitement. “Dios, I thought him asleep! See, there is the glass in which I gave him brandy at Señor Vorse's order. The old one said he had come in to pay a little visit to his old employer and have a chat. They talked for some time.”

“Was Vorse asking him questions?”

“Yes. I think Saurez was telling him how he happened to be in town. I paid little attention to them, however. After a while I glanced up and saw Vorse standing by him. They were not talking. Then Vorse came away and said the old man had fallen asleep, and he went out to supper.”

Martinez again lifted the head and darted glances over the dead man's breast. There were no wounds, but on the shriveled brown throat he saw what might have been a thumb-mark. He could not be sure, yet that was his guess.

“He was an old man,” Miguel remarked.

“Yes. You should notify his son and also the undertaker, so the body can be taken care of. I'll telephone the latter too when I reach my office.”

This Martinez did, informing Saurez's family that the old man had died while apparently asleep at Vorse's, and expressed his sympathy and sorrow.

One feature of the case he instantly perceived; he was released from any obligation to keep silent regarding the old man's declaration. Fortunate was he to have obtained it before Vorse had got wind of his purpose. At the thought of Vorse he arose and locked both front and back doors of the building, pulled down the window shades and turned out the light.

It was almost dark by now. In the darkness he felt safer. Any one passing would suppose him away. Perhaps he should spend the night elsewhere—at the dam, for instance. Again the same shudder shook his frame that he had experienced on seeing the mark on Saurez' throat. Vorse had killed the old Mexican, of that he was convinced. With his tongue made garrulous by brandy and by the presence of his old employer the old man had doubtless related everything that occurred between him and Martinez; and the vulture-like, bald-headed saloon-keeper, recognizing that he had been unconsciously betrayed had immediately acted to close this witness' lips forever against a second utterance.

Martinez himself was in danger. The perspiration dampened his face as he realized that as far as he was concerned the die was cast. He must fling in his fortunes with Weir to the utmost. He would first stand in defense on his right as a lawyer to secure evidence for a client, but if this failed—and what rights would Vorse halt for?—he must depend upon the paper. Once they had that, they would speedily put him out of the way as they had done

Saurez. But if they had it not, they would at least hesitate to wreak their vengeance until they could get it into their possession. He must place it in Weir's hands at once, then if questioned refuse to inform them of its whereabouts. Perhaps they would try to seize it some time this night. He stood up, lighted the lamp, saw that all was well in the office and took his hat.

A peremptory knock sounded on the door of the rear room.

"Open up there, Martinez," a voice commanded.

He stole thither, listened.

"Who is it?" he asked.

"Never mind. Open this door or I'll pull it down," came in hoarse tones he recognized as Burkhardt's. The man, or men, outside had chosen the rear to force an entrance if necessary, where there would be no spectators. "Jerk it open quick," Burkhardt continued savagely. "We want you." Then again, "We knew you were there, though you kept the place dark. Move lively before I use this ax."

Never did Martinez' mind work more rapidly. Likewise his eyes darted everywhere in search of the object he needed. Then he glided to a decrepit arm-chair and turning it over stuffed the document in a rent in its padded seat, out of sight underneath. Next he filled his pockets with other papers signed by Saurez. Last, he hastily tore open the little telephone book and ran a forefinger down the H's.

"Doctor Hosmer's, hurry," he exclaimed. "Number F28."

Blows were already sounding on the rear door, but the lock was strong and resisted. Of all the persons he knew Janet Hosmer was the only one he could trust to keep her word. And he dare not wait until Weir could come.

"Is this you, Janet? Martinez talking," he said, when he heard her answer. "Listen. I'm at my office; men are trying to break in to get a paper valuable for Mr. Weir's defense. They must not get it. He's to be arrested and tried for murder of the man he killed. You and I know he's innocent. This is a life and death matter. The paper is hidden in the old chair. The men are breaking down the door. I'll get them away long enough for you to come and obtain it. Give it to Weir—at once, to-night, immediately. Promise me you will,

promise! My own life probably hangs on it. Return to your house and stay for half an hour and if he hasn't arrived by that time, go to the dam. Thank you, thank you—from my heart! Start now."

The words had tumbled out in an agitated stream, occupying but a few seconds. The panels were splintering in the door now, as the ax smashed a way through. Martinez had no need to look up Weir's number; and it was in a strain of terror and excitement that he waited for the connection.

"See Janet Hosmer at once," he shot at the engineer, followed by the rest of the warning already quoted which had so electrifying an effect upon Steele Weir.

But the words had broken off abruptly. For as the door crashed off its hinges Martinez dropped the telephone receiver and darted for the front entrance, shooting back the bolt and flinging it open. He almost plunged into Vorse who was on guard there.

"Stand still," the man ordered. And Martinez kept the spot as if congealed, for in the saloon-keeper's hand was a revolver with an exceedingly large muzzle.

Burkhardt burst in, ax still in hand, eyes bloodshot with rage. Vorse turned and closed the front door. Then he glanced over the lawyer's table and ran a hand into his inside coat pocket bulging with documents. He glanced through one or two.

"Here's what we're after," said he. "We'll take him to my place where we can quietly settle the matter." His eyes rested on the Mexican with ominous meaning.

"Come along, you snake," Burkhardt growled, seizing their prisoner's arm. "Out the back way—and keep your mouth shut. Don't try to make a break of any kind, if you know what's best for you."

Martinez' yellow skin was almost white.

"But, gentlemen, what does this all mean?" he began, endeavoring to pull back.

"You'll learn soon enough."

“Step right along,” Vorse added. “Take him away, Burkhardt, then I’ll blow out this light.”

With no further word Martinez accompanied his captors into the gloom of the night. They moved in silence through the dark space behind the row of store buildings. The lawyer felt that at least the way was clear for Janet Hosmer.

CHAPTER XV

THE MASK DROPPED

When Janet Hosmer, startled by Felipe Martinez' agitated appeal, turned from the telephone, her single thought was to carry out on the instant his fervid injunction. Something aimed at the engineer and the lawyer was in movement, a plot for the former's arrest and the destruction of evidence necessary to his defense, according to Martinez' quick hurried words; and the Mexican now sought her aid, as she was the only one within reach whom he could trust. That he must call to her showed the desperate nature of the exigency—and he had said lives were at stake!

Haste was the imperative need. As her father was absent, she summoned the Mexican girl from the kitchen, for instinct advised the wisdom of having a companion on this errand; and the two of them, bare-headed and walking fast, set out for the house. Dusk was just thickening to night. No stars were visible. A warm moistness in the air forewarned of rain from the blanket of clouds that had spread at sunset along the peaks. Indeed, a few fine globules of water touched their faces as they came into the main street and hurried along.

Neither girl had observed the automobile, unlighted and moving slowly, that approached the Hosmer house as they emerged. Apparently the driver perceiving them against the lamplight of the doorway and noting their departure thought better of bringing the car to a halt, for he kept the machine in motion and as quietly as possible trailed the pair by glimpses of their figures flitting before an occasional illuminated window. When Janet and her companion turned into the main street where the stores were lighted his task became easier.

The street was peaceful. Janet saw no evidence of the violence or danger indicated by the Mexican lawyer's declaration, but she was too sensible to imagine on that account that peril did not exist. The town was not aware of what had occurred, that was all,—not yet. The chief actors in the conspiracy

were still moving stealthily against their intended victims; they had pounced on Martinez and once they had seized the evidence they sought they would arrest Weir. Afterwards the people, as she guessed the matter, would be aroused to create a strong sentiment against the helpless men. It was an atrocious business.

But as yet things were in a lull—and it was during this pause, brief, critical, that Martinez expected her to act. That much she had grasped from his hurried words. She reached his office and halted to listen. No gleam came from the building, nor from the low structure on either side, and across the way all was dark—dark as it had been that night when the assassin's shot had been fired at Steele Weir. Repressing a shudder, she bade the Mexican girl follow her, groped for the door knob, found it and pushed the door open.

Martinez had spoken of men forcing an entrance, so it must have been at the rear. Inside all was pitchy black.

“Juanita, you have a match in your pocket, haven't you?” she demanded, anxiously.

“Yes, Miss Janet.”

“Strike it, then.”

In the pent stillness of the dark office Janet could hear the Mexican girl fumbling in the pocket of her gingham dress. There came a scratching sound and a tiny flame.

“Be careful of it,” she warned. “Now give it to me. And close the door.”

Janet lighted the smoky lamp resting on the table, next took it up in her hand. A few papers had fallen upon the floor. The room was still strong with fresh cigarette smoke. Martinez could not have been gone more than five minutes.

And in another five minutes' time too Martinez' captors might be back again!

Holding the lamp aloft she peered about for an old chair, her heart beating rapidly, her lips compressed. But all the chairs, the three or four in the room, were old. Her eyes encountered the Mexican girl staring open-mouthed and scared.

“Take the lamp and keep by me,” Janet ordered. “Don’t upset it. What are you shaking for, you ninny?”

“I can’t help it—and you’re so white,” the other whimpered.

“Never you mind me; do as I say.”

Janet swiftly went from one chair to another, turning them about, upside down, all ways. No paper was hidden in or under any one of them, or indeed was there space capable of holding a document. At last she gave up, gazing about in dismay, dread, tears of vexation and anxiety almost rising to her lids. Only one conclusion was to be drawn: the men who had seized the lawyer had found the paper in spite of his precaution.

She examined the chairs a second time feverishly, for time was flying.

“I can’t find it, Juanita, the paper he telephoned me to come and get,” she exclaimed.

“Maybe it’s in there where he sleeps.” And the Mexican girl pointed at the inner door standing barely ajar.

“We’ll see.”

Janet led the way within. There was Martinez’ living- and sleeping-room. The furnishings comprised a bed, an old scratched bureau, a stand with wash-bowl, a red and black Navajo blanket on the floor, a trunk, a stool and a dilapidated stuffed chair—just such a chair as a paper could be hidden in. That into this room the lawyer’s assailants had burst their way was apparent from the splintered door hanging from one hinge at the rear.

Beckoning Juanita to bring the lamp, Janet ran to the arm-chair.

“Ah, here it is!” she cried, when she had turned the piece of furniture over and inserted her hand in the rent. “It wasn’t found, after all! Come away now.”

Relief and exultation replaced her depression of the moment before. She had succeeded; she had helped the lawyer outwit his enemies; she must now return home to await Steele Weir’s arrival, or if he failed in that then go to the dam.

In the outer room she bade the Mexican girl place the lamp on the table once more and blow it out. This was done. They groped forward to the door.

“Follow me out quietly, Juanita,” Janet said. “Only Mr. Martinez knows we’ve been here, and Mr. Weir, the engineer. See, I’m trusting you. This is a very important paper for Mr. Weir, and other men are trying to keep it out of his hands. So you must say nothing to any one about our being here.”

Juanita assented in a whisper. Janet thereupon opened the door and the pair stepped forth. A faint hissing sound directly before them startled both. But the American girl immediately recognized it for what it was, the faint murmur of an automobile engine.

She quietly closed the office door, caught her companion’s arm to lead her away.

“Don’t talk,” she whispered in her ear.

At the same instant the beam of an electric hand torch flashed in their eyes, blinding them. Then as quickly the light was extinguished and a heavy blanket was flung over Janet’s head. Her cry was choked off, but not that of the Mexican girl who had been struck by the corner of the cloth and who heard her mistress struggling in the arms of the man who had seized her. The sound of the struggle moved towards the car and then Juanita, paralyzed by fright, was stunned by a sudden roar of the exhaust, a grind of gears, and a rush in the darkness. The automobile had gone, carrying off Janet Hosmer a muffled prisoner. Juanita regaining use of her legs fled for Doctor Hosmer’s unmindful of the mist against her face.

Janet’s sensation had been that of strangulation and terror. In the thick folds of the blanket, held and lifted by strong arms, all she could offer in the way of resistance was futile kicks. She had been jammed into the automobile seat and firmly kept there by an embrace while the car was being started, which did not relax as the machine gathered speed. For some minutes this lasted, while she strained painfully for breath, and then she perceived the car was stopping.

Her terror increased. What now would happen? These men after overpowering Felipe Martinez had abducted her in their determination to possess themselves of the paper. Finding it in her hand—for she still clutched it—what then? Would they kill her?

The car was now completely at rest. The arm was withdrawn from about her; hands gripped her hands and forced them together; a handkerchief was

tightly knotted about her wrists. Afterwards her ankles were bound by a strap. Then the blanket was lifted from her form and head and she gasped in again pure night air.

“Here’s a gag,” said the man at her side. “Keep quiet and I’ll not use it; if you open your mouth to make a sound, I shall. It’s up to you.” And with the hoarse threat she caught the heavy sickening odor of whiskey on the speaker’s breath.

“You, Ed Sorenson! You’ve dared to do this!” she exclaimed, fear vanishing in anger.

“Yes, sweetheart,” came with a mocking accent.

“Untie me this minute and let me out!”

“Oh, no. You’ve got the wrong line on this little game. We’re going for a ride, just you and me, as lovers should.”

Janet began to think fast.

“How did you know I was in Mr. Martinez’ office?” she demanded.

“Because I saw you go in, little one. I was just pulling up at your door to coax you out when I saw you and the Mexican wench appear. So I followed along. Saved me the bother of telling you your father had been hurt in an accident. He’s chasing off somewhere thirty miles from town on a ‘false alarm’ call to attend a dying man. Sorry I had to use the blanket; sorry I have to keep your naughty little hands and feet tied up. But it’s the only way. After we’re married, you’ll forget all about it in loving me.”

So this was the face of the matter. Not the paper she gripped, but she herself was his object. His abduction of her had nothing to do with Martinez’ affair; he knew nothing of the larger plot; and for that reason she experienced a degree of relief.

“I’ll never marry you, be certain of that,” said she, recurring to his statement. “If anything had been needed to settle that point, what you have done now would be enough. You shall pay for this atrocious treatment. Untie my hands.”

“Oh, no. We’re starting on.”

“Your father as well as mine shall know of this.”

“I think not, dearie. We’re going up into the hills where I’ve a nice little cabin fixed up. And we’ll stay there awhile. And then when we come back, you’ll not do any talking. On the contrary, you’ll be anxious to marry me—you’ll be begging me to marry you. Of course! People know we’re engaged, and they’ll know you’ve been away with me for two or three days. Do you think they’ll listen to any story about my carrying you off against your will? They’ll wink when they hear it. Yes, you’ll be ready to marry me all right, all right, when we come back to San Mateo.”

Janet’s blood ran cold at this heartless, black plan to ensnare her into marriage.

“Ed, you would never do a thing like that,” she pleaded. “You’re just trying to scare me with a joke. Be a good fellow and untie my hands and take me home.”

“No joke about this; straight business. I told you you should marry me——”

“You’re drunk or mad!” she burst out, terrified.

“Neither; perfectly calm. But I’m not the fellow to be tossed over at a whim. I’m holding you to your word, that’s all. You’ll change your mind back as it was by to-morrow; you’ll be crazy to have me as a husband then. I won’t have to tie your hands and feet to keep you at my side when we come riding home to go to the minister’s. Now we’ve had our little talk and understand each other; and it’s beginning to drizzle. Time to start for our little cabin. The less fuss you make, the pleasanter it will be for both of us.”

He set the gears and the car started forward once more. A sensation of being under the paws of a beast, odious and fetid, savage and pitiless, overwhelmed her. That this was no trick of a moment but a calculated scheme to abase and possess her she now realized with a sort of dull horror. And on top of all he was, despite his denial, partly drunk.

Through the terror of her situation two thoughts now continued to course like fiery threads—one a hope, one a purpose. The former rested on Juanita, whom in his inflamed ferocity of intention, the man seemed to have forgotten—on Juanita and Steele Weir, “Cold Steel” Weir; and this failing, there remained the latter, a set idea to kill herself before this brute at her side worked his will. Somehow she could and would kill herself. Somehow

she would find the means to free her hands and the instrument to pierce her heart.

Sorenson had switched on his lights. He drove the car through the damp darkness at headlong speed along the trail that leaped from the gloom to meet them and vanished behind. At the end of a quarter of an hour he swung into a canyon; and Janet perceived they were ascending Terry Creek. He stopped the car anew.

“I’ll just take no chances with you,” he exclaimed. “We have to pass your friends, the Johnsons, you know. Had to take my stuff up here in the middle of the night—up one night and back the next—and mighty still too, so ^{that} they wouldn’t suspicion I was fixing a little bower for you.”

He bound a cloth over her mouth and again flung the blanket over her head. Janet struggled fiercely for a moment, but finally sank back choking and half in a faint. She was barely conscious of the car’s climbing again. Though when passing the ranch house the man drove with every care for silence, she was not aware of the fact. Her breath, mind, soul, were stifled. She seemed transfixed in a hideous nightmare.

At length her lips and head were released. But her hands and feet were numb. Still feeling as if she were in some dreadful dream she saw the beam of the headlights picking out the winding trail, flashing on trees by the wayside, shining on wet rocks, heard the chatter of the creek over stones and the labor of the engine.

The road was less plain, a mere track now, and steeper. They were climbing, climbing up the mountain side, up into the heavier timber, up into one of the “parks” among the peaks. Johnson’s ranch was miles behind and far below. Occasionally billows of fog swathed them in wet folds that sent a chill to Janet’s bones.

Sorenson held his watch down to the driver’s light.

“Ten o’clock; we’re making good time. Must give the engine a drink—and take one myself.”

He descended to the creek with a bucket, bringing back water to fill the steaming radiator. Afterwards, standing in the light of the car’s lamps, he tilted a flask to his lips and drank deep.

“Not far now; three or four miles. But it’s slow going. Have to make it on ‘low’,” said he, swinging himself up into his place.

Janet held her face turned away. She was thinking of Juanita and Steele Weir. Had the girl gone home again? Or, terrified, had she run to her own home and said nothing? Had the engineer come and waited and learning nothing at last returned to the dam? Despair filled her breast. Even should the Mexican girl have apprised him of the kidnapping, how should he know where to follow? And in the solitude of the wet dark mountains all about her hope died.

She began desperately to tug against the handkerchief binding her wrists.

Suddenly the going became easier and she felt rather than saw that the trees had thinned. A flash of the car lamps at a curve in the trail showed a great glistening wall of rock towering overhead, then this was passed and the way appeared to lead into a grassy open space. A dark shape beside the road loomed into view—a cabin by a clump of pine trees. Sorenson brought the car to a stop a few yards from the house.

“Here at last,” he announced, springing down.

He unstrapped her feet, bade her get out.

“I make a last appeal to your decency and manhood—if you have either,” she said, sitting motionless.

“Rot,” he answered. Half dragging her, half lifting her, he removed her from the machine. Slipping a hand within her arm he led her inside the log house.

“Sit there,” he ordered.

Janet dropped upon the seat, a rude plank bench against the wall farthest from the door. Indeed, fatigue and the numbness of her limbs rendered her incapable of standing.

“When I’ve touched off this fire and set out some grub, then I’ll untie your hands,” he continued. “A snug little cabin, eh? Just the place for us, what? See all the stuff I’ve brought up here to make you warm and happy and comfortable. Regular nest. Lot of work on my part, I want to say.”

He touched a match to the wood already laid in the fireplace, flung off his rain coat and stood to warm his hands at the blaze. Lighting a cigarette, he

began placing from a box of supplies plates and food on the table in the middle of the room, but paused to reproduce his flask. With a sardonic grin he lifted the bottle, bowed to Janet and drank the liquor neat. When he had finished, he turned the bottle upside down to show it was empty, then tossed it into a corner. Again he fixed his drunken, mocking smile upon her.

“Can’t preach to me about booze here, can you, honey?” he said. “Ought to take a swallow yourself; warm you up. I have plenty. Guess I better untie your hands now.” He advanced towards her, swaying slightly. “You’re going to love me from this time on, ain’t you, girlie?” He untied the handkerchief and dropped it at his feet. “No nonsense now about trying to get away; I’ll rope you for good if you try to start anything. Hello, what’s that?”

“No; give it to me!” she cried, in alarm as he pulled the folded sheets of paper from her stiffened fingers.

“Something I ought to see, maybe.” Then he added harshly, “Sit down, if you don’t care to have me teach you a thing or two. I’m master here.”

He stepped to the table and drawing a box beside him settled upon it, pulled the candle-stick nearer and began to read the document. Janet glanced swiftly about the room for a weapon. Escape past him she could not, for by a single spring he could bar the way; but could she lay hand on a stick of wood she might fight her way out. None was nearer than the fire, and again he could interpose.

He read on and on, with a darkening brow and an evil glint showing in his eyes. Page by page he perused Saurez’ deposition until he reached the end. Then he got to his feet, shaking the paper at her head.

“You were in on this,” he snarled. “This is what you were in Martinez’ office to get. You’re wise to this cursed scheme to help Weir make my father and Vorse and Burkhardt and Judge Gordon out a gang of swindlers. So they trimmed *his* father of something—at least I fancy they did, and I hope to God they did, the coward! And you were in with them! You’re not quite the little white angel you’d have people believe, are you? Not quite so innocent and simple as you’ve made me think, anyway. Well, I’ll square all that. That slippery snake, Martinez, I’ll twist his neck the minute I get back

to town. I'll bet a thousand it was framed up to use this when Weir was arrested—but he'll never use it now!"

He glared at the girl with a face distorted by rage.

"We'll just burn it here and now," he continued. "Then we'll be sure it won't be used."

Janet gripped her hands tightly, while her lips opened to utter a wild protest at this desecration. What the document contained she did not yet know, except that it was evidence that fixed upon the men named guilt for some past deed in which Weir had suffered and which would bring them to account. But something more than protest was needed, she saw in a flash, to deflect the man from his purpose and save the sheets from the flame.

She shut her lips for an instant to choke the cry, then said with an assumption of unconcern:

"Go ahead. I didn't want your father to see it, in any case."

The paper had almost reached the candle, but the hand that held it paused. Sorenson stared at it, and from it to her. At last a malignant curl of his lips uncovered his teeth.

"Oh, you didn't want him to see it," he sneered. "If that's so, I'll just save it. He'll be interested in reading what your friends have prepared to destroy his good name and reputation."

He folded the document and slipped it into his inner coat pocket. Then he walked towards her. At the look on his face Janet sprang to her feet.

"I've changed my mind about the marriage matter, just as you did," he said. "I agree with you now; there won't be any marriage. But I'll have your arms about my neck just the same."

And he seized her wrist.

"Let me go, let—" The words ceased on her lips.

Her eyes were riveted on the cabin door; she scarcely felt the man's loathsome touch on her arm. How had the door come unlatched? And was it only the wind that slowly moved it open?

CHAPTER XVI

WEIR TAKES UP THE HUNT

On leaving the construction camp Steele Weir had whirled away down the river road for San Mateo with a feeling both of satisfaction and of enmity—satisfaction at Martinez' success in at last having secured the evidence ardently desired, as betokened by his words; enmity at whoever was laying violent hands on the lawyer. Unfortunately when yet half a mile from town his car suffered one of the common misadventures of automobiles:—ping-g-g! sang a tire in a shrill dying whine.

Weir did not stop to change and inflate the tube, but pushed ahead on his mission though at slackened speed. He brought his car to rest before Doctor Hosmer's house. The windows were lighted, yet at his knock there was no response; so brushing conventionalities aside he entered and called Janet's name. Only echoes and a following silence greeted his call.

Doubtful whether to remain awaiting the girl's return or go at once to Martinez' office in the hope of still finding her, he finally chose the latter course leaving his car where it stood and proceeding on foot, as a result of which he passed in the darkness Juanita hurrying home in a fright. A bad choice and valuable time lost, he afterwards discovered. At Martinez' office he stepped inside, called the lawyer by name, called Janet Hosmer, stood for a little while in the black room harkening and thinking, then went forth into the street.

This time chance fell his way. He had but come out when he heard footsteps and two men in low-toned talk as they approached; and he withdrew further into the concealing darkness of the street. The new visitors, striking matches at the entrance, walked inside. The men were Vorse and Burkhardt.

"If you had been here, we could have nailed him at once as soon as I had Saurez' story," the former said. "Martinez had half an hour and more to get the thing into somebody else's hands."

“Well, I was looking after those men up in the hills,” was the growled answer. “Had to feed ’em and have ’em ready for to-morrow night. If we don’t find the document here, we’ll screw its hiding-place out of that dirty greaser if we have to use a cord on his head Indian-fashion. Anyway it ought to be about this office. Martinez didn’t know you had learned about it from Saurez. He’d never let go a paper like that until he had to.”

“I think you’re right there,” Vorse said. “He’d want to sell it for all it was worth. Better shut and lock the door while we’re searching. Don’t care to have any of his friends sticking in their heads while we’re here.”

Burkhardt, who had lighted the lamp, now closed the door, cutting off so far as Steele Weir was concerned both a view of the men and their conversation. However he had learned if not enough, at least considerable. They had not yet gained possession of the paper. They knew nothing of Janet’s part in the affair. They had so far not succeeded in unlocking Martinez’ lips, but undoubtedly they would be able to wring from the lawyer when they went about it the real truth regarding the document. Very likely Martinez had anticipated that, had known his powers were such as not to be greatly able to resist physical torture and had planned to get the evidence into the engineer’s hands before he should be subjected to pains of the flesh. That would be remembered to his credit, along with all the rest. Where Martinez was being held prisoner was the additional information Weir should have liked to glean before the door was shut.

Postponing for the time the hunt along this line, he returned to the Hosmer dwelling. In answer to his knock and call on this visit the trembling Juanita appeared, immediately pouring forth a recital of the happenings at the office as affecting her mistress.

“You’ve told no one else?” he demanded.

“No, señor. She said I was to say nothing of her being there for the paper, and I was waiting for her father to come. But she informed me Mr. Martinez and you knew she was there, so I’ve told you.”

“And you saw nothing of this man who cast the blanket over her head and seized her?”

“It was dark; we had just come out of the office. But—but the car sounded like Ed Sorenson’s. I’ve heard it start from here many times with the same

loud noise. They had quarreled, Señor Weir, and were no longer engaged.”

“I know. Which way did he drive off?”

“East, down the lower end of the street.”

“Bring a lamp out to my car, so I can fix my tire.”

With the girl holding the light by his side the engineer worked with concentrated energy in stripping the wheel, in inserting a new tube, replacing the tire and pumping it up. The thin drizzle glistened on his face, but for all that it was none the less determined, stern.

“You need not be afraid for yourself; no one but us knows you were there,” he said to her, climbing into his machine. “Nor for Miss Janet, either. I’ll bring her home safely. When Dr. Hosmer returns, tell him everything. Also ask him to await our coming. Be sure and say to him that I’ll bring her home unharmed and that I advise silence in regard to the matter until I have talked with him. You will remain quiet, of course. This isn’t a thing to be gossiped about.”

“No, señor.”

Away the automobile shot under the impulsion of the gas. Minutes, golden minutes, had been wasted in taking up the pursuit because of his going to Martinez’ office and because of the flat tire. Sorenson now would be miles away with his prisoner.

Sweeping out of town with the car’s headlights illuminating the road, Steele Weir blessed the drizzling mist that dampened the dust so as to leave a tire’s imprint. Almost at once he picked up the track, for not more than twenty or twenty-five minutes had elapsed since Sorenson’s flight and not even a horseman had since been over the way.

Though he knew it not, the interval of time had been reduced by the stop made by the first machine, a mile or so out of town, when the abductor removed the blanket from Janet Hosmer’s head to announce his evil scheme. From the main road leading to Bowenville Weir saw the car’s trail turn aside into a mesa track pointing obliquely for Terry Creek canyon; and he suspected that Sorenson was making a long drive northward, skirting the mountain range and working away from the railroad-tapped region.

Once he thought he caught a flash of light far ahead of him, but knew this was an illusion. Through this rainy darkness no car's beam, however powerful, would show half a mile. The mist beat against his face in a steady stream as he rushed forward in the night, his eyes immovable on the wet twin tire-marks stamped on the road, his iron grip on the wheel, his ears filled with the steady hum of the engine. If Sorenson had driven fast, Steele Weir drove faster.

At Terry Creek he plunged down the bank, across the water and up on the other side without a change of gears, rocking and lurching. Once on the smooth trail again the car seemed to stretch itself like a greyhound for the race northward. But on a sudden he brought the automobile to an abrupt halt. The surface of the road was undisturbed; nothing had passed here.

Swinging back again on the way he had come, Weir recrossed the creek and slowly retraced his course. Then with an exclamation of satisfaction he picked up the track where it turned up the canyon trail. But why was the man going to the Johnson ranch? Mystified by this baffling procedure on Sorenson's part, he nevertheless headed up the stream with no lessening of his purpose to overtake the other.

At the ranch house, whose kitchen window was lighted, he stopped and leaped out. Johnson and Mary both answered his thumping knock.

"Is Janet Hosmer here?" he questioned, while his eyes darted about the kitchen. Then he made his own reply, "I see she's not. Ed Sorenson kidnapped her to-night and drove to this canyon. Did you hear a car?"

Mary faced her father.

"You remember I thought I heard one!" she cried. "But the sound was so low I wasn't sure, and when I went to the window I saw nothing. I didn't hear it again. Father said it was just my imagination."

"Where does this road lead?"

"Up into the timber and to a 'park.' Used to be an old wood road. Sheepmen sometimes use it to take their wagons up above; sometimes cattle outfits too while on round-ups."

"Could an auto go ahead on it?"

"Yes, I guess so. By hard driving."

“Then he’s up there.”

Weir ran back to his car, jumped in.

“Let me go with you,” Johnson shouted after him.

“No, I can handle the fellow,” the engineer answered. And again his machine started on. “How long ago was it that you heard him, Mary?” was his parting question.

“’Bout fifteen minutes ago,” she cried.

Fifteen minutes! But the girl’s reckoning might be vague, and “fifteen” minutes be half an hour. At any rate, with the road ascending among the peaks Sorenson’s speed would be greatly diminished. The incline would be against him, the uneven twisting rain-washed trail would require careful driving, the rain would hamper his sight. Yet the fellow he pursued could not be more than three or four miles ahead at most.

On and on Weir pressed. The mist thickened; black wet tree trunks loomed before him like ghosts and sank out of view again; the road wound along the stream among rocks and bushes and over hillocks with all the difficult sinuosity of a serpent’s track; in his ears persisted the chuckling talk of the creek, flowing in darkness except when lighted by his car’s lamps as the machine plunged through a ford, as became more and more frequent with the ascent and the narrowing of the canyon.

Five miles, ten miles, fifteen miles he must have come since leaving the ranch house. His car now was high in the mountain range, running on low gear, the engine working hard in the thin air and against the steep grade. He was not making more than five miles an hour, he judged, at this moment. The radiator was boiling and steaming like a cauldron. But he might be sure that if his travel was slow, Sorenson’s was no better; the road was the same for the pursued as for the pursuer.

At the end of another half hour he came around a ledge of rock, where the creek flowed some fifty feet below and the granite wall allowed just room to pass in a hair-pin turn. There a light gleamed before him like a beacon, a dim gleam of a window. It was perhaps a hundred yards distant. It marked the end of the trail, the end of the search.

Here was Janet Hosmer!

And he had come in time. They could not have been here long, for Sorenson's start had not been sufficient for that; the scoundrel had not yet recovered his breath from his hard drive, so to speak. He probably would imagine himself safe and so be in no haste to consummate his vile plan of enjoying his helpless victim.

Rage that until now had been lying cold and implacable in Steele Weir's breast began to flame in his veins and brain. He drove his car past the rock and off the trail upon an open grassy space, very carefully, very quietly. Next he stopped the engine and put out the lights, then he got out, felt his gun in its holster and gazed ahead for an instant.

A form had passed and repassed before the window—Sorenson's figure, of course. Brute, coward, degenerate he was, and to be dealt with as such. Not only as such, indeed, but as a wretch who had dared to touch Janet Hosmer against her will, to drag her from her home to this lonely spot by violence for his own bestial purposes.

The blood seemed like to burst Steele Weir's heart. This sweet, honest, kind-souled, noble girl! Janet Hosmer, so bright-eyed and pure! She, who had suffered this man's hate to save Martinez' document, who had dared peril to help him, Weir! All the hunger of heart of years, and all the stifled affection, now went out to her. He loved her; the veil was rent from his mind and he realized the fact indisputably—he loved Janet Hosmer. And the great creature of an Ed Sorenson had dared to seize her with brutal hands!

Weir broke into a run. By instinct he kept the trail, though once or twice stumbling and once barely missing a collision with a tree. When he reached the cabin, he dropped to a walk and crept to the window, which was without glass or frame, open to the night. Peering in he perceived Sorenson at the table reading a document, and as he watched he had no need to be told this was the paper that so vitally concerned himself.

At last Sorenson got to his feet, shaking his hand at Janet Hosmer who sat against the cabin wall and beginning to speak. Weir listened for a little. Then he stole along the log house to find the door.

At last his finger touched the latch. He lifted it soundlessly, as silently pushed the door ajar until there was space for him to slip in. This he did.

His mouth was shut hard, his eyes watchful, his right hand was closed about the butt of his revolver still resting in the holster.

Over Sorenson's shoulder he saw Janet Hosmer's face, pale and drawn but with a sudden joy flaming there. If ever gratitude were written on human countenance, it was on hers. Gratitude—and more! Something that sent Steele Weir's blood rushing anew through his body, with hope, with a song, with he knew not what.

Janet suddenly jerked herself free and stepped back, her head held high and proud.

“You’ll never touch me again, you coward. Look behind you,” she exclaimed.

Involuntarily Sorenson turned head on shoulder. The frown still darkened his liquor-flushed face and the sneer yet twisted his lips so that his mustache was drawn back from his teeth. Thus he remained as if changed to stone.

What he saw was the man he most dreaded, with a shadow of a smile on his lips, his figure motionless, his hand ready, like an avenging Nemesis from out of the night. A perceptible shudder shook the fellow. Weir it was—“Cold Steel,” whose counter-stroke against one man already had been swift and deadly, whom nothing checked or turned or terrified, who now for a second time was plucking away the fruit of Sorenson’s efforts, who probably on this occasion would shoot him outright.

For a moment Steele Weir regarded him in silence. But at last he spoke:

“Stand away from that lady, you skunk!”

Sorenson moved hastily aside.

CHAPTER XVII

EARTH'S RETRIBUTION

Steele Weir crossed the cabin to Janet's side.

"You are unhurt?" he asked, his eyes scanning her face anxiously.

"Yes. And, oh, how glad I am you came!" she cried, low. "I knew you would not fail me if you but learned of my plight; but it's wonderful you should be here so soon. I prayed every minute of my ride that Juanita would find and tell you."

"I couldn't come half as fast as I wished." His smile assured and cheered her. Then as his glance fell on her wrists, still red and creased from being bound, he exclaimed, "What's this? Let me see." And he caught and lifted her hands to look.

"He had you tied?" Weir's gaze moved away to Sorenson.

"Yes. Hands and feet."

"All the way? All the long ride?"

"Yes—look out!"

Janet's words, half a gasp, half a shriek, gave warning of Sorenson's movement, though none was needed. While apparently neglecting to watch the other, Weir had kept the man sharp in the corner of his eye. The motion with which his hand darted to his hip and up again was a single lightning-like sweep; and his weapon covered his enemy before the latter's hand so much as got his revolver in grasp.

"Drop it; drop it on the floor!" the engineer ordered. The gun clattered on the rough-hewn logs. "Now put your hands up and turn your back this way." Sorenson obeyed, not without his eyes speaking the disappointed wrath and hatred his tongue dared not utter. "I should have allowed you to make a full draw and then killed you," Steele Weir went on. "That would

have been the simplest way to settle your case. Only I don't like to kill bunglers, even when they deserve it."

He re-sheathed his own gun and strode forward, picking up the one on the floor—a black, ugly-looking automatic. This he dropped into a coat pocket.

"Now face about, you cur," he commanded. "I want a good look at a man—no, I'll not call you a man—at a low-lived imitation of a man who is such a sneaking, dirty beast that all he can do is to trap and tie up a helpless girl. I don't know yet just what I shall do with you, but I know what I ought to do—I ought to choke the miserable life out of you! You're not fit to live. You soil the earth and pollute the air. But you're of the same treacherous, underhanded, scoundrelly breed as your father, same yellow flesh and blood, same crooked mind and heart, same sort of poisonous snake, and since you get it all from him I suppose it can't be helped. Nor changed, except by killing and burying you. One thing is sure, when I'm done you won't be trying any more deals like this. Bah, you slimy reptile, you belong in a cess-pool!"

Under Steele Weir's biting speech Sorenson's face went red and pale by turns. His lips twitched and worked, moving his mustache in little angry lifts, while he breathed with short spasmodic intakes.

"First, you're after Mexican girls," Weir went on mercilessly. "Then Mary Johnson, whom I pulled out of your vile fingers. And now it's—" The engineer's fist arose suddenly above the other's head. "Why, I ought to drop you dead in your tracks for so much as looking at Janet Hosmer! Why don't you fight? Why don't you give me a chance, you cowardly girl-robber? Haven't you a spark of—well, you haven't, I see. I'll just tie you up and later figure out some way to make you suffer for this night's work." And with a gesture of disgust Weir turned away.

It was the moment Sorenson had been waiting for. As the engineer's back came about, exposed in one instant of carelessness, the man struck Weir full force on the neck, sending him staggering. Then Sorenson leaped for the doorway.

Janet screamed. Weir recovered himself and whirled around, whipping forth his revolver and firing two shots. But the bullets only buried themselves in the door slammed shut after the escaping prisoner.

"I myself ought to be shot for this," Steele snapped out.

He ran across the cabin, flung the door open, sprang out. The uselessness of seeking his enemy in the black wet gloom was only too evident, but he would not give up. Gun in hand, he stood listening for sound of fleeing footsteps.

A light hand gripped his arm. Janet had followed him out, was at his side. Barely audible he heard her quick, excited breathing.

"Must you shoot him?" she whispered.

"Why spare him for more deviltry? But I'll not have the chance now."

"I can't bear to think of even his blood being on our hands. Let him go," Janet said.

"He's gone without our permission, I'd say."

"Isn't it just as well? I'm not harmed, and he'll never dare show his face in San Mateo again," she said. "He'll have to stay away; he'll leave for good."

"Not until I see him first. I want that paper."

"Oh, the paper, I forgot it! And it's in his pocket," she cried, in despair.

"Like the fool I was, I forgot it for the moment too," Steele said bitterly. "When I could have had it at once I must go off ranting about his meanness. It was thought of what he had done to you that made me overlook the paper; that set me boiling. Lost my head."

Janet's answer was almost sufficient recompense for even such a serious deprivation as that of the document.

"I'll never forget that you were angry in my behalf," she said, softly. "But perhaps you can gain possession of the paper yet."

Before he could make a reply the sound of a motor engine startled them. Sorenson was in his car, not far off. Weir immediately plunged forward through the darkness in the direction of the noise, uttering a shout for the man to stop or be shot. But after the taste of liberty that he already had had Sorenson was prepared to take further chances; the engine's roar burst into full volume and the car leaped ahead, while its driver sent back a derisive curse to the cabin.

Weir fired again, fired two or three times at the sound. Perhaps Sorenson was crouching safely out of range; at any rate, the bullets did not reach him, for the automobile plunged away. Steele slowly went back to the girl.

“How can he see without lights?” she questioned.

“He can’t see, but he’d rather risk not seeing the road than drawing my fire. There’s a bad place there at the rock; he’d better turn on his lamps if he wants to round that.”

Sensing the danger that threatened Sorenson, both remained unmoving, trying to penetrate the darkness, harkening to the automobile’s retreating murmur. A curiosity, a sort of detached suspense, rooted them to the spot.

“Ah, he’s snapped them on!” Janet said, almost with relief.

The powerful beam of the headlights had suddenly blazed forth. Either feeling that he was safe from Weir’s gun or realizing that he was on the verge of a graver danger, Sorenson had chosen to make the light. He was going at headlong speed; even where they watched, Steele and Janet perceived that,—and only his fear of the peril behind which made him heedless of the difficulties in front could account for that reckless pace.

The light leaped out into the night. Something else too seemed to spring forth within the circle of the glow, dark, sudden, imminent, rushing at the machine. A frantic jerk this way and that of the beam showed the driver’s mad effort to avoid the towering wall of granite. Then a scream rang back to the man and girl before the cabin. Followed instantly a crash, an extinguishment of the light, darkness, silence, and finally a thin quivering flame at the base of the ledge, delicate and blue, like a dancing chimera.

Janet’s hand reached out and closed in Steele Weir’s, and he covered it with his other hand.

“Oh, how terrible!” she gasped. “Did you see? The rock seemed to smite him!”

“Yes.”

“He must be dead.”

“You remain here and I’ll go find out.”

He led her into the cabin and to a stool by the table, where resting her elbows on the board she pressed her hands over her eyes as if to blot out the sight she had just witnessed. After all she had suffered, the climax of this dreadful spectacle left her unnerved, weak, shuddering.

“Don’t stay long,” she whispered. “Come back as quick as you can. This cabin, this whole spot in the mountains, is awful. I can almost feel him hovering over me.”

“You mustn’t permit such thoughts.” He gave her shoulder an encouraging pat. “It will take but a few minutes to see if he’s still alive and then we’ll start home. You’ve been the bravest girl going and will continue to be, I know. Everything is over; nothing can happen to you now.”

Weir went out. He perceived that the wrecked car was fully afire by this time, its flames illuminating the granite ledge and the ground about. Evidently the machine’s fuel tank had been smashed under the impact and the gasoline had escaped, preventing an explosion but fiercely feeding the blaze. He ran towards the place.

At first he did not find Sorenson, so that he supposed him buried beneath the wreckage, but presently he discovered his crumpled form lying jammed between the base of the ledge and a boulder. Weir lifted the limp figure from its resting place and bore it to open ground, where he made an examination of the still form. Clearly Sorenson had been pitched free of the car and crushed against the rock wall. His cap was missing; his coat was ripped up the back and a part of it gone as if caught and held by some obstruction in the car when he had been shot forth; blood and a great bruise marked one cheek; and the way his legs dragged when he was lifted up indicated some serious injury to those members. But the man still breathed.

“Miracles haven’t ceased,” Weir muttered, when he had made sure of the fact. “But his chance is slim at best.”

It would be false to say that the engineer felt compassion at the other’s sudden catastrophe; he experienced none. On the contrary he had a sense of justice fittingly executed, as if, escaping bullets and man’s blows, Sorenson had been felled by a more certain power, by the inevitable consequences of his own deeds and sins, by a wall of evil he himself had raised as much as by a wall of stone.

He searched the man's breast pocket, then hunted for the missing document among the stones and bushes. At last he gave up for the time further seeking, with a conviction that the vital paper was gone for good, destroyed in the fire of the burning car. But for his own over-confidence, his belief he had Sorenson a safe prisoner back there in the cabin, the sheets might be secure in his pocket. Well, it was too late now.

He again lifted the unconscious man in his arms and returned to the log house. Inside he laid him on the rude bed which Sorenson himself had spread with sheets and blankets.

"He's alive?" Janet asked, awed.

"Alive, but badly hurt."

"You'll leave him here?"

"Yes, while I take you away. We could do nothing for him in any case; his injuries are grave and need a doctor's help. The best service we can perform in his behalf is to start your father or some other physician here as quickly as possible. He may live or he may die; that isn't in our hands. He's unconscious and not suffering, and probably will not feel pain for some hours if he does live, so we can go without feeling that we're robbing him of any of his chances of recovery. Your conscience may rest quite easy on that point. Come, we'll start at once. The quicker we reach your father, the quicker he will arrive here."

When they were in his car he wrapped a robe about her against the sharp chill.

"I am cold; my teeth are chattering," she said.

"You've been under a great strain. Just lie back and rest and think of something else than what has happened, if you can," he urged.

"I'll try to."

The lamps blazed out at his touch of the switch and the car began to move. She closed her eyes. She did not wish to see the scene of the smash, with the leaping fire and the horrible pile of crushed metal. Indeed, she drew the robe before her face, where she kept it for some time.

"Are we past the place?" she asked, finally.

“A long way past.”

“Thank heaven! Nothing shall ever drag me up this road again!”

“It will not take us long to reach Johnson’s and be off this trail altogether, for it’s down-hill going all the way.”

“You said nothing about the paper? Did you get it?”

“No; it wasn’t on him. I’ll return for another look, but it fell in the fire, I think, and burned.”

“Do you know what was in it, Mr. Weir?”

“No. But I can guess.”

“I know a little of its contents, from what he said before you entered. It was a statement, something about his father and others doing dishonest acts, I think. He didn’t seem to be quite clear what it was about either, but he spoke of your father and declared he hoped the others had swindled him, which he inferred had happened. I didn’t know your father ever had been in this country. That’s the reason you hate those men, Mr. Sorenson and Mr. Vorse and Mr. Burkhardt; because of some injury they worked your father.”

“That’s the reason. And that too is why they’re trying to get rid of me one way or another. But they didn’t hire the Mexican to attempt to shoot me; Ed Sorenson employed him. Martinez, when you told me the man’s name, telegraphed around the country from Bowenville till he got track of the fellow. He also secured evidence that a white man resembling Ed Sorenson had been seen talking with him at the place he came from. So we can draw our conclusions.”

“Then he hired the man to assassinate you!”

“Looks like it. Because I took Mary Johnson away from him, and from fear. He was afraid you might learn of the matter, I suppose, and decided to get rid of me. He’s a coward at heart, but none the less a criminal by instinct, so he hired another to do what he dared not attempt himself. A crook like his father, but with less nerve.”

Janet was silent while the car wound its way down the creek road, through the misty darkness and among the invisible peaks. The full danger that she had escaped was but now making itself clear to her mind.

“If he would go so far as to try to murder you,” she faltered, “I surely could have expected no pity from him.”

“Now listen to me,” he said. “I’m going to give you a little scolding: you must forget all this business; it just makes you fearful and unhappy. The past is over, and he’s out of your life for good. Look at it that way. Consider the thing as a bad dream, done with and no more important. That’s ‘the right view to take’”—he paused, then added softly—“Janet.”

“How strong-souled you are!” she whispered.

Strong, in truth, he seemed. Ignoring danger he had come swift on Sorenson’s track and rescued her, saved her, kept her clean from her assailant’s infamous brutishness. The one was a knave and a beast; but he, Steele Weir, was a man, clear to see, quick to act, hard towards enemies, gentle to friends. Every particle a man—sure of himself, and fearless, and true-hearted, and firm of soul.

She pressed her hands tight against her breast. He was a man one could love and honor. “Cold Steel” Weir they called him—and, she divined, his love if ever given would be as lasting as hoops of steel.

CHAPTER XVIII

IN THE NIGHT WATCHES

A light still burned in the Johnson ranch house, late as was the hour, when the car swung round a copse of aspens and brought it in view. Johnson himself came forth at sound of the automobile, with a sleepy Mary following.

"I wouldn't go to bed, of course, knowing you were to come back," said he. But his true reason appeared in his added words, "I was just about ready to saddle a horse and head up there myself. Mighty glad to see you safe back, Miss Hosmer. Mary has had some coffee on the fire ever since Weir went along, knowing you'd be cold and worn out."

"Just the thing!" Steele exclaimed. "We're both chilled. Come, Janet." And he stepped from the machine.

Without demur the girl placed her hand in the one he offered and descended stiffly. Mary ran back into the house to attend to the coffee-pot and the visitors presently were seated at the kitchen table at places already laid, with cups of steaming strong coffee and plates of food before them.

Janet contented herself with the hot, reviving drink, but Weir ate heartily as well. Coming and going, forty miles of driving a rough mountain road had given him a laborer's appetite.

"It's late, one o'clock," Mary said to Janet. "Why don't you stay with us the rest of the night? I wish you would."

Janet put up an arm and drew down the face of the girl at her side and kissed her.

"You're a good friend, Mary, to be so thoughtful," she answered. "But father will be terribly anxious every minute I'm away. I must reach home as quickly as possible to ease his mind."

Of Sorenson nothing had been spoken, though a repressed curiosity on the part of the ranchman and his daughter had been evident from the instant of Weir's and Janet's return.

At this point Johnson jerked his head in the direction of the creek.

"What did you do to him, Weir?" he growled.

"Not as much as I intended at first. But he made up for it himself. Ran his car against that granite ledge before the cabin while trying to get away, and smashed himself up badly. I carried him into the hut and left him there; he was alive when we drove off, but he may be dead by now. Bad eggs like him are hard to kill, however. I'll start a doctor up there when I arrive in San Mateo; probably one from Bowenville."

"Father won't attend him now, so long as there's another physician who can, I know," Janet stated.

"I should say not!" Johnson asseverated. "If that young hound Sorenson had his deserts, we'd just leave him there and forget all about him."

"That's where our civilized notions handicap us," Steele Weir said, with a slight smile. "But at that, if he were the only person concerned, I'd do no more than inform a doctor where he was and what had happened to him, and wash my hands of the affair. There are other things, though, to consider. Janet's position, primarily. Her case is similar to that of Mary's awhile ago, and we must prevent talk."

"Yes, of course."

"The worst of the doings of a scoundrel like him that involve innocent people is the talk. There are always some people low enough to ascribe evil to the girl as well as the man in such a circumstance as this. I propose to see that Janet doesn't suffer that. We avoided it in Mary's case and we'll do so in this, though the situation is more difficult. I've been thinking the matter over on the way down and have a plan that will work out, I believe, but it requires your help, Johnson."

"I reckon you know you'll not have to ask me twice for anything," the rancher remarked.

"And we may have to shuffle the facts a bit."

“All right. I’ll do all the lying necessary and never bat an eye.”

“It won’t require much decorating, the story. But you will have to go up and get him, starting at once.” Then he concluded, “I hate to have to ask you to make that drive late at night and in the darkness.”

“Never mind that. Glad to do it, if that’s what you want.”

“Take your wagon and fill the box with hay and bring him down. By coming back slowly he won’t be jarred, and he has to be brought out anyway. If he’s dead, well, bring his body just the same. A doctor should be easily at your house by the time you arrive; and your story is that a sheepherder found him lying by his wrecked car, carried him into the cabin and then came down and told you of the accident, on which you went and brought him in, not knowing, of course, in the dark who he was or what he was doing up there or how the smash-up had occurred. You might suggest that he was camping there by himself to fish, and stop at that.”

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Johnson nodded.

“I’ll say just enough and no more,” he remarked.

“If you start at once, you’ll be there by daylight if not before. That will get you back here by nine or ten o’clock. I don’t want him taken to San Mateo; that would stir up a swarm of inquiries and might even send some of the curious up to the spot. Let the trail get cold, so to speak. People aren’t half as curious about a thing three or four days after it happens as at the moment.”

“I’ve noticed that myself.”

“And another thing, I don’t wish his father to learn of the matter just yet. Under other circumstances he should be the first to know, but I want the news kept from him for a special reason. Besides, it would be better if he found out about it from others and through roundabout channels. His son up there I don’t see doing any talking himself for some time if he does live. When he is able to talk, I believe he’ll decide to keep his mouth shut or just accept the explanation given that he was fishing or something of that kind. When the doctor has looked him over, either he or you will carry him to Bowenville. If we could ship him at once to Gaston, where there’s some sort of a hospital, I suppose, or even to Santa Fé, that would be the thing.

He'd be out of the way; there'd be no talk; there would be no explanations to make except to the doctor."

"Every doctor round these parts probably knows him," Johnson said, "and so would insist on taking him home."

"There's a new one at Bowenville, father says," Janet put in. "A young man, just starting practice. He hasn't been there but a few weeks and may not know Ed."

"He's the man for us!" Weir declared. "We'll send for him. Now we must be going."

Steele arose from the table and stretched his shoulders.

"And I'll hitch up my team immediately," the rancher said.

"I'll go with you," Mary exclaimed.

"Tut, tut, girl."

"I can help you, and I want to do something to help Mr. Weir and Janet Hosmer, even if it's only a little bit. I'm strong, I don't care if it is late—anyway, I'd just have nightmares if I stayed here alone,—and I can help you with him. I'm going," she ended, obstinately.

Johnson eyed her for a moment, then yielded.

"Nothing to be afraid of now," he rejoined, "but if you would rather go along with your dad, all right."

Five minutes later Steele and Janet were emerging from the canyon upon the mesa. The drizzling rain still continued and the unseen mist beat cool upon their cheeks as the car swung away from Terry Creek for town. Except for the stream of light projected before them, they were engulfed in Stygian darkness; and save for the slithering sound of the tires on the wet road, they moved in profound night silence.

"That business is arranged," Steele said, after a time. "But we still have the results of the attack on Martinez to deal with. I don't know how long he'll hold out against the men who dragged him off, probably not long. I suppose Burkhardt and perhaps Vorse took him, and they'll stop at nothing to get the paper they're after. How they learned of it, I don't know, but find out about it they did; and they'll force the information they want from Martinez if

they have to resort to hot irons. That's the kind of men they are. The lawyer will stick up to a certain point—then he'll tell. That brings you into their way."

"You also," Janet answered.

"I've been there for some time," was his grim response. "But in your case it's different. I'm worried, I tell you frankly."

"Do you think they would dare try to intimidate me in my own home and with father to protect me?" she cried, incredulously.

"Not there, perhaps. But if they could inveigle you away, yes. They wouldn't use hot irons in your case, of course, and I can't guess just what they would do, but they would do—something. Those men think I have the 'goods' on them; I repeat, they would stop at nothing to save themselves if worst came to worst; their fear will make them fiends. One couldn't suppose they would dare seize Martinez in all defiance of law—but they did. One can't believe they would dream of torturing him for information—but I haven't a doubt that's what they've done. So you see why I'm worried about you. If anything happened, if any harm came to you now, Janet—"

His voice was unsteady as he spoke her name and ceased abruptly. She thrilled to this betrayal of his feeling.

"I wish I could just stick at your side, then I know I should be safe," she said.

And for answer she felt his hand grope and press her own for an instant.

"You can count on me being somewhere around."

"I know that," she said, confidently.

San Mateo was asleep, buried in gloom when they entered it, and quiet except for the barking of a dog or two that their passage stirred to activity. But in Dr. Hosmer's cottage a light was burning and as the car came to a stop at its gate the door was flung open and the doctor himself appeared framed in the doorway. He ran hastily down the walk to meet them.

"Janet!" he cried. And the girl flung her arms about him.

"Juanita told you? Oh, it was dreadful! But Mr. Weir has brought me home safe."

Dr. Hosmer too agitated to speak reached out and grasped the engineer's hand, pressing it fervently.

At about that moment three men sat in the rear of Vorse's saloon. The shades were drawn and the front part of the long room was dark. Only a dull light burned where they sat. They were talking in low tones, with long pauses, with worried but determined, savage faces—Vorse, Burkhardt, Sorenson.

"Where the devil is she, that's what I want to know!" Burkhardt growled. "I've been over twice and looked through a window. Doc was there."

"She's in bed and asleep, probably," Sorenson said.

"I don't believe it. The old man would be in the sheets himself if that were the case. Didn't I call up twice by 'phone too? She was out, they said."

"Couldn't do much with her father there, anyway. We've got to get the paper by soft talk," Vorse commented. "I still half believe Martinez was lying when he said it had been in that old chair. She couldn't have got to the office and away in the hour or two before he told without some one seeing her, and no one did so far as we can learn. We locked the door too the second time we went back and it hasn't been opened since; and we were there ten minutes after our first visit when we learned the papers weren't among those in his pocket. I think he's got it cached away somewhere still."

"Then we'll give him another dose of our medicine."

"If I know anything about men, he told the truth," Sorenson said.

"Well, if the girl has it, we've got to get it from her if I have to wring her neck to do it." It was Burkhardt's inflamed utterance.

A pause followed.

"Sorenson, your boy is engaged to her," Vorse stated.

"Yes."

"Then it's up to him to get it first thing in the morning. Maybe it goes against the grain to let him know about this business of the past, but it ain't going to knock him over; he's no fool, he's a wise bird, he understands that a good many things are done in business that aren't advertised. He knows

we weren't missionaries in the old days. And she'll hand it over for him when she might not for any one else."

"That's right, Sorenson," Burkhardt affirmed, his scowling face visibly clearing.

"Ed went away somewhere this evening, that's the only drawback to your scheme. Said something about Bowenville and catching the night train to Santa Fé, and that he might be gone maybe a couple of days and maybe a week."

"Hell!" Burkhardt exploded, in consternation.

Vorse however remained cool.

"Then you must start telegrams to head him off, start them the instant you get home. Telephone to Bowenville the message you want sent and have the operator dispatch it to all trains going both ways since early evening, in order to make sure. If you can reach him within two or three hours, wherever he is, he can hop off, catch a train back and be here by to-morrow evening. Make your message urgent. And meanwhile we'll do what we can to get hold of that paper. At any rate we can keep her from seeing Weir. If we have to watch her we'll do it; and if we have to stop her from going to the dam we'll do that someway too. You might invite her over to-morrow to spend the day at your house."

"Do you think she'll be likely to come if she reads that document?" the banker inquired coldly.

"Why not? Tell her right off the bat that the thing is a lie and a forgery and that you want to explain about how it was made. She might fall for that and carry the document to you. She's always had a good opinion of you, hasn't she?"

"Yes."

"Then why should she change at a mere story."

"You're right," Sorenson exclaimed with sudden energy. "The matter described happened so long ago that she won't probably attach as much importance to it as we've imagined she would. I'll ask her to bring it to me to see—and that will be all that's necessary, once it's in my fingers."

“And what about him?” Burkhardt asked, striking the floor with his heel.

“Just leave him there for the present. To-morrow we’ll have another talk with him,” the cattleman stated. “Better offer him a couple of thousand to go to another state; he’ll grab at the chance, I fancy. Money heals most wounds. But, Vorse, keep your cellar locked and the bartender away from it. We can start Martinez away sometime to-morrow.”

“Don’t know about that. To-morrow night will be our busy night,” the ex-sheriff said.

“We might let Gordon handle him,” Vorse suggested.

“I thought perhaps you intended to keep the Judge in ignorance of ^{the}this Martinez matter. He seems to be getting sort of feeble.”

“He’s not too feeble to take his share of the unpleasant jobs along with the rest of us,” Vorse answered, unfeelingly. “I shall have him in here first thing in the morning and tell him what’s happened and what we’ve done and what he has to do.”

“Sure,” said Burkhardt.

“Well, that’s agreeable to me,” Sorenson stated, looking at his watch and rising: “Time we were turning in, if there’s nothing more.”

At the dam camp Meyers, the assistant chief engineer, and Atkinson, the superintendent, were still awake, smoking and talking in the office.

“I smelt enough booze on those fellows who came stringing in here to fill the reservoir,” the latter was saying. “Some one’s feeding it to them.”

“Nobody drunk, though.”

“No. But who’s giving it to them and why? I asked one fellow and he said he’d been to a birthday party, and wouldn’t tell where. They were all feeling pretty lush, even if they weren’t soused. And to-morrow’s Sunday!”

“They’ll all be idle, you mean?”

“Sure. If there’s more liquor, they’ll be after it. All day to drink in means a big celebration. The whiskey is sent up from town, of course, and I reckon sent just at this time to get us all in bad while Mr. Pollock’s here.”

“We’ll look up the bootlegging nest to-morrow,” Meyers said, with finality.

“What can we do if we do locate it? They’re not selling the stuff, I judge, but giving it away. That clears their skirts and forces us to deal with the men themselves if there’s any dealing done. Probably they hope to start a big row among us that way.”

“We’ll await Weir’s advice.”

“Well, I’ve waited all I’m going to to-night. Seems to me for a steady, quiet, self-respecting, dignified, unhooked, unmarried, unmortgaged, unromantic man he’s skylarking and gallivanting around pretty late.”

On the rocky creek road the ranchman and his daughter Mary were driving up among the trees on their way to the cabin, a lantern swinging from the end of the wagon tongue, the horses straining against the grade. On Johnson’s beard the moisture formed beads which from time to time he brushed away. From the trees collected drops of water fell on their hands and knees. All about as they proceeded the bushes and rocks appeared in shadowy outline, to disappear in the night once more, yielding to others.

“Isn’t this cabin where we’re going the one we drove to three years ago when you were hunting some cattle?” Mary asked.

“Yes.”

“I never thought then that Ed Sorenson would be lying up there all mashed to pieces,” she said, with awed voice.

“I guess he didn’t either,” was the dry response.

“He ought to be ready to stop chasing girls after this,” she declared.

“He won’t if he can walk; his kind never does quit.”

“Then his kind ought to be locked up somewhere like mad dogs. In a ’sylum, maybe.”

“I guess you’re right on that, Mary. They’re dangerous.”

“Funny we didn’t know he’d been up there, going past our house. He must have been there first before taking Janet.”

“Sneaked up in the night, probably. He’d have to have grub and so on if he expected to stay even a day or two. Crooks always look after their bellies, be sure.”

“I reckon Janet Hosmer will like Mr. Weir a whole lot now, don’t you?”

“She ought to, if she doesn’t.”

A long silence followed while Mary apparently pursued the line of thought opened up by this speculation.

“If she has the good sense I think she has,” the rancher stated at length, for his mind at least had been following out the subject, “she’ll not only like him a whole lot, but she’ll lead him to the altar and put her brand on him.”

He spoke to unhearing ears. For just then Mary sagged against him, her head sank on his shoulder. He put an arm around her form and let her sleep, thus roughly expressing his tenderness and love. Weir had not only rescued Janet Hosmer from the clutches of the man now lying injured; he also had once saved Johnson’s own child Mary from the scoundrel’s grasp.

Weir might ask anything of him, even to the laying down of his life in his defense.

CHAPTER XIX

A QUEER PAPER

When Mary Johnson next opened her eyes it was at a little shake by her father. She had slept heavily despite the jolting of the wagon; and now looked about drowsy-eyed and at a loss to know where she was. Her clothes and face were damp, her hands cold. She wasn't sure yet but this was still a dream—the team and wagon, the cabin before which they stood, the trees and rocks scattered about the grassy park-like basin, and the soaring mountain peaks on every hand that were just touched by the first early sun-rays.

The rain and mists were gone, leaving the dawn clear, gray, sharp, scented with the pungent odor of balsam and pine. From a distance came the subdued murmur of Terry Creek, which here high in the mountain range had its source in springs and brooks flowing from pools. All was peaceful.

Mary's look came to rest on the cabin. Over it reared the great pines that grew in a clump behind. Its door was ajar, but the log house for any sign of occupancy might have been untenanted. Immediately the girl glanced back along the road they had come and beheld there in the dim shadow at the foot of the lofty granite ledge a shapeless black lump. She shivered.

"You awake?" her father asked.

"Yes." And she began to climb down over the wagon wheel.

"Wait here. I'll go in first. He might be——" But though the rancher did not complete his sentence the words spoken carried their own grave implication.

He came out again presently. Mary gazed at his face to read from it the news it might carry, and it was with a breath of relief she perceived that the injured man was still alive, for her father himself appeared easier of mind. Neither would by choice have a dead man for a passenger on the ride home, even Ed Sorenson.

“He’s breathing, but is still unconscious,” Johnson declared. “Must have got a crack in the head along with the rest. Face is covered with dried blood. From the stuff inside the house he must have been fixing for quite a stay—blankets, grub, whiskey, candles, and so on. We’ll eat a bite ourselves before starting back; get the pail out of the wagon and bring some water and I’ll make a pot of coffee. There’s a fireplace and wood inside.”

“I’ll get the water, but I’ll stay out while you’re boiling it,” the girl said. “I don’t want to see him until I have to go in and help carry him out.”

She went off for the water, on her return setting the bucket by the door. Then curious to see the place of Ed Sorenson’s accident, she wandered back along the trail to the ledge. There she beheld the crumpled, fire-blackened remains of his automobile in a heap near the stone wall. Apparently the car had first struck a small boulder, which had flung Sorenson out on one side and forward, then leaping this hit the ledge full force.

At the instant he must have been off the road and headed wrong, she guessed. The rapid daybreak of the mountains had by now dispersed the last dimness and indeed the crags far above were bright with sunshine. She could plainly see the ruin that the machine was, fire having completed what the smash had left undamaged, and the part of the rock that was smoked by the flames, and was able to smell yet the reek of burnt oil, varnish and rubber.

With the eyes of the curious she stared at the wreck, at the ledge, at the ground, absorbed with simple speculations and filled with a sense of awe. The machine must have made a big sound when it struck. It was a lot of money gone quickly, that car. Not enough of it left to make it worth hauling away. And so on and so on.

Then all at once her wandering regard detected something white in a crevice between two stones. At first she thought it the gleam of a bird or a chipmunk. The thing was some yards off from the spot where she stood, but the flutter persisted. So she approached it to learn its nature.

The thing was a paper. One corner of a sheet stuck up from the crack in which it lay and was waved gently by the rising dawn breeze. She drew it out and perceived it was fastened to other sheets that were folded, all damp from the rain though not soaked because the cranny had admitted little

moisture. It was the last sheet which had come partly unfolded, apparently as it fell, so was left in sight or she would never have noticed the white flutter. This last sheet was blank, but the others, neatly folded though wrinkled, were covered with writing she saw on spreading them open. However, she could not read the pages; the matter was typewritten, but it was not English. Some foreign language, maybe.

If Mary could not read the document, she could at least logically deduce how it had happened to be in its present resting-place. The paper was here because the wrecked automobile was here, so when Ed Sorenson was pitched out the folded sheets of paper must have been propelled from his pocket by the same force and at the same instant. It hit a rock after flying through the air and slid down into the crack.

Perhaps it was only a business document; it looked like one. Again perhaps it told something about his crooked private affairs—about his schemes for ruining girls, possibly. Very likely, indeed. That seemed to be about all he engaged himself at. When she found some one who could read it, she would know for certain. She would just take it along with her and say nothing about her find until she could have somebody who understood the writing read it over for her.

In places the typing had stained from dampness, but not seriously. She could dry out the pages over the kitchen stove at home. So folding the sheets again, she doubled the document, tied it in her handkerchief and placed it inside her waist, where it could not be lost. Perhaps there were other papers. But a further search disclosed none, whereupon as her father was shouting to her from the cabin to come she retraced her steps.

When they had drunk their coffee and eaten some of Sorenson's food, making their meal before the door, they carried the unconscious man out to the wagon, bearing him in the blanket on which he lay. Other blankets they spread over him. Johnson also placed at the prostrate figure's feet the rest of the eatables in the cabin.

"No need to leave this stuff to the pack-rats," said he. "We'll just consider it a little pay towards fetching him out."

"He ought to be willing to pay you a whole lot more when he learns the trouble you've been to."

“I wouldn’t touch his money if he offered me a thousand dollars; I’d throw it back in his face. I’m not doing this for pay, or friendship, or charity; I’m doing it to help Janet Hosmer and because Weir asked me. If the Sorensons had all the money on earth, they couldn’t give me a penny as between man and man. If they owed it to me, that would be another matter. They’d pay it if I had to stick a gun down their throats to make them come across.”

“We don’t need any of their money, I guess,” Mary said.

“Nope. We’re poor but we’re straight. So we’re better off than they are—richer, if we just look at it that way.”

Once during the long drive, as they neared the ranch house, a low moan came from the form on the straw in the wagonbed. Both Johnson and Mary looked around quickly, then regarded each other.

“Beginning to suffer,” said the parent. “It’s a wonder there’s a whole bone in his body. I hope the doctor is down below waiting for us.”

This proved to be the case when about ten o’clock Johnson drove his worn-out team into his dooryard. Weir’s car was there and with it the engineer himself and a young medical practitioner. Climbing up into the wagon, the doctor made a hasty examination of the patient.

“Hips broken. Slight concussion of the skull, but not dangerous,” was his opinion. “I shall not be able to tell the full seriousness of his injuries until I have him stripped on a table or bed. Probably there are other broken bones,—ribs or something. We must get him down to Bowenville as quickly as possible, for his is a bad case. But I guess if he has pulled through so far he’ll recover. If you’ll drive your wagon down to the mouth of the canyon, we’ll transfer him to my car, which is double seated, and then you can accompany me to town; Mr. Weir says you are willing to go along and help. I’ll send you back from Bowenville.”

“Yes, I’ll go along. Mary will ride down with us and bring back the team and wagon.”

“Strange what he was doing up there in the mountains with an automobile alone,” the doctor remarked.

“Oh, he might have wanted a day’s fishing, or was taking a look at cattle or range, something like that,” Johnson stated.

“Mr. Weir said a sheepherder found him. Wasn’t that it, sir?”

The engineer turned to the rancher.

“Wasn’t that the way of it?”

“Yes. Showed up here late and said he had found the man and carried him into the cabin. Said his wrecked car was still burning, so the accident couldn’t have occurred very long previous. Said we ought to bring him down immediately as he was badly hurt. So I sent word to Dr. Hosmer, and my girl and I set off at once, the sheepherder going back with us. Said he just happened to be looking for a stray sheep or he would never have come on this man, as he was heading his band for a pass to get over on the west side of the range. S’pose we’ll never see him again.”

“Do you know who this man is?”

“His face seems sort of familiar,” Johnson replied, scratching his chin. “But he looks like a city chap, by his clothes, what’s left of them. No papers or anything on him to tell his name. Might have come over the pass himself from the other side; men go everywhere in these hill-climbing cars they make nowadays.”

“Somebody will be seeking information soon and then we’ll know,” the physician said. “He’ll probably give his name and address himself when he comes round. But if I’m not mistaken he’ll need another sort of car if he does any moving about when he’s out of bed.”

“Why’s that?”

“Speaking off-hand, I’ll say he’ll never walk again. That’s the way broken hips usually turn out; and if his spine is injured, as I suspect, he will probably be paralyzed from the waist down. Hard luck for a young man like him. He’ll wish at times he was killed outright.”

Unobserved by the speaker Weir and Johnson exchanged a meaningful look. In the minds of both moved the same thought, that Providence had punished Ed Sorenson according to his sins and more adequately than could man. Dreadful years were before him. He would, in truth, wish a thousand times that he had died at the foot of the ledge.

Half an hour later the visitors had departed, the rancher going with the physician and his charge to Bowenville, Weir returning to San Mateo. Mary

had driven the wagon up from the mouth of the canyon, unharnessed the horses, watered and fed them, and now was seated in the kitchen staring absently out the open door. After so much excitement she felt distraught, depressed.

Finally she produced and dried the papers over the stove, in which she had re-kindled a fire.

“Funny how anybody should want to talk or write anything but English,” she remarked to herself, gazing at the pages.

She attempted to extract some sense from the strange words. At the bottom of the last sheet she deciphered, Felipe Martinez’ name under the notorial acknowledgment. All at once in scanning certain lines she came on names that were plain enough—Sorenson, Vorse, Burkhardt, Gordon. The last must mean Judge Gordon. Then presently she found two more names that excited her curiosity—James Dent’s and Joseph Weir’s.

Springing to her feet she stared at the sheets in her hand. For some reason or other her blood was beating with an odd sensation of impending discovery.

“Why—why—” she stammered. “Why, those are the men father told about being shot, and him looking on as a boy! This is a queer paper! I wish he were here.”

Possession of it gave her a feeling of uneasiness. Her father had warned her never to speak of the matter to any one—and here was something about it in writing, or so she guessed. He had said Sorenson and the other men would kill him at once if they learned he had been a witness. That meant they would kill her too if they found out that she not only knew about their crime but had this paper as well.

She looked about. Finally she retied the document in a tea-towel, tight and secure, and buried it deep in the flour barrel. They would not think of looking in the flour. But she went to the door just the same and gazed anxiously down the canyon as if enemies might put their heads in sight that very minute.

CHAPTER XX

ANXIETIES

“My dear doctor, your talents are wasted in San Mateo. They should be employed in the larger field of diplomacy,” said Steele Weir, when on his arrival from Terry Creek he was apprised of what had occurred during his absence.

“From all indications I shall have full opportunity for their use hereafter, whatever they may be, in our own bailiwick,” Doctor Hosmer replied, smiling. “There’s more going on in our village, apparently, than in many a small kingdom. I merely had Janet use the truth with certain limitations, and there’s no wiser course when part of the facts are known. Sorenson seemed quite satisfied with her explanation.”

The colloquy resulted from a meeting between Janet and the cattleman while Weir was guiding the young physician, summoned from Bowenville, to Johnson’s ranch. Sorenson had appeared at the house about ten o’clock that morning desiring to see the girl. They had talked together on the veranda, where the visitor stated he had effected a settlement and obtained an acknowledgment from Martinez, who was trying to blackmail him and others; that a certain paper had been prepared by the lawyer for use in the disreputable business; that the man had said he had asked Janet to secure it from an old chair in his office; and he wished to learn if she had done so.

Janet had admitted such to be the case.

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“It was odd Mr. Martinez should telephone me to go get it, wasn’t it?” she had asked. “But I went, and there it was stuffed in the lining of the chair.”

“You have it then?” Sorenson stated, with a sigh of relief and his eyes kindling with eagerness.

“No, I haven’t it now.”

“What in heaven’s name did you do with it?” he asked.

“As I was coming out of Mr. Martinez’ office, there at the door was Ed. He had seen me go in and so stopped his car before the door; after a time he took the paper to see what it was.”

“Then you didn’t see its contents?”

“No; I didn’t even open it.”

“And he has it?”

“He had it the last I saw of the paper. He read it. First, he was going to burn it up because it made him angry, then he changed his mind, saying he would take it to show to you, as he thought you would be interested. Is there anything else you wish to know, Mr. Sorenson?”

“Where did he go from there?”

“He drove away. From something he said, I judged that he planned to be away from home several days.”

Revolting as it was to Janet to put so fair a face on Ed Sorenson’s conduct, nevertheless she had braced herself to go through with the part and presented to the cattleman a clear, natural countenance. The very simplicity of her story, its directness, its accord with the facts as he knew them, carried conviction. Innocently drawn into the affair, she had, in his view, been quickly guided out again by Ed’s luck and wit.

Ed had the deadly document. The four men concerned might breathe easily once more. Ed himself, in all probability, did not realize the true menace of old Saurez’ deposition, or he would at once have brought it to him instead of continuing on his trip: the boy no doubt thought it sufficient to keep it until he returned or mailed it back from somewhere; he perhaps had taken it along for a more careful reading. Good boy, anyway. He had got possession of the thing, that was the main consideration.

“He told me too that he was leaving last evening for a few days’ jaunt,” Sorenson said, rising to go. “You’ll likely have a whole basketful of letters from him. Finest boy going, Ed, even if it’s his own father who says it. But he’s the lucky one, Janet.” The girl lowered her eyelids, for at this flattery she felt she could no longer dissemble her feelings. “Sorry to have bothered you about the matter,” he concluded. “Fellows like this Martinez are always making us trouble. Run over and eat dinner with us soon.”

He went down the walk, large, dominant and still with a trace of his early cowman's walk. Both his step and his erectness bespoke the buoyant effect of the talk upon his spirits, which was not to be wondered at as he had splendid news to import to his confrères in crime. They would get rid of Martinez, destroy the paper when Ed delivered it, and their skeleton—this one (of a number) which had unexpectedly kicked the door open and started to dance in public—would be safely locked up forever. For Saurez, the only witness (as they believed) was now dead: he would make no more depositions. Certainly Sorenson had reason to walk briskly away from Doctor Hosmer's dwelling.

Janet had somberly watched him till he was out of sight, then had gone inside.

"I don't see how I ever imagined him an honorable man," she said to her father. "For all his pretended politeness he was ready if necessary to bully me. One thing he can't ever say is that I didn't tell him exact facts; what I omitted was the circumstances giving rise to the facts." And her father, who now knew from Weir the story of the happening of thirty years before, assured her that she need be troubled over no moral hairsplitting.

The incident, as Steele Weir perceived, diverted both suspicion and danger from Janet, at least for a time. A big gain that. And he was impressed by the subtle sagacity of the maneuver.

"That wasn't just a clever move, it was a flash of genius," he told father and daughter. Then after a few minutes more of talk he said: "Now I must be running up to the dam. To-day is Sunday and the works are quiet, so if I find everything all right I shall strike back immediately for Terry Creek and the cabin up above. I want to make a search for that paper by daylight."

"After your hard night?" Janet exclaimed. "I snatched some sleep when we had done talking last night, but father says you and he had none. You can't make that terrible ride again without rest!"

"Missing a night in bed is nothing new," he laughed. "Once or twice in my life I've not had my clothes off in a week, and only such cat-naps as I could steal meantime. But I'll not boast of that; your father probably has gone longer periods without sleep, or with only broken rest, than ever I did. Most doctors do. Be sure and let me know if anything new occurs."

But if Weir's mind was put at ease so far as Janet was concerned, he had more than enough other cares to burden his thoughts. The loss of the deposition, chief of all; then the matter of effecting Martinez' release, wherever he was immured; and finally, as he learned from Meyers and Atkinson on reaching camp, the insidious promise of trouble in the "free whiskey party."

"Perhaps whoever supplied the fire-water underestimated this copper-lined crew's capacity and didn't furnish enough," Meyers suggested. "Nobody was really drunk last night and here it is nearly noon, with the men all hanging about camp. If there was whiskey yet to be had, some of these thirsty, rollicking scrappers of ours would be right back at the spigot this morning."

"Maybe so," Atkinson admitted. "Seems so—and yet I ain't easy in my mind. The men don't act right; they behave as if they're just waiting; they're restless and not a man could I get to open his mouth about where they found the stuff. If there wasn't to be any more, they would have told and tried to kid me. They appear to me as if just biding their time. Some men weren't gone, of course, those who don't drink. They stayed in the bunk-house and they know nothing."

"We'll go on the supposition then that there will be more coming, and act accordingly," Weir stated, at once. "Watch them close, and put up a warning that men who are not at work in the morning, or who bring booze into camp, will be fired."

"That's the trouble," the superintendent declared. "I don't think they brought a drop in except in their skins. And as we say, they weren't drunk. There's not a thing we can object to and they know it; somebody has put 'em wise how to act. Here they are, sober this morning, behaving themselves, and so on. We can't keep men from going for a walk if they want to; we can't string barb-wire around the camp and hold them in; we can't even say they can't touch a bottle if a stranger offers them one when they're on the outside."

"But we can hold up the consequences if they go on a spree," Steele replied. "Most of them are satisfied with the work and pay and grub; they don't want to go."

“No, but they like whiskey too, free whiskey in particular. They would say they’re not getting drunk—no man ever really expects to when he starts drinking—and talk about their ‘rights.’ There are two or three fellows in camp now who are doing a lot of mouthing about labor’s rights; I. W. W.’s, I’d say. Shouldn’t be surprised if they were the ring-leaders.”

“If more whiskey comes, we must beat them to it.”

“That’s my notion,” Atkinson said, with a nod. “I didn’t locate the booze fountain last night, but I did this morning. Took a horse at daylight and rode along the hills; about a mile south in some trees at the foot of the mountain, I came across a case of empty bottles and a keg half-full of water. That was all, but it showed where the ‘birthday party’ was.”

“That’s the place to watch, then. Better send a trusty man there to report to us immediately if he sees signs of a supply arriving for to-night. Half a dozen of us with axes will soon start a temperance wave in that locality.”

In accordance with this instruction the superintendent dispatched a reliable man to maintain guard at the spot; and Weir, feeling that all had been done that was possible under the circumstances, gave his attention to other matters.

But he perceived that with this “liquor attack” in the air, for it was but another of his enemies’ moves against him, of course, directed with the purpose of creating internal disorder, he must postpone his trip to the headwaters of Terry Creek. Knowing the crafty, persistent, conscienceless character of the four men inspiring the trick, he was under no delusion that the “free whiskey” would end with a single case of bottles. Among three hundred men that would amount to but two or three drinks apiece—a mere taste, only a teaser. And because it was only a teaser, the men would want more. If he could carry them over this idle Sunday sober, they would be at work on the morrow and the chief danger be passed.

Unfortunately a manager cannot take his workmen into his confidence in such a case and explain the nature of such a cunning attack; the thing was too complex, and their untutored minds would fail to perceive if they did not actually reject the explanation, in jealousy for their “rights” concluding that they were being hoodwinked. By very perverseness they would refuse to deny themselves a free gift of whiskey.

With Pollock, however, whose interest as a director was vital, he could talk in full expectation of being understood. And moreover, owing to the entangled condition into which the company's and his own personal affairs had come, strict honor required that he inform his visitor of the entire situation and offer, if in the director's view such action would best serve the company's ends, to resign.

In his office immediately after dinner he gave the easterner a complete account of happenings in San Mateo since his arrival as manager, with a statement of his father's earlier residence here, of the fraud practiced by Sorenson and his companions on him and his tragically ruined life.

"This, you see, has resulted not only in bringing the animosity of these men against me but in aggravating their hostility to the company," he concluded. "I've never been a quitter. It would go sorely against the grain with me to quit now while under fire. But my own feelings or fortunes should have no weight; the company's interests alone are to be considered. I shall turn over the management to Meyers and retire if you desire; I count my contract not binding upon your board under the circumstances."

Pollock arose and began to pace the office, gently beating the air with his eye-glasses and thoughtfully regarding the floor.

"I should not do your remarkable story proper justice if I did not give it the serious attention it deserves," he said, after a time. "Certain aspects of the case would appear to favor our accepting your resignation, but on analysis, Weir, they turn out to be aspects only, not real arguments. Assuming the facts are as you relate, which I personally don't doubt, these men, if they will stop at nothing to injure you, will be no more reluctant to injure us. In fact, if you withdrew they would feel that they had gained a distinct triumph, forced us to yield to their will, and would be inspired to further and greater opposition. Personal hatred for you on their part is no ground for their fixing their enmity on the company. But that enmity, apparently, already existed before you came. Therefore if they hate you likewise, you and our company have a common bond. And that assures us of one thing, or several things: your vigilance, care of company property, and loyalty. Last, and aside from that, you are, I am confident, possessed of the exact qualities essential to the successful solution of present difficulties. We prefer as manager an energetic, determined, fighting man, however much disliked by

envious neighbors, to some fellow less firm and more inclined²⁰⁵ to conciliation. The latter never gained anything with out-and-out foes, from what I've seen. So you perceive, Weir, that when my associates and I get into a row we're not quitters either. We shall therefore just dismiss all talk of your resignation."

"Very good; I wanted you to know the facts."

Pollock paced to and fro for a time longer.

"What really interests me is your own fight," he remarked at length. "If the paper you spoke of should be found, I would be pleased to have it translated for you. I should also like to consult with this man Martinez; he seems a clever fellow. You expect to settle with this quartet who defrauded your father, of course."

"Certainly. But the money isn't the main thing. For no amount of money would ever pay for the wrong done my father. I want to make these men suffer, suffer as he suffered. Call it a simple desire for revenge if you will; that's what it really is. They robbed him of his future as well as of his ranch and cattle. They took away hope and implanted in his breast terror and remorse wholly undeserved. But for them he might have been a happy, prosperous, well-thought of man in this state. Yes, revenge is what I want, not money. Revenge that will be for them an equivalent of hell."

"But they should pay the legal penalties of their crime as well," the lawyer spoke. "Recovery of the original amounts gained by fraud from both your father and this man Dent, and accumulated interest as well as damages, should be had. In all it should make a large amount."

"I suppose so. Probably enough to clean the four men out. But though of course I should enjoy getting the property or money that was rightfully my father's and now mine, still I'd let that go if I could secure the satisfaction²⁰⁶ of making the four men pay in the coin I want."

"Don't be a fool, Weir. Don't overlook any bets, as the saying is. Taking their property away from them will but add to their pain and to your pleasure. Now we must see if Dent's heirs can be found. I suggest that you employ some good attorney to start a hunt along that line, for an action by Dent's relatives will indirectly strengthen your own case. I'm doubtful about one thing, however——"

“What is that?”

“Your courts here, and the value of this old Mexican’s deposition. The case could be brought in a Federal Court as you’re a non-resident, which would solve the first point, but how much weight would this Mexican’s testimony have against white men of standing and after a period of thirty years. If you could find another witness——”

“There was one, a white boy, so Martinez hinted,” Weir said.

“Find him, find him. Search the whole country until you find him!”

“That’s a big undertaking, when I don’t even know his name or whether he’s alive.”

“Begin nevertheless.”

“Well, I had better find my lost paper or secure another statement from old Saurez first. At present I have absolutely nothing that a court would look at; I haven’t as much as I had yesterday. And even Martinez has been spirited away.”

Pollock smiled.

“I’m interested, greatly interested,” he said. “I’m not actively engaged in legal affairs at home and I may stay on here awhile longer. Perhaps I can assist you; it promises excitement, at any rate. After dry corporation matters, it should be a refreshing change—and I haven’t had a real vacation in years. Possibly this is the time to take one.”

“I appreciate your kindness in speaking so, Mr. Pollock.”

“But I’m quite selfish; I’m seeking entertainment. And your peppery affairs promise it. Do you give me permission to take a hand?”

“Gladly.”

“Then as a beginning I’ll go to town. Saurez, you say, was the old Mexican’s name? And give me the facts again as you know them about the affair of your father and the man Dent in the saloon.”

Pollock listened closely as Steele Weir repeated the story.

“That’s all I know, and it’s meager at best,” the engineer concluded.

“Pity you didn’t get to read the deposition, which would have increased your fund of information. More unfortunate it is that you haven’t the paper itself. But we’ll do the best we can without it for the present. Kindly have some one drive me in to San Mateo.”

“Atkinson, the superintendent, is going there for me. I thought he might pick up something of Martinez’ whereabouts.”

“Where does Judge Gordon live?”

“I can’t tell you that. But you can easily learn when you reach town.”

“Well, the Judge used to handle company matters, you know.” The smile on Pollock’s lips was inscrutable. “I used to have frequent conferences with him when I was here at the inception of our project. He is very shrewd in certain ways, but he impressed me as being not exactly—what shall I say?—‘cold steel’, for instance.” And still wearing the thin smile, he went out.

If Weir had not had so many things to make his mind grave, from a missing paper and a missing lawyer to mysterious whiskey and fierce enemies, he would have leaned back and laughed.

CHAPTER XXI

THE WEAK LINK

Though the sun was bright that day, unseen forces were gathering in the sky above town, mesa and mountains, not of weather but of fate, to loose their lightnings. Sunday peace seemed to reign, the languid summer Sunday peace of tranquil nature. Yet even through this there was a faint breath of impending events, a quiver or excitement in the air, an increasing expectation on the part of men, who sensed but did not realize what was to come.

All day whispers and hints had passed among the people in San Mateo and out to isolated farms and up nearby creeks, kindling in the ignorant, brown-skinned Mexicans a lively interest and an exorbitant curiosity. Nothing was said definitely; nothing was promised outright. So in consequence speculation ran wild and rumors wilder. The hints had to do with the manager of the dam who had shot the strange Mexican: something was to be done with him, something was to happen to him. He had been arrested, or was to be arrested; he had confessed, or was about to confess the murder; he was going to kill other Mexicans, or had killed other Mexicans; he was about to raid San Mateo with his workmen and slay the town; he was to be hanged;—and so on eternally. Uncertain as was everything else, what was sure apparently was that something would happen at San Mateo that night.

Families visiting about in wagons spread the news. Horsemen were at pains to ride to outlying Mexican ranch houses, for what messenger is so welcome as he who brings tales of great doings? He might be sure of an audience at once. So it was that the plan craftily put in operation by Weir's enemies, to gather and inflame the people, under cover of whose pressure and excitement when the engineer was arrested he might be slain by a pretended rescue or popular demonstration, whichever should serve best, produced the expected result. During the afternoon wagons and horsemen and men on foot began to appear in town, to join already aroused relatives or friends at their adobe houses or to loaf along the main street in groups.

Outwardly there were few signs in the aspect of the Mexican folk of something extraordinary developing. But to the sheriff, Madden, aroused from an afternoon nap at his home by a telephoned message from the county attorney requesting him to come to the court house, the unwonted number in the town was in itself a significant fact.

“I didn’t know this was a fiesta, Alvarez. What’s up with you people?” he asked of one he met on the street.

“The fiesta is to be to-night, eh?” the man laughed. “Have you this engineer locked up yet?”

“What engineer?”

“The killer, the gun-man, that Weir. It is said he is already arrested and is to be hanged from the big cottonwood at dark beside the jail. It is also said he is still loose and bringing five hundred workmen to burn the town, rob the bank, kill the men and steal the girls.”

“If he is to do either, it’s news to me,” Madden said, and proceeded to the office of Lucerio, the county attorney.

Madden was a blunt man, who for policy’s sake might close his eyes²¹² to unimportant political influence as exercised by the Sorenson crowd. But he was no mere compliant tool. This was his first term in office. He had never yet crossed swords with the cattleman and the others associated with him, because the occasion had never arisen. When he had allowed himself to be nominated for sheriff, though Sorenson might imagine Madden to be at his orders, the latter had accepted the office with certain well-defined ideas of his duty.

“What do you want of me?” he asked Lucerio, for whom he had little liking.

“I desire to tell you, Madden, that at eight o’clock I’ll have a warrant for you to serve on the engineer Weir. You’ll go to the dam and arrest him and bring him in to the jail.”

“Well, apparently the whole country except me knew this was to happen. The town’s filling up as if it were going to be a bull-fight.”

“I know nothing of that.”

“All right; give me the warrant.”

“At eight o’clock. I don’t want it served before then.”

“Why?”

“I have my reasons.”

“Sorenson? And Vorse and Burkhardt? They’ve stirred up this charge against the man.” Lucerio making an angry answer, he continued. “Well, everybody knows you jump when they pull the string. I’ll have to serve the warrant, naturally. But I’m going to tell you what I think: you’ve faked the evidence you’ve got; we had the truth from Martinez and Janet Hosmer at the inquest; you’re trying to railroad Weir to the gallows.”

“Mr. Sorenson shall know what you’ve said. As for me”—the Mexican swelled with outraged dignity—“the evidence was placed in my hands. It warrants the engineer’s arrest and trial. You attend to your department and I’ll attend to mine.”

“All to the good, Mr. County Attorney. I’ll arrest him; he won’t make me any trouble on that score. But you won’t find it so easy to prove his guilt. And afterwards, just look out, for if he doesn’t come gunning for you and fill your carcass full of lead, I miss my guess. You won’t be able to hide behind Sorenson, either.”

He left the county attorney at that, the latter unable despite all his efforts to hide his uneasiness and alarm. Madden reaching the street looked at his watch; it was half past five, so he started home for supper.

Some way before him he saw Martinez walking. The lawyer did not stop to converse with any of the loiterers along the street, but moved steadily along. He had come out of Vorse’s saloon and was going towards his office. Just then the sound of an automobile caused Madden to turn his head in time to see Weir speed along but stop with a sudden application of brakes as he caught sight of the attorney.

A hail brought Martinez to the car. A few minutes’ rapid speech there followed. Then the lawyer mounted beside Weir, the machine went on, turning into a side street and vanishing. To Madden there was nothing unusual in the circumstance, and he only noted the surprise and silence along the street at the engineer’s passage. The Mexicans would know the

man wasn't yet arrested at any rate, he thought. But he should like to learn what was the purpose in bringing them all to town! He would keep an eye open for any lynching nonsense if it were attempted.

Weir and Martinez were hastening to Judge Gordon's house, for shortly before the engineer had received an unexpected call from Pollock for him to join him there. Evidently the eastern lawyer had turned a card of some sort; and Weir had gone at once, wondering what the meeting might portend. The sight of Martinez, free and composed of hearing, walking along the street, further amazed him.

He perceived, however, when the lawyer stepped out to the car from Vorse's place that he was pale, his mouth tight-drawn and his eyes glittering.

"You got my message?" the latter asked, quickly.

"The telephone message, yes. Janet Hosmer got the paper also."

"They dragged me to Vorse's cellar," Martinez whispered fiercely. "They beat me with their fists, Vorse and Burkhardt. Then they tied me and squeezed my eyeballs till I could stand the pain no longer and told. I've been there ever since, bound and without food or water, the devils! Sorenson came with them last night, afterwards. And now he and Vorse came again—there they are back there in the bar yet—and gave me a draft on a Chicago bank for a thousand dollars and said to get out and stay out of New Mexico and never open my mouth about what had happened."

"Get in with me," Weir ordered.

At Judge Gordon's house the lawyer said:

"You are going in here? He's one of them."

"I know it. Come in, however. I may need you. You're not going to leave San Mateo, but there's no reason why you shouldn't cash the draft. That's only part of the damages you'll make them pay for what you underwent."

"It isn't money I want from them," Martinez replied, between his teeth.

Judge Gordon lived in a rambling adobe house two squares from the Hosmer dwelling. It was old but had been kept in good repair, and as he had never married he had lived comfortably enough with an old Mexican pair as servants. One of these, the woman, admitted the visitors at their knock and

conducted them, as if expected, to the Judge's study, a long room lined with cases of books, mostly legal, and filled with old-fashioned furniture.

That something had occurred to change the Judge's aspect during the hours in which Pollock had been closeted with him was at once apparent. He looked older, broken, haggard of face, terrified.

"I met Mr. Martinez and brought him along," Weir said.

"Was that necessary?" Judge Gordon asked, heavily.

"He's my attorney, for one thing."

"And I've been a prisoner in Vorse's cellar for twenty-four hours for another, and you're one of those responsible for my being there and for the torture to which I was subjected," Martinez exclaimed, glaring.

"Mr. Martinez, I give you my word of honor that I knew nothing of your incarceration until this morning."

"That for your word of honor!" the lawyer cried, snapping his fingers in the air. "And in any case, you're an accessory after the fact. You let me stay."

Pollock stepped forward.

"Is this Mr. Martinez? Glad to meet you, sir. Mr. Weir has spoken very favorably of you and of your handling of legal matters for the irrigation company, of which I am a director. Pollock is my name. Are you a notary? Ah, that is good. There will be some papers to acknowledge and witness and so on."

He pointed at seats, seemingly having direction of matters, and the visitors sat down. Judge Gordon had sagged down in the padded leather chair in which he sat; his face was colorless, his eyes moving aimlessly to and fro, his white mustache and hair in disorder.

"Let us begin on business at once," Pollock stated, on his feet as was usual when entering a discussion and removing his eye-glasses. "I called on Judge Gordon this afternoon after my talk with you, Weir, and disclosed the evidence which has been gathered relative to the fraud perpetrated on your father and the crime against the man Dent. I assumed, and rightly, that to a man of the Judge's legal mind the facts we hold would prove the futility of resistance, and I set out to convince him of the wisdom of sparing himself a

long losing fight, in which he would be opposing not only the evidence which was sure to convict him, and not only you, Mr. Weir, but our company which proposed to see the fight through. I went so far, Weir, as to promise him immunity from your wrath and from public prosecution.”

Weir arose slowly.

“No,” said he, “no.”

“But, my dear fellow——”

“No. He made my father’s life a hell for thirty years. Why should I spare him?”

“If granting him freedom from prosecution did actually spare him anything, I should say ‘No’ also, standing in your place. But with the facts made public as they will be, with Judge Gordon losing his legislative office and the esteem in which he had been held, with him relinquishing the bulk of his fortune as he agrees, with his finding it necessary to go elsewhere to live at his time of life, with the thought constantly in his mind of how low ²¹ he has been brought, don’t you think he will be suffering quite adequately? I should think so. He would probably die quicker in prison, but I believe he will suffer more outside. See, I don’t hesitate to measure the alternatives, for the Judge and I have discussed and canvassed the whole situation, which was necessary, of course, in order to arrive at a clear understanding.” And Pollock smiled genially.

“Does he admit my charges?”

“He hasn’t denied them.”

“Will he admit them?”

“I’ve outlined exactly what we must have—deeds to his property and an acknowledged statement of the Joseph Weir and James Dent affair, supplementing the Saurez affidavit, which by the way he at first thought we did not possess but which an account of what happened last night in the mountains and your recovery of the same”—Pollock’s eyelid dropped for an instant towards Weir—“convinced him of. This statement is not to be produced as evidence against his associates except in the last extremity, and if not needed is always to be kept secret. We are to give him, when the papers are signed, a draft for ten thousand dollars. This will permit him to

have something to live on. He states that he will want to go from San Mateo at once.”

During this speech Weir’s eyes had glanced to and fro between the lawyer ticking off his words with his glasses and the figure in the leather chair. Old and shattered as Judge Gordon had suddenly become, wretched as Weir saw him to be, the engineer nevertheless felt no pity. The man had been in the conspiracy that had ruined his father; he suffered now not because of remorse but through fear of public opinion; and was a fox turned craven because he found himself enmeshed in a net. And to save his own skin he was selling out his friends.

Weir’s face went dark, but Pollock quickly stepped forward and drew him into a corner of the room.

“Keep calm, man,” was the lawyer’s low advice. “Do you think if we had him tied up as tightly as I’ve made him believe that I should propose a compromise in his case. He’s the weak link. Do you think I’ve had an easy time the last three hours bringing him to the point he’s at? I had to invent evidence that couldn’t possibly exist. I had to give him a merciless mental ‘third degree.’ I told him if he refused I was going to Sorenson with the same offer, who would jump at the chance. And, my dear man, we haven’t, in reality, enough proof to convict a mouse since you lost that paper. So now, so far as he’s concerned, you must bend a little, a very little—and you’ll be able to hang the remaining three.”

This incisive reasoning was not to be denied.

“I yield,” said Weir.

Beaming, Mr. Pollock walked back to the table.

“Mr. Weir consents,” he stated. “Mr. Martinez, if you will go to your office and bring the necessary forms and your seal we can make the transfers and statement and wind the matter up.”

An hour later Judge Gordon had signed the deeds, stock certificates from his safe and bills of sale spread before him, passing the ownership of lands, cattle and shares in companies to Pollock for equitable division between Weir and the Dent heirs if found. The old Mexican servants were called in and witnessed his shaky signatures to the papers.

At the statement regarding the Dent shooting and Weir fraud, which Pollock had dictated to Martinez with Gordon's assistance, he staggered to his feet while the pen dropped from his hand.

"I can't sign it, I can't sign it; they would kill me!" he groaned.

The two aged servants stared at him wonderingly.

"My dear Judge, they'll never know of it until it's too late for them to do anything—if they ever know," came the easterner's words, in smooth persuasiveness.

Judge Gordon brushed a hand over his eyes.

"Give me a moment," he muttered.

He stood for a time motionless. Then he walked across the room and opened a door and entered an inner chamber.

"He won't live a year after this," Pollock whispered to his companions.

The speaker could have shortened the time immensely and have still been safe in his prophecy. For when at the end of five minutes he sent the woman to request the Judge to return, she stumbled out of the bed-chamber with affrighted eyes. She said the Judge was asleep on his bed and could not be aroused.

Sleep of the profoundest, the men discovered on going in. And in his fingers was an empty vial. So far as Judge Gordon was concerned Weir had had his revenge.

CHAPTER XXII

AN OLD ADOBE HOUSE

Revenge Weir had. But even in death Judge Gordon, true to his evasive, contriving character, had tricked him; and the irony lay in the fact that in this last act the trick was unpremeditated, unconscious, unintentional. Instead of the signed confession, necessary above everything else, which seemed almost in his fingers, the man had left a little poison vial.

Night had settled over the earth when the three men, after directing the Mexican servants to bring the undertaker, went out of the house, for considerable time had been occupied in the discussion and the preparation of papers preceding Judge Gordon's tragic end. With him Mr. Pollock carried the documents pertaining to the property restitution. These, considered in connection with the suicide, would constitute something like a confession, he grimly asserted.

Avoiding the main street of San Mateo they drove out of the town for camp. The first part of the ride was pursued in silence, for each was busy with his own thoughts in consequence of the sudden shocking termination of the meeting. When about half way to camp, however, their attention was taken from the subject by a sight wholly unexpected, a scene of high colors and of a spirit that mocked at what had just happened.

Some way off from the road, at one side, two bonfires burned brightly before an adobe house, the flames leaping upward in the darkness and lighting the long low-roofed dwelling and the innumerable figures of persons. At the distance the place was from the highway, perhaps two hundred yards, one could make out only the shadowy forms of men—of a considerable number of men, at that.

"I never saw any one at that old tumble-down house before, Martinez," Weir remarked, lessening the speed of the car. "Always supposed it empty."

“No one does live there. The ground belongs to Vorse, who leases it for farming to Oterez. Perhaps Oterez is giving a party there. They are dancing.”

Weir brought the machine to a full stop, with suspicion rapidly growing in his mind. The place was owned by Vorse, for one thing, and the number about the house was too large for an ordinary Mexican family merry-making, for another. In view of what had occurred the previous night all “parties” in the neighborhood of the dam deserved inquiry, and this house was but a mile from camp.

They could now hear the sound of music, the shrill quick scrap of a pair of fiddles and the notes of guitars. Against the fire-light too they could distinguish the whirl of skirts.

“Just run over there, will you, Martinez, and have a look at that dance?” Weir said. “See how much whiskey is there, and who the people are.”

The Mexican jumped down, climbed through the barb-wire fence bordering the field and disappeared towards the house.

“I told you about some one giving the men booze last night,” the engineer addressed his remaining companion. “We found the place off south along the hills where that business happened, and stationed a man there to warn us if another attempt was made to use the spot. But I shouldn’t be surprised if this is the location used for to-night; it has all the signs. We suspected that this evening would be the real blow-out and if the men are going there I shall send down the foremen and engineers to break it up. Vorse’s owning this house and his being the source of the liquor is almost proof. I met Atkinson returning to the dam when you sent him back from town and he’ll know something is up if the workmen have been melting away from camp. This is simply another damnably treacherous move of the gang against us to interfere with our work, starting a big drunk and perhaps a row. We’ll stop it right at the beginning.”

“Are the officials of this county so completely under Sorenson and his crowd’s thumbs that they won’t move in a case like this?” Pollock questioned.

“Yes.”

“Then we must act on our own initiative, as you say.”

“That’s our only recourse. Giving whiskey isn’t actually an illegal act—and they’re giving it away, not trying to sell it here without a government licence.”

“The thing’s illegal if it’s part of a conspiracy to disrupt our work, and if we can secure proof that such is the fact it will but add one more item to the score to be settled with these San Mateo outlaws.”

“There are more men going there. See them?” Weir asked. “You hear them on the road ahead of us. They’re ducking through the fence and crossing to the house. Our workmen. The thing’s plain now; they had word there would be another ‘party’ to-night, but they didn’t know just where until they received word this evening. I suppose the whole camp except a few men will be here.”

“Won’t they turn ugly if you interfere?”

“Can’t help that. I’ll send men down with axes and when the booze²²² is poured on the ground it makes no difference then; the men will be kept sober. If they are stubborn, I’ll run a new bunch in and fire these fellows. But I don’t imagine they will quit work, however surly, for they know whiskey’s no excuse. Men usually cool down after a night’s sleep.”

From where they sat and since Weir had turned out his car lamps, they could see the steady string of men emerging from the darkness of the field and approaching the house, to quickly dissolve in the gathering already there. In their lively steps, as well as in the eager voices occasionally raised along the dark road, the men’s desire to join in the debauch was apparent.

With the swelling of the crowd the scraping of the fiddles became louder, the dancing more furious, shouts and yells more frequent, while a dense line of men passing and jamming in and out of the door pointed only too plainly that inside the house liquor flowed. This would be no matter of a few drinks per man, but a big drunk if not stopped.

Martinez confirmed this opinion on his return.

“There are two barrels inside and a couple of fellows are dipping it up in tin cups like water,” said he. “They’re not even troubling to draw the stuff; the barrels have been placed on end and the heads knocked out. It will be the biggest spree San Mateo ever saw, with plenty of fighting after awhile. Women, you know, always start fights during a spree.”

“Those surely are not women from town,” Weir exclaimed.

“Oh, no. I never saw them before. Brought in here from somewhere—Santa Fé perhaps, El Paso more likely. You know the kind who would mix with that crowd—tough girls. They’re wearing low necks and short skirts, red stockings and all that. You know the kind. Out of joints and dives somewhere. There’s only a dozen, but they keep circulating and dancing with different ones. I just put my head through a window to look inside, which is lighted by a big kerosene lamp hanging from the roof; and I tell you, gentlemen, it made me sick the way those two fellows were dipping up whiskey and the crowd drinking it down.”

“And more men coming all the time,” Weir stated.

“And more coming, yes. It will be very bad there by midnight. Vorse and Burkhardt and Sorenson are managing the thing, of course.” Martinez lighted a cigarette and stepped into the car. “No mistake about that, for Vorse’s bartender is one of the men at the barrels. And I imagine Judge Gordon knew this thing was coming off though he made no mention of it.”

“Since we were ignorant of the matter, he naturally wouldn’t inform us,” Pollock remarked, dryly.

“Time to put a stop to the show before it grows bad,” Weir stated resolutely. And he started the machine.

“If it can be stopped,” Martinez replied.

That was the question, whether or not now it would be possible even to reach and destroy the barrels inside the house, what with the numbers who would oppose the move and what with the state of intoxication that must rapidly prevail at the place.

For as they drove away they could already detect in the mad revel about the old adobe dwelling a faster beat in the sharp shrieking music, a wilder abandon in the movements of the figures about the flames, a more reckless, fiercer note in the cries and oaths.

“This is deviltry wholesale,” Pollock said. “On a grand scale, one might put it.”

So thought a horseman who approached and halted almost at the same spot where the car had rested. This was Madden who with a warrant for Weir’s

arrest in his pocket had arrived opposite the house a moment after the automobile's departure. He had secured the warrant at eight o'clock according to the county attorney's request, but he had taken his own time about setting off to serve it.

For a quarter of a mile he had been interested in the evidences of unwonted hilarity at the usually untenanted structure. Now he sat in his saddle, silent and motionless, observing the distant scene. He easily guessed the men were from the construction camp and that liquor was running.

"I can almost smell it here, Dick," he addressed his horse.

But two circumstances puzzled him. One was that there had been no news in town of such a big affair impending for the night; the second, that there were women present—for no Mexican, however ignorant, would take or allow his women folks to attend such a howling show. Coming on top of the crowd in town, he wondered if this business might not be linked up with Weir's affairs. These were his workmen and this was Vorse's farm-house and very likely Vorse's liquor. After he had arrested the engineer he would look into the thing.

Fifteen minutes later, when he had gone on, other passers-by paused for a minute on the road to stare at the amazing picture across the field. These were Dr. Hosmer and Janet, Johnson and his daughter Mary: the two men being in the doctor's car, the two girls in Janet's runabout.

"What on earth is going on there!" Janet exclaimed, when the two machines had pulled up.

The two fires, fed by fresh fuel, were leaping higher than ever, bringing out in strong relief the long squat building, the dark, restless, noisy throng, and the space of illuminated earth. Against the night the flames and building and mob of hundreds of men seemed a crimson vision from some inferno to an accompaniment of mad music.

"The camp's gone on a tear; drive ahead," her father said. "This isn't a sight for you girls to look at."

And with that the two cars sped forward towards the dam, where on this night so much was converging. For their occupants already had had an experience that had started them at once to seek the man around whose figure were swirling a hundred passions and dark currents of destiny.

CHAPTER XXIII

WITH FANGS BARED

That Sunday afternoon Janet Hosmer had awakened about sunset from an after-dinner sleep, rested and refreshed, with her mind continuing to be occupied by thoughts of Steele Weir about whom had eddied her dreams. The man was no longer the mystery he had been, since now she knew all the circumstances of his life, and on that account was nearer, more human, and yet as compelling.

That on his part his interest went beyond mere friendship she had recognized from his voice and eyes when they were together. Ah, in truth, how his tones deepened and his look betrayed his feelings! At the thought Janet's heart beat faster and her cheeks grew warm and an indefinable joy seemed to fill her breast. She would not deny it: his presence, his touch gave her a greater happiness than she had ever known. At a single stride, as it were, he had come into the middle of her life and dominated her mind and changed her whole outlook.

How he too had changed and grown in the coming! From the avaricious, calculating, heartless manager of the construction work, as she seeing through colored San Mateo eyes had believed him to be, he now stood forth a figure of power, undaunted by difficulties, undismayed by enemies however numerous, fearless to a fault, stern perhaps—but who would not have been made stern in his place?—and determined, cool, resourceful, alert, and of an integrity as firm and upright as a marble shaft. Yet beneath this exterior his heart was quick and tender for those who needed sympathy or help, and his hand swift to aid.

More than once a hot flush burned on Janet's face, as sitting there on the vine-hung veranda in the gathering dusk, recollection assailed her with memories of wasted kindnesses given the infamous Ed Sorenson, of trust bestowed and of love plighted. That passage in her life seemed to leave her contaminated forever. It burned in her soul like a disgrace or a dishonorable

act. But Steele Weir—and she swam in glorious ether at the thought—did not appear to view it in that light.

Juanita running in the twilight to the house interrupted her introspection.

“I came to tell you,” the Mexican girl exclaimed panting before Janet.

“Tell me what?” For Juanita’s reappearance in itself was unusual, as Sunday afternoon and evening were her own to spend at home.

“People are saying Mr. Weir is to be arrested and hanged from a tree in the court house yard! Everybody has come to town to see. Three uncles and aunts and nine cousins of ours have already come to our house from where they live four miles down the river. All the town is talking about it. But though I said nothing, I knew how Mr. Weir had saved you and that he had done nothing to be hanged for. If anybody is to be killed it ought to be that Ed Sorenson.”

“Are you sure of this, Juanita?”

“Yes, yes, Miss Janet. It is so.”

“Then this is part of the plot against him; let me think. They might arrest him but they would never dare try to hang him, unless they could pretend——”

What they might pretend Janet never stated, as at that instant a motor car dashed up and stopped before the gate. Even in the gloom she made out that the figure garbed in a gray dust coat was Sorenson’s. Springing out of the machine, he jerked the gate open and strode towards the house, while a premonition of a fresh and unpleasant turn of affairs quivered in Janet’s mind.

“I’ve come back again, you see,” he said. “Step inside where you can hear what I have to say.”

The words were like an order; the man’s manner, indeed, was overbearing and brutal. But the girl concealing her resentment, preceded him into the house and bade Juanita light a lamp.

“And now you get out!” Sorenson commanded the servant in so savage a tone that she fled to the kitchen without waiting to consult Janet’s eyes. “I see your father isn’t here,” he continued, addressing Janet.

The latter made no reply. To be sure, Dr. Hosmer was not in the room but he was in the house, sleeping. Let the cattleman think him absent if he wished.

“So much the better; if he’s not about, he won’t try to interfere,” the man went on. “Now, my girl, I’ve learned all about your tricks, and——”

“Sir, you talk like that to me in my own house!” Janet broke in, with a flash of eyes. “You will walk out of that door this instant and never set foot here again.”

“Will I, you slippery young Jezebel? I’ll do nothing of the kind until I’m ready, which will be when you’ve handed over that paper. Don’t try to deny that you have it or Weir has it; I suppose he has now, and I’ll be forced to go shoot him down as he deserves. But I came here first to make sure. It would be just like the rest of the schemes of you two to have you keep it, thinking I’d be fooled. I have half a notion to wring your white neck for lying to me to-day—lying, while all the time you knew my son was hanging between life and death.”

So savage was his voice, so threatening his visage and air that Janet retreated a step. His hands worked as if he actually felt her soft throat in his clutch; his huge body and big beefy head swayed towards her ominously; while his eyes carried a baleful light that revealed in full intensity the man’s real brutal soul. Hitherto carefully coated in an appearance of respectability fitted to a station of wealth, influence and prominence, he now stood as he truly was, domineering, repellant, lawless. Janet could at that minute measure the close kinship of father and son.

“Fortunately a man in Bowenville recognized Ed, or I should never have known he had been injured,” Sorenson went on. “So your little scheme to keep me in ignorance went wrong. The doctor ’phoned me about five and I took my wife and we rushed there, and I have just this instant returned. Do you know what the doctor says? Ed will live, but be a life cripple, a useless wreck, a bundle of smashed bones, always sitting in a chair, always eating out his heart. And all because of you and that engineer! Ed was conscious; he told me the real story about which you lied,——”

“I did not lie,” Janet stated, firmly.

Sorenson made an angry gesture as if to sweep aside this declaration.

“He told me how you promised to slip away with him to spend a week in the mountains, and how you warned this Weir so that the two of you could trick my son and get him out of the way. You, who always pretended to be so innocent and virtuous! And then Weir caused the accident up there in the hills that has crippled my boy for life! Did it to get him out of the path to you, and you helped, like the traitress you are; and the two of you took the paper.”

Janet’s form had stiffened at these insulting speeches.

“Your son is the liar,” said she. “Did he tell you how he flung a blanket over my head as Juanita and I were coming out of Martinez’ office? How he tied my hands and feet and carried me off like a victim—and victim he intended me to be! Yes, Mr. Weir rescued me because Juanita met and told him what had happened and he followed. Your son was drunk. He tried to commit a crime because I had rejected him a week before, on learning that during our engagement he had endeavored to mislead another girl. A drunkard and a criminal both, that’s your son. And he alone brought on his accident by his drunken, reckless driving. Now I’ve told you the truth; leave the house!”

“You can’t put that kind of a story over on me,” he snarled. “I believe what Ed said. Even if he has had affairs with other girls, that makes no difference now. You tried to double-cross him; you’ve wrecked his body and life; and you shall pay for it.”

Neither of the pair in their intense excitement had heard a wagon drive to a stop before the house. Whether in fact they would have heard a peal of thunder might be a question. Sorenson, enraged by his son’s injury and burning for revenge, was oblivious to all else but his passion, while Janet Hosmer, divided between contempt and fear, had but the single thought of ridding herself of the man.

“You cannot injure me,” she said, in reply to his savage utterance.

“I’ll drive you and your father out of this town and this state,” he exclaimed. “They shall know here in San Mateo, and wherever you go if it’s in my power to reach there, what sort of a pretending, double-faced, disreputable wanton——”

“You coward!” Janet burst out.

Then she turned to flee out of the room to arouse her father. But Sorenson was too quick for her; he sprang forward and seized one of her wrists.

“No you don’t, you perfumed wench!” he growled.

A scream formed on Janet’s lips. The heavy, rage-crimsoned face bent over her as if to kill her by its very nearness. Brute the man was, and as a brute he appeared determined she should feel his power. She pulled back, jerking to free herself, and shrieked.

Intervention came from an unexpected quarter. Rushing into the room came the rancher Johnson, followed by his daughter.

“Let go of her,” the man ordered, harshly.

Sorenson looked about over his shoulder.

“Keep out of this, and get out,” he answered.

Johnson leaped forward and struck the other on the jaw. The cattleman releasing his hold on Janet staggered back, at the same time thrusting a hand under his coat.

But the rancher’s pistol was whipped forth first.

“You’d try that game, would you?” Johnson said, with his ragged beard out-thrust and stiff. “Put up your hands; I want to see how they look sticking up over your head.”

Sorenson though now holding them in sight did not at once comply.

“Johnson, you’re butting into something that doesn’t concern you,” he said, endeavoring to speak calmly.

“You’ve made one mistake in striking me; don’t make another by keeping that gun pointed at my head. Remember I’ve a mortgage on your place that you’ll wish renewed one of these days.”

The expression of scorn on the rancher’s face was complete.

“Trying that line, are you?” he sneered. “Think you can play the money-lender now and scare me? You didn’t look much like a banker reaching for your gun; you just looked like a killer then, a plain bar-room killer—but I beat you to the draw. You’ve got fat and slow, haven’t you, since early days when you use to put lead into poor devils whose stuff you wanted. And you

didn't look like a banker to me, either, trying to bulldoze Janet when I came in; you looked like the big dirty coward you are. Aha, here's the doctor! Now just tell him how it comes you can order me out of his house, and why you were threatening Janet and making her scream."

The physician turned a white, angry countenance to Sorenson.

"I heard the scream. Is it true you were abusing my daughter?" he demanded, stepping in front of the man.

"I came here because I learned my son Ed had been broken to bits through her trickery and damnable——"

The words were cut off by the doctor's hand which smote the blasphemous lips uttering them.

Even more than Johnson's blow did this slap upon the mouth enrage the cattleman. His face became congested, his shoulders heaved, but behind the doctor was the revolver still directed at his head.

"You've come here uninvited and you've said too much," Doctor Hosmer stated in cold even tones. "You may be the town magnate, but you're only a ruffian and a crook after all. You can't bluff or bully us. More than that, you've insulted my daughter and me beyond any future reparation. As for your son, he got less than he deserved." He turned to the rancher. "You came just in time, it seems. Please see that he leaves the house."

Johnson waved with his gun significantly towards the door.

"Move right along lively," he added. "And I'll go along with you to see that you don't hamstring my horses, which I don't put past an underhanded cattle-thief like you."

Sorenson seemed striving for words that would adequately blast those before him, but they appeared lacking. With a last malignant glare he walked out upon the veranda and down across the yard, with his guard following him.

When Johnson returned after Sorenson's departure in his car, he was grinning sardonically.

"I shouldn't want him running among my cattle; he'd bite 'em and give 'em the rabies," he remarked.

Janet caught and pressed his toil-roughened hand.

“You’ll never know how much I thank you for coming in just when you did,” she cried.

“Pshaw, your father would have showed up and stopped him.”

“I’m not so sure. Father has no weapon, and that man did have one. It was the sight of your pistol that made him cower. You couldn’t have chosen a more lucky minute to arrive.”

“Well, it was a little bit timely, as it turned out. Considering too that we were coming to see you anyway, it was just as well to walk in when we could do some good. Mary has something for you to read, if you read Spanish.”

“Yes, I do.”

“That’s good. Show ’em what you have, daughter.”

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Mary drew a knotted handkerchief from her bosom and undid the knots. Appeared the doubled paper she had found. This she passed to Janet.

“Why,—why, this is the document I had!” the latter exclaimed, joyfully. “Where did you find it?”

“Up by the smashed automobile, when father and I were at the cabin.” She exchanged a guarded look with her father. “There are names in it that made me think it might be valuable. So when father came back from Bowenville I showed it to him. But neither of us could read it. We thought we’d better bring it to you to read.”

“It is valuable, very valuable. I had it when I was seized by Ed Sorenson and he took it away from me. Evidently, then, it fell from his pocket at the time of the accident. Yes, indeed, it’s important. It means everything to certain parties. I’ll read it, but you understand what it tells is private at present.”

“We understand—and I think I know what it’s going to say,” Johnson remarked, grimly.

Thereupon while the others listened Janet read a translation of the long document. To her and her father the facts were not new, for Weir had already related such as he knew of the happenings in Vorse’s saloon on that

eventful day thirty years previous. Nor for that matter were they strange to Johnson and his daughter, though of course neither Janet nor her father were aware of the rancher's more intimate knowledge of the subject.

"A pretty good story as far as it goes, but like all lawyers' papers long-winded," Johnson stated, critically.

"What do you mean, far as it goes?" Janet asked, curiously. "Did you know this old Mexican? Did you ever hear him tell about the thing?"

"I knew he was there at the time, but he never told me anything."

Here Dr. Hosmer spoke.

"Saurez died yesterday. It must have been shortly after he made this deposition. He died in Vorse's saloon, which gives a color of suspicion to his death. In addition, Martinez, as you know, was dragged away somewhere."

"Then Vorse learned old Saurez had blabbed, and killed him," Johnson said, in a convinced tone. "Vorse is a bad bird, I want to say. But so are all of them, Sorenson, Burkhardt and Judge Gordon as well."

Janet brought the talk back to the subject.

"You make me still wonder, Mr. Johnson," she said. "You seemed to think there's more to the account than is told in this paper."

Again the rancher and his daughter glanced at each other, hesitatingly.

"Tell them, father," Mary broke forth all at once. "They know this much, and you know you can trust them."

The man, however, shook his head with a certain dogged purpose.

"If this is just a paper in some trifling lawsuit or other, it will be better if I keep my own counsel," he stated. "I've riled Sorenson considerable as it is now, and I don't care particularly about having him gunning on my trail active-like. If it really mattered——"

"It does matter; it matters everything," Janet cried, "if you really know something more!"

"Why?"

“Because it concerns Mr. Weir. The Joseph Weir described and named²³¹ in this affidavit was his father. He believes these men robbed his father; this paper proves it, but not absolutely, for Mexican evidence here in this country doesn’t carry as much weight against white men—especially men as rich and strong as these named—as it would in other places perhaps. You know that. This paper was obtained for Mr. Weir.”

“Oho, so that’s the way of it!” Johnson said, with a long drawn-out tone.

He regarded the paper in silence for a time, busy with his thoughts, absently twisting his beard, until at length a look of satisfaction grew on his face.

“Well, well, this is fine,” he went on presently. “I never thought I should be able to pay the obligation I owe him, and I won’t fully at that, but this will help. No, that paper doesn’t tell all, for I reckon Saurez didn’t see all.” He glanced triumphantly at the doctor and the girl. “But I did.”

“You!” both exclaimed.

But before he could explain, the memory of the cattleman’s threat recurred to Janet to banish thoughts of aught else than Weir’s danger from her mind.

“Mr. Sorenson said he was going up to the dam to shoot Mr. Weir,” she exclaimed. “We must give warning.”

“Did he say he was going himself?” Johnson asked.

“To get the paper, yes.” Then Janet continued anxiously. “But the paper isn’t all. His son told him what occurred in the mountains and I believe the man wants to harm Mr. Weir as well as to obtain the paper. Perhaps he plans on gaining the document first, then killing him. In any case, we must put Mr. Weir on guard.”

“I’ll just drive up there and tell the engineer,” Johnson stated. “Shouldn’t²³² be surprised if I got a chance yet to use my gun. You girls can stay here.”

Janet gazed at him with a flushing face.

“The man could go to the dam and kill Mr. Weir and get safely home while you’re starting with your team,” said she. “No, we must drive there in a car. Father, you take Mr. Johnson in yours, and I’ll carry Mary in mine. We’ll go along of course, for we’ll not remain here in the cottage alone with such terrible things happening in San Mateo.”

And to this there was no dissent.

CHAPTER XXIV

THE ALARM

At the dam Weir found Meyers and Atkinson anxiously waiting his return. The sudden concerted melting away of workmen from camp had been warning to his subordinates that the danger of a general spree had taken definite form, which the report of a pair of young engineers confirmed when they followed a group of laborers to the old adobe house and beheld the beginning of the debauch.

“Get out all the staff, Meyers, and you, Atkinson, all the foremen and sober men left, then go down the road and put that joint out of business, taking axes and whatever is necessary.”

“And if they fight?” Meyers asked.

“Try first to placate them. If that fails, some of you draw them off in order to permit the others to enter the house and destroy the whiskey. It’s a tough job, but you may succeed. If the crowd turns ugly as it may, being drunk, come back. No need to take the risk of broken heads or being beaten up. See, however, if you can’t outwit the outfit. Possibly you could push that mud house over from the rear by means of a beam; that would do the business. I leave it to you to decide what’s best to do, men, after you’ve examined the situation.”

“The camp will be unguarded except for you and the two men with you,” Weir’s assistant suggested. “If the crowd drinking down at that place should take the notion to come here and tear things up, there would be nothing to hinder them. A few should stay, anyway, I imagine—half a dozen, who can use guns.”

“Well, pick out six to remain,” the other agreed.

For Meyers’ suggestion had raised a disagreeable possibility. It was never safe to ignore precautions when a gang of two or three hundred rough, active laborers, however loyal when sober, were made irresponsible and

crazy by liquor; and one stage of drunkenness in such men was usually manifested in a wild desire for violence. The scheme of Weir's enemies might comprise using this very act for wrecking the camp.

Six men, to be sure, would offer little resistance to stemming the movement once it was started, but the sight of steel in the guards' hands might cause even a reckless mob to pause long enough for an appeal. If the men should be brought to listen, they could probably be diverted from their purpose, as impassioned crowds are easily swayed by men of force.

In any case the camp and dam should be defended to the last. That went without saying.

Meyers and Atkinson had little more than departed with their muster of engineers, foremen and sober workmen, some fifty in all, when the two cars driven by Dr. Hosmer and Janet arrived at headquarters. To the occupants of both machines the camp appeared singularly dark and silent, the office building and the commissary shack alone showing lights.

The four visitors entered the main room in the former building, where they found Mr. Pollock and Martinez.

"Mr. Weir stepped out for a moment to make a round of the camp and the horse corrals," the easterner replied in answer to an inquiry from the doctor. "Will you be seated?" And he politely placed chairs for Janet and Mary, while his look scrutinized the party with discreet interest.

"Oh, Mr. Martinez, you've escaped!" Janet exclaimed, after a surprised stare at the lawyer.

The Mexican smiled, bowed and drew one point of his black mustache through his fingers.

"I have indeed, Miss Janet," said he. "Not without an unpleasant experience, however. I understand you secured the paper concerning which I telephoned you, and though I understand it has since been lost—through no fault of yours—I desire to express my thanks for your excellent assistance in the matter."

"But it has been found again; we have it with us."

Martinez gave a start, none the less sincere for being dramatic.

“What! Saurez’ deposition? Weir thought it burned. Why, this is the most wonderful luck in the world! It gives us the whip-hand again.”

Janet nodded.

“Mary Johnson here found it in a crack in the rocks when she and her father went up to the cabin to bring Ed Sorenson down. Father has it. That’s one reason we’re here. But there’s another; Mr. Sorenson has learned of his son’s accident, has seen him, talked with him, been told lies and now is in a dreadful rage, threatening every one concerned. He was at our house and made a scene. He’s coming here, or so he said, to kill Mr. Weir and obtain the document. So we hurried to the dam to give warning.”

At this juncture Mr. Pollock stepped forward.

“Mr. Sorenson hasn’t yet appeared, and I assure you he will be prevented from harming any one if he comes. You are Miss Janet Hosmer, I judge, of whom I’ve heard so much that is praiseworthy. Will you allow me to introduce myself? I’m Mr. Pollock, a company director, and to a degree in Mr. Weir’s confidence.”

Janet expressed her pleasure at his acquaintance and in turn introduced her father and the Johnsons.

“Mr. Weir spoke of you to us, but we weren’t aware he had informed you of the paper.” Then she added, “But he would wish to, naturally.”

Weir’s voice, without, in conversation with some one caused them all to look towards the door. In the panel of light falling on the darkness before the house they perceived the engineer’s tall figure by a horse, from which the rider was dismounting. Letting the reins drag and leaving the horse to stand, the latter walked with Weir into the room.

“Why, this is a delightful surprise!” the engineer exclaimed on beholding the four who had come while he was out. “And unexpected.” His eyes rapidly interrogated the different faces. “I suppose it’s business, not pleasure, that brings you.”

“That’s so,” said Johnson, the rancher, nodding.

“Well, Madden is here on business, too, it seems.” He glanced at Mr. Pollock. “Mr. Madden is our sheriff and he has a warrant for my arrest.” He turned back to the officer. “You come at a bad time for my affairs. You saw

that big show at the old house half way down the road? That crowd is made up of my workmen, who are being entertained with free whiskey, and there's no telling but what they may come here to tear things up. The whiskey is furnished by Vorse, I suspect, and is being served at Vorse's place. Your warrant is inspired by Vorse and others, isn't it? The two circumstances coming at the same moment, the free drunk and my arrest, look fishy to me. What do you think? I'm in charge of a property here representing a good deal of money and I should hate to be absent if the men took the idea into their heads to turn the camp upside down, especially if the idea was inspired by Vorse and his friends."

"I haven't served the warrant yet," Madden replied.

"And you know that I'm not going to skip the country at the prospect of your serving it?"

"No. There's no hurry; I'll just sit around for a while. And understand, Weir, this arrest is none of my doings, except officially. I take no stock in the yarn about your having attacked the greaser you killed. Martinez' and Miss Janet's testimony at the inquest satisfied me in that respect."

Mr. Pollock now drew Weir aside for a whispered conference. When they rejoined the others the engineer made the lawyer acquainted with the sheriff.

"Mr. Weir has agreed to my suggestion to take you into our confidence, Mr. Madden," he stated. "There may be other warrants for you to serve soon, and I'm sure you will respect what we reveal. All of us here except you know the facts I'm about to relate; indeed, have shared in them to an extent; and in addition to our word we'll present proof. You know Dr. Hosmer and his daughter certainly, you probably know Mr. Johnson and the young lady with him, and are aware whether their statements are to be relied on."

"They are," Madden answered, without hesitation.

"You're already convinced of the truth of Weir's innocence in the charge of murder now being preferred against him. Well, now, a friend at court is worth something; and we propose to make you that friend."

"I'm not against him like most of the town, anyway," was the sheriff's answer.

“Go ahead with your explanation,” Pollock said to the engineer.

Thereupon Weir briefly sketched out events for the officer as they had occurred and as showing the motives which had inspired his enemies in seeking to destroy him:—the original plot against his father, his determination to uncover the four conspirators, the episode at the restaurant in Bowenville, the discovery of Ed Sorenson as the hirer of the dead Mexican assassin, the obtaining of Saurez’ deposition and Martinez’ imprisonment in Vorse’s saloon cellar, Janet’s abduction and rescue and the loss of the paper.

“But the paper isn’t lost,” Dr. Hosmer interrupted. “Mary Johnson found it and here it is.” With which he drew the crumpled document from his breast pocket and laid it on the table.

“You have it again!” Weir exclaimed. “You found it, Mary!” He stepped forward and took the girl’s hand in his for a moment. “You’re a friend indeed to bring this back to me.”

“I owed you more than that,” she said, coloring.

“But Mr. Sorenson has learned about his son and the paper and everything that happened, except Ed Sorenson told him lies instead of the truth,” Janet put in. “He’s terribly angry at all of us. He said he would kill you for crippling Ed.”

“Sorenson is welcome to try,” Weir responded, with a quick blaze in his eyes.

At this point Mr. Pollock interposed.

“You didn’t finish your story, Weir. Relate for Mr. Madden’s benefit what occurred at Judge Gordon’s house.”

This tragic conclusion to the afternoon’s happenings the engineer told, though remarking that the company director should be the true narrator. At his announcement that Judge Gordon had taken his own life by poison his listeners remained dumbfounded.

“He’s dead, then?” Madden asked, at last.

“Yes. And the transfer of property made to Mr. Pollock amounts to an acknowledgment of his guilt. Now, I should like to have Martinez read this

deposition, for I've never heard its contents myself."

This the Mexican did, translating the Spanish paragraphs into English with fluent ease, ending by reading the list of witnesses. Martinez gave the paper a slap of his hand.

"And old Saurez was found dead in Vorse's saloon by me an hour after he had signed this," he said. "Draw your own conclusions."

Madden shifted on his seat. He glanced at the document and at the others and then gazed out the door at the darkness.

"Looks like a clear case; I always imagined if these men's past was dug into there would be a lot of crooked business turned up. But granting that everything is as shown, with Lucerio the county attorney under Sorenson's thumb and the community as it is there's a question if Saurez' statement even will be enough to convict them."

At that Janet jumped up, her eyes gleaming.

"That is not all the proof, not all by any means!" she cried.

"What more is there?"

"Mr. Johnson's evidence."

"Johnson's!" came in surprised tones from all four of the men uninformed of the rancher's story.

"Yes, he saw the man Dent killed and the plotters make your father, Mr. Weir, believe he had done the killing."

Steele stared at Johnson dumbfounded.

“Just that; I saw the whole dirty trick worked, looking through the back door of the saloon.”

“Then you were the boy!” Weir gasped. “The boy who looked in! After thirty years I supposed that boy gone, lost, vanished beyond finding.”

“I stayed right here,” was the reply. “Of course I kept my mouth shut about what I had seen. I worked on ranches and rode range and at last got the little place on Terry Creek and married. Nothing strange in my remaining in the country where I grew up, especially as I only knew the cattle business.”

Weir swung about to Madden.

“Here’s a live witness,” said he. “With the other proof his evidence should be final.”

“Whenever you say, I’ll arrest the men. As for this warrant I have, I’ll just continue to carry it in my pocket,” the sheriff stated. “I must remark that I never heard of a more villainous plot, taking it all around, than you’ve brought to light.”

“And the charges must cover everything,” Pollock said sternly. “From Dent’s murder to the conspiracy against the irrigation company.”

“I’ll stay here in case you need me to stop any trouble with your workmen,” Madden remarked.

But trouble though imminent was coming from another direction, as was suddenly shown when a man, dust-covered and hatless, rushed into the office.

“They’re on the way,” he cried.

“Who? The workmen?” Weir demanded.

“No. I don’t know anything about the workmen, but a bunch of Mexicans, fifty or more, are headed this way to blow up the dam. I saw and heard them.”

“Where?”

“At the spring a mile south. I was watching down there, where Atkinson had sent me after supper, relieving the man who kept lookout during the

afternoon. That was where the booze was dealt out last night, you remember. I was sitting there when I heard a crowd coming. At first I thought it was our men, but when they stopped to drink and smoke, I saw by their talk they were Mexicans. But there was one white man with them, a leader. He and a Mexican talked in English. They're to raid the camp, crawling up the canyon, to dynamite the dam first, then fire the buildings."

"Then they're on the road here now?"

"Yes." The speaker licked his lips. "I cut along the hillside until I got ahead of them, but it was slow going in the dark and stumbling through the sage. They must be close at hand by this time, though I came faster than they did. The white man said to the Mexican that they wanted to reach the dam just at moonrise, and that will be pretty quick now."

"Go to the bunk-house and call the men waiting there, and get a gun yourself," Weir ordered. "The storekeeper will give you one." When the messenger had darted out, he looked at the others. "You must take these girls away from here, doctor, at once."

"But I don't go," Johnson snapped forth, drawing his revolver and giving the cylinder a spin.

"I never could hit anything, and haven't had a firearm in my hand for years, but I can try," Pollock stated. "This promises to be interesting, very interesting."

"Very," said Weir.

For a little he stood in thought, while the others gazed at him without speaking. His straight body seemed to gather strength and power before their eyes, his clean-cut features to become hard and masterful.

"Up the canyon he said they were coming, didn't he?" he remarked at last, more to himself than to them. "Very well, so much the better. Johnson, you and Madden take charge of the men when they come and line them along the hillside this side of the dam. Put out all lights." With which he strode out of the building.

They looked after him in uncertainty.

"I'm not going; you may be hurt, and need me," Mary stated, with a stubborn note in her voice.

“Then keep out of reach—and run for town if the ruffians get into camp,” was her father’s answer.

“I stay too,” Janet exclaimed, resolutely.

CHAPTER XXV

NO QUARTER

The peril threatening the unfinished dam now alone engaged Steele Weir's mind. Personal considerations did not enter into his calculations, least of all thought of personal danger; for when he placed himself in an undertaking whatever rested under his hand, as in this case the irrigation company's property, became for him a trust to attend, to direct, to guard. Even more than if it had been his own property did he feel the obligation, for the interests concerned were not his. But the matter went deeper than a prospective money loss; it struck down to principles and rights—the principles of order and industry as against viciousness and havoc; the rights of law-abiding men who create as against the wantonness of lawless men who would destroy.

Were it his own workmen who, inflamed by drink and incited by a spirit of recklessness, were coming to wreck the camp in a moment of mad intoxication, he would have made allowances for the cause. Before resorting to extreme measures in defending his charge, he first would have sought to bring them to their senses. Drunken men are men unbalanced, irrational.

But here was another case: an attack by a secret, sober, malevolent band, who in cold blood approached to demolish the company works. Not liquor moved them on their mission, but money—money paid by his arch enemies. The men were simply hired tools, brazenly indifferent no doubt to crimes, desperate in character certainly, for a handful of coins ready to wipe out a million dollars' worth of property and effort. Such deserved no consideration or quarter.

Weir proposed to give none. With enemies of this kind he had but one policy, strike first and strike with deadly force. One does not seek to dissuade a rattlesnake; one promptly stamps it under heel. One cannot compromise with ravenous wolves; one shoots them down. One does not

wait to see how far a treacherous foe will go; one forestalls and crushes him before he begins. Moreover, if wise, one does it in such fashion that the enemy will not arise from the blow.

With the information given him by the guard posted at the spring Weir immediately grasped the true nature of the plot. The “whiskey party” was but a means of withdrawing the workmen from the scene, of weakening the camp, while a picked company of ruffians wrecked the property. It was an assault intended to wipe out the works and end construction, coincident with his arrest. Both the company and he were to pay the penalty for resisting the powers that rule San Mateo. And if the tale were spread that the destruction had been wrought by his workmen while drunk, who would doubt it?

Like shadows the band of Mexican desperadoes would come, dynamite the dam, fire the buildings, stampede the horses, and like shadows vanish again. In the unexpectedness of the raid, in the confusion, in the dim light, no one would with certainty be able to say who the assailants were. A scheme ferocious in its conception and diabolical in its cunning! But there was one flaw—the element of chance. Chance had given Weir warning.

A strong man warned is a strong man armed.

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As the engineer stood in the office, swiftly measuring the imminent menace of which he had just been told, calculating the meager instruments of defense at hand, his mind sweeping up all the salient aspects, features, advantages and disadvantages of the situation, he seized on the one weak spot in the attacking party’s plan. At that spot he would strike.

So giving Johnson and Madden the order to take charge of the little handful of guards, he had plunged out into the night.

The men from the bunk-house were already running toward the office, before the door of which the rancher gathered them together to make sure of their arms and ammunition. All told, when Martinez and Pollock presently came from the store with guns, the little party numbered eleven.

“Is this all there are of us?” Dr. Hosmer asked.

“We are worth all that crowd that’s coming,” Johnson exclaimed, taking a spare gun Martinez had brought him.

“Did Weir send the rest of the engineers down to that house? I understood so.”

“That’s where they are, I reckon.”

Dr. Hosmer considered for a minute.

“I can be there in five minutes in my car. The road is on the north side of the stream, as is this camp: the gang that’s heading here to blow things up is coming up from the south, so it will not block the way. Men could be here in twenty minutes from down yonder by running.”

“A good suggestion, doctor,” Pollock said. “It may take you a bit longer to find and tell them what’s occurring, but even so they may return in time. Fifty, or even twenty, might give us enough assistance to beat off the attack.”

“There comes the moon,” said the man who had been at the spring. “They must be near now.”

Far in the east the moon was stealing above the horizon. Under its light the mesa took form out of the darkness—the level sagebrush plain criss-crossed by willow-lined ditches and checkered by small Mexican fields, the winding shimmering Burntwood River with its border of cottonwoods, the narrow road, the distant town of San Mateo, a vague blot of shadow picked out by tiny specks of light.

The mountains too now reared in view, silent, silvered, majestic, towering about the camp on the lower base. One could see, as the moon swam higher, the low long buildings of the camp clustered on the hillside above the canyon, in the bottom of which was the dashing stream and the bone-white core of the dam.

“Look down yonder on the other side!” Martinez exclaimed suddenly, pointing a long thin forefinger at the mouth of the canyon where a group of black dots were moving up the river.

“That’s them,” said the man who had given the warning.

“And they’re armed,” said another. “You can see the moon shine on their gun-barrels.”

On the opposite side of the stream, some two hundred yards below the dam and three or four hundred feet lower in elevation than the camp, advancing up the canyon in a string, the men looked like a line of insects.

“I’m off for help,” the doctor said, springing into his car. “Janet, you and Mary go higher up among the rocks and hide if these buildings are attacked.” Away he went, buzzing down the hillside to the long stretch of road.

Weir now came into sight, walking quickly towards the group. That he saw the Mexicans down in the canyon was evident from his swift appraising glances thither.

“Johnson, move your men down halfway to the dam and have them scatter there behind boulders. I shall go still lower down,” he said. “You will hold your fire until I signal with my hat from the dam.”

“You’re going to the dam?”

“Yes.”

“We ought to go with you.”

“I don’t need you. You’ll be more effective hidden above. You’ll have plenty of light as the moon is shining squarely in the gorge. And await my signal.”

“All right; you’re the general.”

“But take no extreme risks, Weir. The company doesn’t ask you to sacrifice yourself,” Pollock stated.

“The sacrifice will be down among those fellows,” Steele replied, with set jaw. “Don’t worry about me. Now, start, men.”

He stood for a little watching the rate of progress of the line of Mexicans ascending the stream, which was not rapid owing to the broken rocks lining the bank. Then he swung about to the two girls.

“Every one here now is under my orders,” he said. “You two will take your car and go at once. This is no place for you.”

“But——” Janet began.

"I'm taking no chances that you shall fall into the hands of those scoundrels," he declared, sternly. "They may succeed in reaching this spot. You must not be here; you must go."

Taking each by an arm he piloted them to the car.

"Sorry, but it has to be," he added. "This is work for men, and men alone." 223

Janet and Mary climbed up into the seat.

"You—you will take care of yourself," Janet said, tremulously.

"I expect to. Still, this isn't going to be a croquet party; anything may happen. Good-by."

With that he swung about and breaking into a run made for a small building half-buried in the hillside and apart from the camp. There he stooped and picked up under each arm what looked like a cylinder of some size and went down towards the dam. For a time they could see him, but all at once he slipped behind an outcrop of rock and they saw him no more.

Janet turned to eye her companion. Once more her face was pale.

"Well?" she inquired of Mary.

"I reckon we'd better do as he says. He'd be awful mad if we didn't. Did you see his eyes when he talked to us?"

"But if he—he and others are wounded?"

Uneasily Mary gazed at the older girl and then down at the canyon. On the hillside the men led by her father were no longer in sight, somewhere concealed among the stones that dotted the earth. But down by the stream and now scarcely fifty yards from the white stretch of concrete barring the river bed through a tunnel in which the water foamed and escaped, the Mexicans were clearly visible, their hats bobbing about, their guns flinging upward an occasional gleam.

"It doesn't seem as if anything was going to happen," Mary went on in awed tones. "Things are so quiet and peaceful."

Still Janet delayed starting the car, divided in feelings between a wish to respect Steele Weir's insistent command and a growing fear for his safety. She could see nothing of him. Into the shadow of a rock he had disappeared 254

and thither she gazed with straining eyes, hoping to see again his straight strong figure.

“Why, look down there at the dam,” Mary said, whose eyes had been wandering from, point to point of the scene. “Isn’t that him?”

Janet’s heart gave a quicker beat, then seemed to sink in her breast as staring downward she recognized the engineer. He had come out all at once from the shade cast by a wooden framework. He had with him the burdens he had lifted from the ground before the little detached stone house at the edge of the camp, and these, the cylinders, he placed on the surface of the concrete core at the spot where he stood. Then he knelt down, struck a match, lighted a cigar—as if any man in his senses would stop to smoke in such a situation!—and busied himself at some task over the cylinders.

Only for an instant had he stood erect on the flat top of the dam. Apparently he had been unseen by the attackers, engaged in picking their footing: and now in his crouching position, retired from the upper edge of the dam’s front as he was, it was very likely that he was wholly out of view of the band.

At last Weir moved his cylinders forward towards this edge. Afterwards he straightened up and standing hands on hips, smoking his cigar, the tiny crimson glow of which rose and fell, he watched the party nearing the foot of the white gleaming wall, fifty feet below him.

For Janet the sight was too much. His indifference to risk froze her; he appeared to be courting death; and she strove to open her lips to send down to him an imploring cry to draw back, but succeeded in uttering only a tremulous wail.

“They’ll shoot him,” Mary was saying, “oh, they’ll kill him!”

A surge of terror swept Janet. Next thing she knew she was out of the car and running down the hillside among the stones and the stalks of sagebrush, frantic to reach him, to pull him out of view of the men beneath. Only a single one of them had to cast a glance upward and to raise his gun and fire, then he would die. He should not die! She should fling herself as a protection before him rather than that he should be slain!

On a sudden a hand reached up from a rock and seized her arm, stopping her with a jerk. Then she was roughly pulled down beside it. The man was

Madden, the sheriff.

“What in hell are you doing?” he demanded harshly. “Have you gone crazy?”

His grip was not relinquished.

“But see him! Aren’t you men going to help him? Are you going to let him be killed?”

Madden forced her to her knees, so that she was sheltered by the outcrop of stone.

“Any man who can smoke a cigar like that at such a time as this knows just what he’s doing,” was the answer. “Keep quiet and watch.”

“Oh, I don’t want to see,” she said. But she continued to look with fascinated eyes at the lone, calm figure on the dam.

Presently Madden pushed his gun forward over the rock.

“They’ve caught sight of him,” he stated.

CHAPTER XXVI

THE THUNDERBOLT

The greater part of the number of bandits had stopped in a group a few yards from the base of the white dam core, though a few stragglers were some way behind. Among these Steele Weir made out the figure of one whom he recognized as a white man; he whom the guard from the spring had mentioned as directing the company; and when at a number of exclamations from Mexicans who perceived the engineer the man lifted his face, Weir saw he was Burkhardt.

No more than this was needed to show whose the hand behind this treacherous conspiracy. Clear, too, it was that Burkhardt, determined that no mistake or abandonment of the operation should occur, had come to see it through in person. Weir could ask nothing better; he had one of the plotters caught in the act.

Apparently orders had been to carry through the first part of the diabolical plan of destruction in silence, that of gaining control of the dam, for when two or three Mexicans flung up rifles to shoot at Weir a sharp word from another Mexican, seemingly their leader, had checked the volley and shouted to Burkhardt.

The latter had stopped; he stared for a few seconds at the man on the white wall above and finally signaled with a wave of his arm.

“Come down here,” he ordered.

But Weir made no move to obey. He continued to stand motionless, coolly regarding the party beneath. His eyes particularly considered two men who carried wooden boxes, square and stout, on their shoulders. At last he spoke.

“What do you want here?”

“Come down, then you’ll learn,” Burkhardt shouted up, making no effort to hide the enmity in his voice.

Weir puffed at his cigar, removed it from his lips to glance at its glowing end, while the Mexicans stared up at him in silence, puzzled by this lone guard who carried no rifle, who did not flee away to spread an alarm and seek aid, and who so unexpectedly had appeared as if anticipating their visit.

Murmurs broke out. Why were they not allowed to shoot him at once in the approved Mexican bandit fashion and proceed to their work? If he were not shot at once, he yet could escape for aid. The party had to ascend the hillside in order to mount to the top of the concrete work. Time would be required to place and fire their charges of dynamite—and they were eager to get at the loot in the buildings above.

“Kill him,” Burkhardt roared suddenly, jerking forth his revolver and blazing at the engineer.

The bullet sang past Weir’s head. He did not duck; indeed, kept his place calmly while the Mexicans were raising their guns, as if to show his supreme contempt for their power. But at the instant Burkhardt fired again and a dozen rifles blazed he sprang back and dropped flat, leaving the deadly missiles to speed harmlessly above the dam.

Raising himself cautiously he seized the end of a fuse projecting from one of the canisters and held the crimson end of his cigar against it until a sputter of sparks showed that it had caught. From this fuse he turned to the one in the second can and repeated the operation.

This was the essence of his plan of defense. With guns the defenders on the hillside would be outnumbered and probably killed in an attack. The information that the assailants were to steal up the canyon, however, was the key that would unlock a desperate situation, and his mind had grasped the mode and means of defeating the enemy.

With the first shots quiet had returned. The night seemed for Weir as peaceful as ever, the earth bathed in moonlight, the camp at rest. Only before him there was the sputter of the two fuses, one at the right, one at the left, as the trains of fire burned towards the holes in the canisters. He watched these calculatingly. His cigar no longer of service had been cast aside.

All at once he rose erect again. A few men were starting along the wall to climb the hillside, but the greater number were gathered about Burkhardt and the Mexican leader. Now Weir glanced at them and now at the fuses.

“I warn you to leave this dam and camp, Burkhardt,” he shouted, when a few seconds had passed. “Don’t say I didn’t give you warning.”

Every head jerked upward at this surprising reappearance and voice. They had supposed him fled, the men down there, and were having a last hasty conference, doubtless as to the wisdom of now first attacking the camp. A grim smile came on the engineer’s face. Their astonishment was comic—or would have been at a moment less perilous and fraught with less grave consequences.

An oath ripped from Burkhardt’s lips. An angry curse it might have been at Madden that he had failed to arrest and hold the engineer according to plan. He gestured right and left, yelling something to the men around him. He himself began to run towards one end of the dam.

Weir stooped, picked up one of the canisters, blew on the fuse now burned so near the hole. Some men perhaps at this instant would have quailed for their own safety and at the prospect of hurling death among others. For death this tin cylinder meant for those below. But there was no tremor in Steele Weir’s arm or heart.

He was the man of metal who had won the name “Cold Steel”—calm, implacable, of steel-like purpose. With such enemies he could hold no other communion than that which gave death. For such there was no mercy. By the same sort of law that they would execute let them suffer—the law of lawlessness and force. Destruction they would give, destruction let them gain.

He straightened. He took a last look at the snapping, sparkling, smoldering fuse, then flung his burden full down upon the spot where the Mexicans were again pointing their guns at him. Swiftly picking up the second canister, while bullets whined by, he cast it down after the first. A glimpse of startled faces he had, of men attempting to scatter from before the huge missiles, then he flung himself full length upon the dam.

Interminably time seemed to stretch itself out as lying there he listened, waited, sought to brace himself for the impending shock. A quick doubt

assailed his mind. Had the charges failed.

All at once the earth seemed rent by a roar that shook the very dam. Followed instantly a second volume of sound more terrific, more blasting in its quality, more dreadful in its power, deafening, stunning, as if the world had erupted.

“Their dynamite!” Weir breathed to himself.

His ear-drums appeared to be broken. His hat was gone. His body ached from the tremendous dispersion of air. But that he could still hear he discovered when through his shocked auditory nerves he distinguished, as if far off, faint booming echoes from the hills.

He got to his knees, finally to his feet. Pressing his hands to his head he gazed slowly about. Stones and a rain of earth were still falling, as if from a meteoric bombardment. About him he perceived sections of woodwork shaken to pieces, collapsed.

Stepping to the edge of the dam he peered downward. A vast hole showed in the earth before the wall though the wall itself was uninjured and only smeared with a layer of soil. Huge rocks lay where there had been none before, uprooted and flung aside by the explosion, dispersed by the gigantic blast. On the hillside half a dozen men were picking themselves up and struggling wildly to flee. Nearer, a few other forms lay in the moonlight mangled and still, or mangled, and writhing in pain. Of all the rest—nothing.

Almost completely Burkhardt’s predatory band had been blotted out. Weir’s thunderbolt had struck down into its very heart, and it had vanished.

As he turned and walked towards the end of the dam, he staggered a little. The sight had shaken even his iron nerve.

CHAPTER XXVII

WEIR STRIKES WHILE THE IRON IS HOT

In his runabout, with Sheriff Madden at his side, and followed by Atkinson and half a dozen men for guards in two other machines, Weir sped along the road to San Mateo. They carried with them Burkhardt, who had been found stunned and slightly injured, and two Mexican bandits who had been captured. Those of the party of attackers yet alive but seriously hurt were being treated at camp by Dr. Hosmer, while the young engineers, armed and eager, were scouring the mountain side for the few Mexicans who had got away.

It seemed a miracle that Burkhardt had escaped death, but the explanation was found no doubt in the fact he had started from the spot where the canisters fell and so at the moment of explosion was outside the area of its full destruction. To Weir the matter went deeper than that. Providence appeared to have saved him for punishment, for the long term of imprisonment he deserved for his crimes.

“I’d much rather have him alive than dead,” Steele had remarked to Madden, when the man was brought up from the canyon a prisoner.

The tremendous thunder-clap of sound from the camp had quickened the return of the superintendent and his men, already reached and warned by the doctor. More, it had startled even the drunken workmen so that when some one shouted that the dam had been blown up the debauch came to an immediate end, the house was deserted and the throng, incited by curiosity and wonder, went staggering and running for camp.

The first of these had arrived and the rest were tailing behind for half a mile when Weir and his companions set out for town, the blinding headlights of the machines scattering on either side of the road the approaching workmen. It was not likely many would go back to the house when they were told at headquarters how narrowly destruction of the works had been averted and how their spree had been a move in the plot. Between shame at

being-duped and drowsiness resulting from drink they would, after a look at the hole blown in the earth at the base of the dam, want to seek their bunk-houses.

As they sped towards town Weir and Madden rapidly made their plans, for the sheriff having witnessed with his own eyes the enormity of the plotters' guilt was all for quick action.

"These engineers of yours with us and the other men Meyers will bring down can be thrown as a guard around the jail," he stated. "I'll swear them all in as deputies. With Sorenson and Vorse locked up along with Burkhardt—and I'll throw Lucerio, the county attorney, in with them on the off chance he's an accomplice—there will be high feeling running in San Mateo. As quick as I can make arrangements, we'll take them to safe quarters elsewhere—to-night if possible, to-morrow at the latest, in fast machines. These men have friends, remember."

"You've Burkhardt handcuffed; it might be well to gag him, too, for fear the crowd might make trouble if he yelled for help," Weir replied.

"Yes, we'll do that, though I think we can rush him into the jail before anyone knows what's happening."

On the outskirts of town therefore the cars stopped. When Burkhardt, who had recovered his senses and with them a knowledge of his plight, perceived the sheriff's intention his rage burst all bounds.

"You fool, you muddle-headed blunderer!" he exclaimed, with a string of oaths. "Take these cuffs off! You'll lose your job for this trick. When I see Sorenson——"

"When you see him, you'll see him; and that will be inside a cell," was the cool rejoinder. "I didn't know you were a dynamiter and would-be murderer until to-night, but I watched you at work and saw you shoot twice at Weir."

"You'll unlock these, I say, here and now!" And the raging voice went off in a further stream of biting curses. "Look at me; I'm Burkhardt. You're crazy to talk of throwing me in jail, with my influence and——"

"Your influence be damned," was the imperturbable answer. "You'll have a long time in a penitentiary to see how much influence you have, if you don't swing first."

Burkhardt struggled fiercely for a moment against the steel bands about his wrists and the men who held him.

“No crook like this Weir shall ever send me behind bars, or any other man put me there. Wait till Sorenson and Vorse and Judge Gordon learn what you’re trying! Wait till they find out you’ve double-crossed us for this engineer! Wait till Gordon turns me loose with a *habeas corpus*, you’ll sweat blood for this night’s work, Madden!”

The sheriff shook out the red handkerchief with which he expected to bind the prisoner’s mouth.

“I’ll wait for a long time if I wait for Gordon to issue the writ,” ²⁹⁴he remarked. “Seeing that he’s dead.”

“Dead! You’re a liar, you sneaking cur; you can’t bluff me. And when I’m loose, if I don’t fill you full of lead it will be because——”

But Burkhardt’s explanation was never finished on that point, for Madden whipped the rolled handkerchief over his mouth and quickly knotted it behind, shutting off the flow of seething vituperative speech. If looks could slay, those he received from the prisoner’s bloodshot maddened eyes would have dropped the sheriff in his tracks; as it was, they fell harmless against the law officer’s person.

“Things have changed sort of sudden, haven’t they, Burkhardt?” Madden stated, sardonically. “Never can tell what’s going to happen between supper and breakfast. Here I go out to serve a warrant on Weir, and instead I’m bringing you in for trying a low I.W.W. trick. Surprising cards a fellow sometimes gets on the draw.” With which he went back to the other car.

Counting on quickness for the safe delivery of his men in jail, Madden did not attempt to approach the court house by a side street. On the contrary he drove fast down the main way, with the other two cars following close, passing without pause through the crowd of Mexicans drawn forth in wonder at the booming report of the explosion that had sounded from the dam.

One could see that excitement was at a high pitch. With the rumors that all day had been in circulation, with later vague tales of the great debauch proceeding at the old ’dobe house half way up the road to camp, with the thunder-clap that had burst from the base of the mountains coming on top of

all, every man, woman and child had run to the main street, where those in the automobiles could see by wagging tongues and gesticulating hands that speculation was rife and curiosity afire.

“The talk this evening when I set out for your camp was that I expected to bring you in and hang you,” Madden said dryly, to the engineer. “Quite a crowd had come to town. Plain to see now that Burkhardt and his bunch had started the talk. I shouldn’t be surprised if there had been trouble had I arrested and locked you up. There are a few bad Mexicans around these parts that would do anything for money, and it’s evident from what’s happened that Sorenson’s gang was ready to go the limit. What I’m trying to figure out is where these fellows Burkhardt had with him up yonder came from.”

“I can tell you. From across the line. I’ve seen plenty just like them down there,” Weir affirmed. “Look at their hats and clothes—but you’ll be able to make them talk after a while. However, you won’t find any of them speaking English. Offer one of them some money and a trip home and he’ll give you the story quick enough, especially after you’ve thrown a scare into him. We can afford to let one go to get the facts.”

“You better keep out of sight after we have the men in the jail. Slip behind the jail to the rear of the yard, and when I’ve locked them up and told Atkinson what to do about keeping the people away from the building, I’ll join you there.”

“I understand,” Weir stated.

“And we can slip off and grab Vorse if he’s in his saloon and then Sorenson before any one knows what’s happening.”

“That’s right; don’t want the game spoiled now. Here we are.”

The cars had arrived at the gate before the courthouse. Here, too, however, the crowd was densest, having gathered at the spot as if the roar of powder from the camp was an overture to Weir’s arrest and appearance. It had proved a prelude to his appearance, at any rate. The crowd perceived him with Madden and it believed him a prisoner even if not handcuffed and marched with a pistol at his head.

A profound silence at first greeted the party as it alighted. Madden, assisting Burkhardt to alight, pulled the man’s broad-brimmed hat low over his eyes

to conceal his face from the revealing moonlight. A short struggle again ensued, but Burkhardt finally yielded to the pressure exerted by his companion guards.

A murmur of astonishment ran over the surrounding throng, each instant being augmented by the voices of others running to the place. Not only did it appear that the engineer was under arrest, but likewise others,—a handcuffed, gagged man and two sullen Mexicans, strangers to the community. Yet a number of the onlookers, possibly men with Vorse's or Sorenson's money in their pockets, shouted as the new-comers moved through the press:

"Killer, murderer! Hang him, shoot him!" And more voices began to join in the cry.

Clearly the intent was to stir up feeling in the crowd to a point where action against Weir would seem a spontaneous outbreak. Even women joined in the cry; curses followed; fists were shaken.

"Open up the way," Madden ordered, as a surge of the crowd threatened to surround him and his party. In his hand, as if to emphasize his command, a six-shooter swung into view, sweeping to and fro and menacing the press of people.

The frightened men directly before the party struggled to get out of line²⁶⁷ of the weapon, yielding suddenly a clear passage.

"Quick! Around the courthouse and back to the jail," Madden exclaimed to those with him.

Pushing forward from the moonlight into the shade cast by the cottonwoods, they dragged their prisoners past the first building towards the low stout stone structure at the rear, half-illuminated and half-concealed by the patches of light and shade falling from the trees.

A minute later Madden whipped out his keys.

"Two men remain here at the door and don't be afraid to show your rifles to that bunch," he said. "In with you, Burkhardt; there's a nice soft stone floor to sleep on. Keep those Mexican camp-burners covered, Atkinson, till I get the cells open. You, Weir, slip on back there in the shadow and wait for me."

The engineer had taken but three steps into the gloom along the outside jail wall, glancing about to avoid any curious straggler of the crowd already hurrying around the court house towards the jail, when he heard a call. In the advance was a slim well-dressed Mexican, full in the moonlight and very important of bearing. The call was directed not at Weir but at Madden.

“You got him all right, sheriff?” he said.

“Yes. He came in with me,” was the answer.

“But who are these others?”

“Step inside and I’ll tell you, Lucerio.”

The county attorney joined the sheriff, peered inside the doorway and hesitated. It was dark within; no light showed except a patch of moonlight at the far side of the building that fell through a barred window.

“Go right in,” Madden exclaimed. And laying hand on the other’s shoulder he forced him ahead. The door closed after the pair. Before the doorway there remained, however, the pair of young engineers, rifle in hand, whose threatening bearing and glistening gun-barrels were apparent even in the patchy light dropping through the boughs. At a distance of about ten feet off the crowd of people halted, staring eagerly at the jail building, showing their white teeth as they carried on low talk in Spanish and awaiting with impatience the return of Madden and Lucerio that they might flood them with questions.

Weir remained to see no more, for the increasing crowd pushed out further and further on the flanks, a circumstance that would eventually result in his discovery. So slipping to the rear of the jail and keeping well in the shadows he gained the fence. This he leaped and, lighting a cigarette, examined his pistol, then proceeded to smoke calmly until Madden arrived.

“Hurry; slip away,” the latter said. “They wondered what the devil I dodged back here for and are coming, curious as cats.”

The two men glided away, keeping well in shadows until they gained the side street and thence passed to the main thoroughfare.

“What if Sorenson and Vorse are somewhere in that crowd?” Madden asked. “They’re likely to be, expecting your arrest.”

“Then we’ll have to wait till they leave it. But I don’t believe they’re there. They won’t want to show their hand even by being on the scene.”

“Probably they’ve found out Gordon is dead.”

“Probably. But on the other side, they suppose now that the dam has been destroyed and that I’m locked up,” Weir said. “Still, I’ll guess that if they’ve learned Pollock and Martinez and I were at Gordon’s all the afternoon, and he committed suicide, they’ll be worrying some just the same.”

Madden glanced at his companion.

“I don’t believe we’ll bring Vorse in—alive,” he said.

“That’s the way I want him, and Sorenson, too. I want to see them go up for life, but if not that then hanged. But a life term for both, along with Burkhardt, is my choice. I want them to suffer as my father suffered. Only worse. Dying’s too easy for them. Let them have hell here for awhile before they get it on the other side. Let the iron bars and stone walls kill them. I hope they live for twenty years to gnaw out their hearts every day and every night behind steel doors. That wouldn’t half pay what they owe. But if they finish in prison, knowing there’s no hope, knowing I’ve put them there for what they did to my father and Jim Dent, knowing that all the money and cattle they stole had slipped through their fingers, that they’ve lost all they gained and more, that their curses and crimes are crushing their own heads, why, that will help. And Sorenson—Sorenson there every day knowing his son lies a helpless cripple, without the money that has been piled up for him! I couldn’t invent a worse hell for him. And that’s the hell he’s going to have!”

Though a man not easy to move, Madden at Weir’s cold implacable expression of hatred shivered slightly. Sorenson and his accomplices would be lucky indeed if they died by the rope.

CHAPTER XXVIII

VORSE

Across the main street the two men walked, wearing their hats low and making no answer to shouted questions of those hurrying to the courthouse yard. Already the grounds about the court house and the street in front were jammed with eager, excited Mexicans, thrilled with an expectation of something to happen, though they knew not exactly what. The murderer, the killer, they have taken the killer, was the constant statement tossed from mouth to mouth.

“But not the killer they think,” Madden said, in a low aside to Weir as they moved ahead on their errand.

The pair were now advancing toward the saloon, along the opposite side of the street where a slight shadow afforded them concealment. By the time they came opposite the building they had escaped altogether from the crowd, though looking thither over shoulder they could see the black press of people in the moonlight at the public building; and here the street was empty except for a few belated women and children running toward the assemblage.

Madden’s hand suddenly gripped the engineer’s arm as they were about to step forth from the shadow to cross the street to the saloon.

“There he is,” the sheriff whispered.

Vorse had pushed open the slatted door of his place and stepped outside. In the moonlight his figure and face were clearly visible: his thin whip-cord body and predatory face, and bald head as shiny and hard as a fish-scale. He wore no coat, while his vest hung unbuttoned and open as usual. About his waist was an ammunition belt carrying a holster, as if he were prepared for action.

Thus he stood for a time, hands on hips, motionless, his cruel hatchet-like face directed towards the scene further along the street. Presently a man

came running to him, Miguel, his bartender, who had been one of the two men serving out whiskey to the workmen at the old adobe house and who at the break-up of the spree had hastened back to town to report to his employer. Now, it seemed, he had fresher news to give.

“Yes, it is the engineer, for a certainty,” he exclaimed panting, as he stopped before Vorse. “The sheriff arrested him and he now lies in jail there. It is said he fought and tried to shoot Madden, but that the sheriff was too quick and shot the gun out of his hand. It is said also that the dam is blown into a million little stones, but men are riding there on horses to see for themselves. They will soon return. Anyway a fight there was up there undoubtedly, for Madden brought in not only the engineer but three other men, bound and handcuffed and struggling furiously, trying to strike and bite the crowd like mad dogs. From time to time the sheriff had to beat them on the heads with his pistol, especially the engineer, who is the worst. I did not see them, but those who did said their faces were streaming with blood.”

“All right. Go find José Molina and ‘Silver’ Leon.”

“Are they not up in the hills with their bands of sheep?”

“No. They are here. Look around till you find them; then send them to me.”²⁷

“That means something lively to happen, eh?” Miguel said with a laugh.

He did not wait, however, for an answer, but set off at once for the court house.

“I hope Meyers shows up soon with more men,” Madden said to Weir. “Those two shepherders of Vorse’s are a pair of snakes; he always hires that kind; and they probably have some fellows with them like themselves.”

“Meyers is on the way with twenty men or so by this time. They had to come in wagons, as we had the cars. Atkinson ought to be able to stand off the crowd with the half dozen boys he has until the others arrive.”

While they had conducted this brief exchange of opinions they had kept their gaze on the saloon-keeper, who continued to stand before his door. The cold and merciless character of the man was never more revealed than now as he waited for his hired assassins to come to receive orders. Possessing already a full knowledge of the plot, Weir and Madden were

able to guess what culmination was now contemplated and measure the true depth of the conspirators' infamy. The sheriff especially boiled with inward wrath that they should expect to make him not only a dupe but a tool in their crime.

"It's clear they never intended you should come to trial when arrested," he said to his companion.

"Certainly not. That isn't the way they play the game. And I suppose Vorse there imagines the cards are all falling his way at this moment."

"He's going in."

"Good. Now then!"

Weir struck off across the street, striding forward at a pace Madden found it difficult to keep. As they neared the door, Weir loosened the gun in his holster.

In this action the sheriff imitated him and then changing his mind drew the weapon itself. Plain man that he was, he was an instinctive judge of character; he had encountered men of Vorse's type before, less shrewd but equally savage; their nature was to fight, not surrender; their way was to kill or be killed in the final issue. He anticipated no arrest.

He felt no necessity, however, to express this view to the engineer, who had proved himself in the time he had been at San Mateo wholly competent to deal with any situation that arose. Moreover, while Vorse had had a reputation of being a quick shot in the past, he was confident Weir was his master.

With a quiet movement the engineer pushed open the door and stepped into the saloon. Madden following him had allowed the slatted door to swing shut again and the sound of its hinges caused Vorse, who was just starting away from the bar, to turn about. In his hand was a tray holding a bottle of whiskey, a bottle of mineral water and glasses, which apparently he had just lifted up.

For a space of ten seconds or so he remained unmoving, the tray in his hand and his eyes regarding the visitors fixedly. Behind him in the rear of the saloon a second man had sprung up from the table where he sat, but after that first startled action he, too, had not stirred. The man was Sorenson.

With Madden at his side and with a grim smile on his lips Weir walked slowly towards Vorse. In his tread there was something of the quality of a tiger's, the light, deliberate, poised advance, the easy and dangerous movement of body, the effortless glide of a powerful animal ready to spring and strike. His hands swung idly at his sides, but that did not mean they would not be swift once they responded to the call of the brain that controlled them.

"You gentlemen were just about to celebrate my downfall, I perceive, by pouring a libation," Weir said. "Don't let me interrupt. Only I must request you to conduct the proceedings there where you're standing, Vorse, instead of at the rear of the room: Madden and I wish a good view of the ceremony. If Mr. Sorenson will be so agreeable as to step forward, you may go ahead."

Sorenson did not join Vorse, but instead he spoke.

"Why haven't you locked up your prisoner, Madden?" he demanded harshly. "And you're letting him keep his gun. Don't you know enough to disarm a murderer and throw him into jail when you arrest him?"

"I haven't arrested him yet," was the sheriff's answer.

"Well, do it then. You have the warrant for the scoundrel. Perhaps you haven't heard he almost killed my boy Ed last night—and you're allowing him to walk around with you as if he were a bosom friend. Do your duty, or we'll get a sheriff who will."

"That's why I'm here, to do my duty."

"You didn't have to bring this man here to do it."

"I decided to bring him, however."

From Vorse had come not a word. Only his gleaming evil eyes continued to rest on the two men without wink or change. For him explanations were unnecessary; he had divined instantly that somewhere, somehow the plotters' plans had gone awry.

"Did you know that Gordon is dead?" Weir asked, all at once.

Vorse lowered the tray to the bar and ran the tip of his tongue over his lips.

"No," said he, "we didn't know it."

“He deeded his property over this evening and then swallowed poison,” the engineer stated. “He saw the game was up.”

“You can’t make me believe your lies,” came sneering from Sorenson. “And you shall pay, you and that girl, for every broken bone in my boy’s body. I’ll spend my last dollar for that if necessary. Madden, do your duty and lock him up.”

The sheriff said nothing, but lifted his gun a little. Vorse by a slight movement of his body had edged from the bar as if to gain freedom for action.

“The game’s up for you men too,” Weir said. “You’ve murdered and robbed and swindled in this country long enough; I’ve got the proof and I’m going to remove you from this community. It’s not I who will be arrested. You killed Jim Dent after cleaning him out at cards and then made my father believe he was guilty of the crime. All I fear is that the court will hang you instead of sending you up for life; that would be too good for you. I want your crooked souls to die a thousand deaths within stone walls before you die in body. The game’s up, I say. I’ve Saurez’ deposition and I’ve the man who was the boy looking in the back door there that day thirty years ago and saw you shoot Dent, and he’ll go on the stand against you.”

A stillness so profound that one could hear the tiny insects hovering about the lamps succeeded this statement. If words had not been enough, Weir’s cold, harsh face would have removed the men’s last hope, for on it was not a single trace of relenting. A stone could have been no flintier.

“Well?” Vorse inquired softly.

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His arched bony nose appeared thinner and more hawk-like. His lips were compressed in a white scornful smile, while his eyelids now drooped until but slits of light showed from the orbs.

“And you may be interested to know Burkhardt and some of the Mexicans he hired are now locked up in jail; the rest, or nearly all, are dead,” Weir continued, with slow distinctness. “Your little scheme to blow up the dam and burn the camp failed. We caught Burkhardt at the spot leading the gang. Your plot to make the workmen drunk and leave the dam unprotected worked well enough so far as that part was concerned, but a keg of powder dropped on your bunch of imported bandits ended that part of the show.

And we have Burkhardt! You gentlemen are going to join him in the jail, where we shall give you all the care and attention you deserve.”

Vorse turned his head about towards Sorenson.

“Do you hear?” he asked.

“Madden, you’ve too much sense to believe all this trumped-up libel!” Sorenson exclaimed furiously. “About us, respected leaders of this town! Arrest the blackguard!”

Even facing assured proof of his complicity and guilt, the cattleman still believed in the power of his wealth and influence, in his ability to browbeat opponents, to command the man he had elected to office, to dominate and ruthlessly crush by sheer will power all resistance, as he had done for years.

“I take no orders from you,” the sheriff replied.

“Well, I suppose I can empty the till and lock the safe before going?” Vorse questioned.

“No. Keep in front of the bar where you are,” the sheriff commanded.

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“And have everything stolen.”

“Your bar-keeper will be back presently. He will look after things for you.”

“You say Burkhardt is locked up?”

“Yes.”

“That will hurt his pride,” Vorse laughed. “He always swore that no one should put him behind bars. He wouldn’t have minded so much finishing in a gun-fight, but to serve a term in prison would surely go against the grain with Burk. Though I think with Sorenson——”

Weir’s eyes had never left the speaker. Through the other’s inconsequential talk and apparently careless acceptance of the fact of arrest the engineer had noted the tense gathering of the man’s body.

“Put your hands up,” he interrupted at this point.

Vorse had uttered no following word after speaking Sorenson’s name; his voice terminated abruptly. At the same instant his right hand flew to his holster and whipped out his gun. It was the advantageous time for which he had waited, for Madden’s look which had been moving back and forth from

Vorse to Sorenson so as to cover both had passed to the latter. And Weir's weapon was undrawn.

But if Vorse drew fast, the engineer's motion was like a flash of light. His weapon leaped on a level with the other's breast. The report sounded a second before that of Vorse's and three before Madden's, who also had fired.

Then, if ever, Steele Weir had displayed his amazing speed in beating an enemy to his gun, for Vorse had indeed been quick, keyed by a knowledge that for him this meant imprisonment or freedom, a slow death or liberty.

For a minute he stood half crouching as he had been at the instant²⁷⁸ of shooting, his eyes glaring balefully at his enemy and the thin cruel smile on his lips, while the two men in front stood warily waiting with weapons extended. Then Vorse clutched at his breast, muttered thickly and toppled over full length on the floor.

The sharp pungent smell of powder smoke mingled with the reek of liquor.

"He's dead," Madden said.

"Yes."

"Are you hit?"

"No. His bullet went past my hip; he never got his gun up."

Madden glanced about towards the rear of the room. A command for Sorenson to stop broke from his lips. Next he fired. And Weir swinging his look that way saw Sorenson's form, untouched by the bullet, vanishing through the rear door into the night. Using the minute that the two men's surveillance had been lifted he had escaped.

"Hard luck when we had him," Weir growled.

"He can't get away."

"I'm not so sure. And he's armed."

"He'll strike for home to get his car."

"Or to the office for money," Weir exclaimed.

CHAPTER XXIX

THE FOURTH MAN

A last look Steele Weir had at the dead man on the floor before he turned to go in search of Sorenson. Not so astute or crafty as Judge Gordon, nor so intelligent as Sorenson, nor so belligerent as Burkhardt, he had been as rapacious and infinitely more cool-minded than any of the three. If anything, he was the one of them all to proceed to a crime, whether fraud or murder, in sheer cold blood and by natural craving. No uneasy conscience would have ever disturbed his rest: no remorse or pity ever stirred in his breast. He was the human counterpart of a bird of prey.

Well, he was dead now. Three of the quartette who had been joined by avarice and lawless actions were taken care of—Burkhardt a prisoner, Gordon dead by self-administered poison, Vorse by bullets. Almost did Steele Weir feel himself an embodiment of Fate, clipping the strands of these men's power and lives as with shears. Sorenson alone remained to be dealt with and his freedom should be short.

Beckoning Madden, he went swiftly through the door where the cattleman had leaped into the shadows. Where the gloom ceased and the space behind the row of store buildings was clear in the moonlight, nothing was to be seen. Naturally the man had kept within black shade in his flight.

When they reached the rear of the cattle company's office building, they peered in through its barred back windows, but all was dark inside the structure so far as they could determine. To all appearance Sorenson had not stopped here: it was quiet, gloomy, untenanted.

"We'll have to try his home now," the sheriff stated. "If we don't find him there, we'll set the telephones going to warn all the ranches and towns around to be on the lookout and either to stop or report him if he shows up. He hasn't start enough to get away now."

They hastened on along the line of buildings until they reached a side street. But when they had proceeded a short way, Weir stopped.

“I’m not satisfied about the office,” said he. “Suppose you go on to his house and I’ll return for a look inside from the front. If you fail to find him join me at Martinez’ office, where no one is likely to be around and we can then lay further plans.”

“That suits,” Madden responded, and set off alone.

Weir’s alert brain had been turning over the possibilities of Sorenson’s course. Rather by pursuing what would be the man’s line of reasoning than by depending on chance, he had come to the quick decision to turn back once again to the office. Sorenson would so act as would best serve his immediate escape and that of the future.

Would he expect the sheriff and the engineer to look for him to flee by the speediest means, an automobile, and to the natural avenue of escape, the railroad? Yes. Therefore on that expectation he would adopt another way to throw off pursuit. And perilous as a delay would be in getting away from San Mateo, yet he must risk the few minutes necessary to get money. For to fly with pockets empty meant eventual, certain capture. Money a fugitive from justice must possess above everything in order to possess wings; and no one would know that better than Sorenson.

Though Madden and he had seen no light in the office building, the cattleman nevertheless might have been within. If he had been in the vault, he could safely have lighted a candle without their perceiving its beams; and though the safe was modern it probably had no time lock. Sorenson could unlock it with a few twirls of the combination, stuff his pockets with currency and negotiable paper to the amount of thousands and then slip away.

Fortunately the moonlight was to Weir’s advantage. He quickened his steps, passed round the corner into the main street and moved towards the building. For him the crowd at the court house at that moment had no interest; one person, and one person alone, commanded his thoughts.

How correct had been his logic—logic not unmixed with intuition, perhaps—appeared when he was yet some fifty yards away from the door he sought. A tall bulky figure suddenly stepped forth from the building and

instantly ran across the street and lost itself in the shifting, jostling crowd that was half-disclosed, half-concealed by the broken shadows of the moonlit trees.

Steele Weir proceeded to a spot near the office and halted. His first impulse to rush after Sorenson had been promptly suppressed, as cooler judgment ruled. To seek his quarry in that throng would be labor wasted, while to reveal his identity would be to court a disastrous interference with the business at hand. From where he stood he should much better be able to see Sorenson when he did emerge, unless he chose to remain in the crowd or steal away at the rear of the court house yard, a chance Weir must take.

Five minutes passed. The restless, talkative Mexicans continued to swarm and buzz with excitement, ceaselessly moving about, forming and reforming in groups, agitatedly repeating newer and wilder rumors concerning events. Despite Weir's intent watch for Sorenson, the engineer could not but observe the mob's manifestations, observe them with sardonic humor. For their ebullition of the present would be nothing to what it would be if they learned he stood across the street, uncaged, unfettered, free and armed, a "gun-man" loose instead of a "gun-man" in jail.

All at once Weir noted out of the tail of his eye a slight stir among a number of horses standing with reins a-trail before a store a little way down the street. The horses were partly in the light, partly in the shadow, so that all he could see was that one or two of them had jerked aside quickly, then resumed their listless postures.

He was about to withdraw his eyes when he saw a man swing upon the back of one of them and start off at an easy canter. Weir sprang towards the spot at a run. That big figure could only be Sorenson's, for no Mexican he had ever seen in San Mateo could match it. And the plan of escape showed the other's craft in an emergency; gradually working his way through the crowd he had at last gained the protective shadow of the building on that side of the street and slipped along in it until he reached the horses.

Doubtless the man had conceived the plan at the instant he had stepped from his office, sweeping the street by one gauging look. With the whole town assembled at the court house, his departure was little likely to be noted by the Mexicans, while Madden and Weir would never suspect him of riding off on a horse, or suspect too late. Indeed, he rode at first as if in no

great haste, but as he turned his mount into a narrow by-way, more a ¹²⁸²lane than a street that disappeared between two mud walls, Weir saw him strike his heels into the pony's flanks.

But for the startled movement of the nearby horses when Sorenson took stirrup, Weir would not have looked that way. He might possibly have seen the horseman start off, but that is not certain. He unquestionably would have supposed him an ordinary rider if he had not noticed the man until he reached the mouth of the lane.

Meantime the engineer had made his best speed to the line of waiting horses. Slowing to a walk so as not to scare them, though as he discovered on examination most of them looked too bony and spiritless for that, he approached and carefully inspected the bunch. He took his time in the selection: the more haste in choosing a mount might prove less speed in the end. He tightened the saddle-girths and ran a finger along the head straps of the bridle of the horse picked to judge their fit, receiving a snap from the pony's teeth, which gave him satisfaction. Not only was this animal a wiry, tough-looking little beast, but he had life.

Up into the saddle Weir went, followed Sorenson's line to the lane, down which he swung. Coming out into the next street, he pursued it to an intersecting street, and there galloped for the edge of town without trying to guess the way taken by his enemy. Once he reached the open fields he would quickly get sight of the man racing away somewhere on the mesa.

Evidently the quarry he pursued had not taken so direct a course as Weir, for when the latter at length came forth where he could have a wide view he perceived the horseman a quarter of a mile off and further east, galloping south. The engineer at once raced thither to gain the same road and turning ¹²⁸⁴into it made for Sorenson.

Thus the two men sped away from San Mateo. The wire fences and the adobe houses of Mexicans owning little farms adjoining soon ceased. The wide mesa lay on either side. Though a quarter of a mile had separated the men when Weir first observed the other, the distance between had been increased while the engineer was gaining the road, until now the interval was almost twice as great.

Weir guessed the fleeing man's plan. Instead of seeking the railroad for the present, he would disappear in the mountains, where with the assistance of some loyal employee, cowman or shepherd, he would lie hid until the first fury of the hunt had subsided. Possibly his bold brain even conceived the idea of again returning to San Mateo some dark night soon and further looting the office, vigilance being relaxed.

In any case, he would expect to remain safe from pursuit in a mountain fastness until either on horseback or by automobile he could work his way out of the country. With what he had unquestionably carried off he would not be a poor man. In some spot far away he could assume a new name, start in business and later be joined by his wife and crippled son.

Alas, for those plans, arising like mushrooms on the ruins of his life! Behind him followed the same inexorable antagonist who so swiftly had brought everything crashing about his head. Possibly Sorenson once out of the town had failed to look back; possibly looking back he had been unable to distinguish against the blur of houses and trees the horseman galloping in the moonlight along the same road.

But all at once when they were two miles away from San Mateo ²⁸⁵ he discovered Weir, who had been gradually cutting down the space between until now again he was within a quarter of a mile of his quarry. Sorenson had been riding rapidly but not hard; he now beat his horse to a furious gallop,—a good pony, too, from its speed, showing that the banker as well as Weir had picked his mount with care.

Weir did not urge his horse to a similar pace, only maintaining a fast steady gallop that kept the other in sight though the space between again widened. Apparently Sorenson realized the folly of attempting to outrun, his pursuer at once, for he soon dropped back into a regular, mile-eating gallop. Gradually in turn Weir crept up to his old position.

To each the only sound was that of drumming hoof-beats. In front rode the fleeing man—dethroned leader and criminal and murderer. Behind relentlessly came his Nemesis, the son of the man whom he had deceived and damned to mental suffering. All about them as they flew along was the silent, moonlit, sage-covered mesa. At their right towered the misty, unchanging peaks, as if watching unmoved this strange race of two human beings. A strange race, in truth,—a race where vengeance rode.

CHAPTER XXX

THE VICTOR

Ten miles the two men had gone when Sorenson's horse began to fail. The rider's weight was proving too much for the sturdy little animal and though he strove to maintain his speed the strain told on lungs and legs. Weir had reduced the distance first to three hundred yards, then to two hundred, and at last but a hundred separated him from the man and horse ahead.

The hard chase indeed was beginning to tell on his own mount. Flecks of foam flew from its lips; its neck was wet with sweat; the whistle of its breath was audible to the engineer at every stride. For as both men had realized that now the end could not be far off, they had pushed their horses to faster and faster galloping.

On a sudden Sorenson swung his animal into a dim trail leading from the main road skirting the mountain range to the base of the mountains themselves. The first slopes were but a mile away, covered with a scattering growth of pinyon pines. Just in front, too, for which the trail seemed pointing, was a dark ravine filled with brush that rose to the denser timber above. This was the fugitive's goal. Once he could fling himself from the saddle and plunge into the undergrowth he would be safe from his pursuer.

The two ponies struggled on with exhausted leaps. Weir had reduced the interval to seventy-five yards by the time half the distance was covered and to fifty as they drew near the mouth of the ravine. He measured his gain ²⁹⁷and the remaining two hundred yards or so with savage eyes, then drew his revolver. He desired to take Sorenson unharmed. But rather than that the man should escape he would kill him.

Sorenson's horse stumbled, but a jerk of the reins saved him and kept him moving on. The engineer struck his own pony fiercely on the flank, which produced a tremendous effort in the striving beast that brought it within thirty paces or so of Sorenson. That, however, was the best it could do,

labor as it would. Its knees were trembling at every stride, its head swinging heavily.

Sorenson's horse suddenly went to its knees. But the man leaping clear took the ground on his feet and instantly set off at a run for the line of brush in the draw some seventy or eighty paces away. A last spurt Weir's pony made, bringing his rider to within thirty yards of the cattleman, who glancing over his shoulder halted, swung about, fired a shot and again started to run.

The pony under Weir came to an abrupt stop, shaking. He was done, whether from exhaustion or the bullet the engineer did not wait to see. Flinging himself out the saddle he raced after his man, taking the rough trail leading up the slope in swift strides. On foot Sorenson was no match for him. But the latter had the start; he was now almost within reach of the thick screen of bushes; and he bent every energy to make the ambushade.

Still running, Weir flung up his gun and fired. Close the shot must have gone to Sorenson, so close as to inject into the man's mind recollection of his pursuer's accuracy and a fear of a bullet in his back, for when within twenty feet of the bushes he dropped behind a small boulder, whence he fired twice at Weir but without striking his mark.

Neither man after the furious ride and the concluding run on foot was fit for sure marksmanship. This Weir realized, so stopped where he was some forty feet off from Sorenson's stone in order to regain his breath and calm his nerves. Of the cattleman he could see nothing; the man crouched low out of sight, perhaps reloading his weapon, perhaps steeling himself for a dash across that small moonlit space that separated him from safety, or perhaps preparing for a quick upward spring and a fresh volley directed at his foe.

It may be questioned if in his heart Sorenson was not almost disposed to fight the matter out. He was no coward; his original hatred for the engineer had by recent events been swelled to a diabolical desire to kill; and now even if he, Sorenson, succeeded in slipping away, his whereabouts would be known unless he destroyed the man. Safety demanded that he not only escape but escape without this witness.

Weir had not sought cover. He stood upright, his revolver ready, trusting to have an advantage in his speed when it came to an exchange of shots. Then

he began an advance, a slow noiseless circling advance that at the same time of taking him closer to his enemy brought him round on his flank.

Sorenson's hand and pistol appeared and half his face while three shots rattled from his gun, two at the spot where Weir had been and one at him in his new position, which the hiding man had immediately located. The last shot ticked the engineer's sleeve. In return Weir fired twice, the first bullet striking the rock and ricocheting off with a loud whine, while the second struck the pistol from Sorenson's hand.

Instantly Weir sprang forward.

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"Show yourself," he ordered. And the kneeling fugitive, disarmed, gripping his bleeding hand, sullenly arose to his feet. "You've led me a chase, but I have you at last," the engineer continued. "Now you're going back to San Mateo and jail. Walk towards the horses."

Sorenson cast one bitter glance at the thicket in the ravine; by only the little matter of a few yards he had failed to gain liberty. For Weir his visage when he looked around again was never more hard, hostile, full of undying hatred. Though balked, he was not submissive, and was the kind who kept his animosity to the end. Then he started off towards the horses, his own which had staggered to its feet again and Weir's, both standing with hanging heads and heaving, quivering sides.

All at once the cattleman halted and faced about.

"Most men have a price, and I suppose you have yours," he said, with forced calmness. "I'm ready to pay it."

"You're going to pay it," was the answer.

"How much will you ask to let me go?"

"If you offered me ten million, which you haven't got, I wouldn't accept it," Weir said, harshly. "There isn't enough money in the world to buy your liberty. You're going back to San Mateo, and from there to the penitentiary or to the gallows, one or the other."

"It will be neither," Sorenson stated.

"You're mistaken, but I shall not argue the matter with you. Keep walking towards the horses."

Sorenson's lips became compressed. He glanced down at his bleeding hand, shook the blood from his fingers.

"I stay here," said he.

Weir went a step nearer and thrust his face forward, jaw set, eyes smoldering.

"Go on, I say," he exclaimed.

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But the other did not retreat before him or indeed move at all. A sneer lifted his gray mustache.

"You have a gun; you're a killer; here I am unarmed and in your power," he said. "You intend to take me in; I propose to stay here. If I go to San Mateo, it will be as a dead man. I'll see whether you have the nerve to shoot me down where I now stand. If you have, go to it. You can then take my body to town, but I'll not have paid the price you name and I'll have the satisfaction of knowing I beat you at the last—in that, at least. Your bragging will be empty. Start your shooting any time you please." The tone spoke complete contempt.

Weir said nothing. The defiance, the supreme audacity of this assertion, coming so unexpectedly, surprised him and left him at a loss. He would not kill an unresisting man, even Sorenson, his worst enemy. Sorenson in his place probably would not have hesitated to do so, for he had no fine scruples in such matters; but for Steele Weir the thing was no more possible than striking a woman or a child.

It was not a question of nerve, as the other had stated. It was a test of brutality and consciencelessness. To shoot a man while escaping is one thing; to kill him while a prisoner, however contemptuous and brazen, was another. But there are means other than bullets for handling obstinate prisoners.

Weir shifted his weapon so as to grasp the barrel and have the butt free.

"I'll leave your execution to the proper officials, if an execution is what you want," he said. "Now will you go?" he demanded, threateningly.

His foe gazed at the clubbed pistol and turned as if to yield. Next instant he whirled, lunging at Weir and flinging his arms about his captor. An exultant exclamation slipped from his lips; his hot breath fell on the engineer's

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cheek; his eyes glared into those of the man his arms encircled. He had tricked Weir by his pretense of obstinacy, led him to weaken his guard and had him in his grasp.

Weir braced himself to resist the man's effort to force him down. Strong arms the other had, now doubly strengthened by hate and a belief in victory. All the power of Sorenson's great body was exerted to lift him off his feet, crush him in a terrific bear-hug, put him on his back and render him helpless; and Weir in his turn was tensing his muscles and arching his frame with every ounce of his lean, iron-like frame.

Thus they swayed and struggled in the moonlight, without witnesses. A sinister silent fight, marked only by their fierce breathing and fiercer heart-beats. The pistol had dropped from Steele Weir's hand; instead of attempting to break the other's hold he had yielded to it and pushing his own arms forward had clasped his hands behind Sorenson's back in the wrestler's true defense to such an attack.

Once Sorenson almost had him on his knees, but by a quick powerful upthrust of his legs he regained his upright position. However, it had been a close shave for Weir, for he well knew that his opponent would use any tactics, fair or foul, to kill him if he once lay on his back.

"You hound from hell!" Sorenson snarled. "You crippled my boy, and you shall die for that. You've ruined me in San Mateo, and you shall die for that. You jailed Burkhardt and poisoned Gordon and shot Vorse, and you shall die for that. I'm going to choke the life out of you, and grind your dead head into the dust, and then spit on you. That's how I treat snakes. Say your prayers, if you know any, for you'll never get another chance. Your friends won't recognize your remains when I'm done with you."

Venomous and impassioned, all the hate in the man's heart flowed forth in a fuming stream. For hate and murderous desire was all that was left him in the wreck of life caused by the engineer. If he could no longer rule, he could at least destroy.

Weir had made no response to the fierce imprecations. He was working his hands upward, straining his arms so as to reach Sorenson's head.

"When the coyotes are gnawing your skull," Sorenson went on, raging, "when the worms are feeding on you——"

The words died in a gurgle of pain. Weir's hands had closed about his temples, a finger sunk in each eye, forcing his head back. Sorenson shook himself frantically to break the torturing hold. His head went farther and farther back as if it seemed his neck would snap; his mouth opened to gasp, "Oh, God!" and all at once his hug slipped apart.

Instantly Weir tripped him, falling on top. Reaching out like a flash he seized his pistol lying on the ground and brought it down on the head of his enemy, who momentarily blinded and suffering could not resist. Sorenson went limp. From the savage beast of a minute before he had been changed to a huge, motionless, sprawling figure, with face upturned to the moon.

And on that face the victor of the life and death struggle could still behold, through the contorted lines stamped by pain, the man's brutal passion and fixed malevolence.

Weir arose.

"You felt the hound of hell's teeth," he muttered.

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With thongs from one of the saddles he bound Sorenson's hands, pulling the knots tight and hard. The prostrate man moaned, opened his eyes. Weir jerked him dazed and staggering to his feet.

"Up into the saddle with you if you don't want another rap on the head," Steele ordered, brusely. "And go straight this time. From now on I'll take you at your word and put a hole through your black heart if you try any more tricks."

When his prisoner was mounted, he fastened his ankles together by another thong under the belly of the pony. Weir was taking no chances. Up into his own saddle then he swung himself.

No exultant curses now came from his captive's lips.

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CHAPTER XXXI

A FINAL CHALLENGE

The hour was drawing near midnight when Weir and his prisoner entered the town. Most of the women and children of the crowd of Mexicans had gone to their homes, but men yet remained before the court house and in the street, discussing and arguing the exciting events of the night.

In some mysterious manner knowledge that Burkhardt and not Weir was the prisoner in the jail, together with news of Judge Gordon's suicide and Vorse's death, had spread from mouth to mouth. Amazement and incredulity had been followed by an aroused feeling of anger, for to the Mexicans it appeared that the crushing blow dealt the leaders of the town was the arbitrary act of the man they believed a lawless gun-man. Were not Weir's foremen and engineers guarding the jail? Men who were strangers, not even citizens of the county?

But though an undercurrent of feeling ran among the talking groups, gradually increasing as the time passed, yet was there no active desire on the part of all or a concerted movement to drive away the seeming invaders of the law. For any such attempt a strong leader was necessary. There was none: Madden frowned upon them, only saying as he moved about that he was executing the law; Sorenson, the dominating figure of the town, and Burkhardt's, Vorse's and Gordon's friend, was strangely absent.

The determined guard about the jail was in itself a deterrent to mob action. Meyers had brought twenty or more men from camp, armed and alert, who with those already about the building constituted a force to make any crowd of Mexicans, however angry, think twice before seeking to rescue prisoners. But the wish and the spirit were not lacking. Employees of the plotters, men who had received favors from Sorenson or Vorse or Burkhardt, Mexicans of a naturally vicious and unruly temper, were all for rushing the jail. The great number of the people, however, peaceful and indolent, preferred to content themselves with satisfying their curiosity by talk instead of seeking

a taste of blood. And so as a result of this divided opinion the hostility for Weir had not expressed itself in an effort to assail the keepers of the jail.

When he was discovered to have returned to town, this angry feeling assumed a menacing form. He approached the court house by the side street, Sorenson riding at his side, for it was his plan to lodge his prisoner in the Jail with as much secrecy as possible. Nevertheless in this he was disappointed; men saw him arrive, assist his prisoner to alight and climb the board fence about the yard; and drawn by the expectation of new events the nearer groups hastened forward.

Weir impelled his man towards the jail.

“Stand back,” he commanded the Mexicans.

The latter at first stared in astonishment at beholding the pair, one of whom was San Mateo’s foremost citizen, now sullenly advancing with wrists bound. Exclamations burst from their lips.

At that a flash of hope filled Sorenson’s breast.

“To my rescue, friends!” he cried, beginning to struggle.

Weir jerked him ahead fiercely and cast fiercer looks at the Mexicans.

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“This man is under arrest. And remember I can still shoot straight,” he warned.

Towards him came Madden running, who in Weir’s disappearance earlier in the night he had guessed a pursuit of the cattleman and had therefore returned to the jail. He placed himself at Sorenson’s right.

“Whoever tries to take Sorenson from the hands of the law does so at his own peril,” he exclaimed.

A few mocking shouts resulted. These were gradually increased until the Mexicans, now being joined by scores of others from the street, became a howling, cursing, hysterical mob, crying Sorenson and Burkhardt’s innocence, calling down imprecations on the heads of the sheriff and the engineer, stirred by certain lawless spirits to wilder and wilder passion.

Weir and Madden had not been standing still, for the crowd was not yet numerous enough at first or bold enough to attack. Moreover the two men held their pistols well in view. Forcing Sorenson ahead, driving apart those

who blocked their way, they pushed across the yard until but a few paces from the jail.

One Mexican, a ranch hand from one of Vorse's ranches, wearing a great high-peaked felt hat and chaps, insolently thrust himself before the trio, spitting at Weir's face and in Spanish begging companions to help him release Sorenson. His right hand was resting on his holster as if but awaiting an excuse to use his gun.

"Get to one side," was Weir's harsh order.

The man's answer was a string of foul curses. Like a panther the engineer leaped forward and struck the fellow on the side of his head with revolver barrel, dropping him where he stood.

As the crowd remained suddenly mute, unmoving, their howls checked by this swift reprisal, Weir spoke to Madden:

"Quick! To the door!"

Each with an arm in Sorenson's, they made a run for the jail, passed through the line of armed guards and for the moment were safe. The sheriff lost no time in dragging the prisoner inside and when presently he stepped forth again, locking the door after him, he showed a relieved face.

"I put irons on him, hands and feet," he informed Weir. "He's out of the way at any rate if we're in for a row."

That was exactly what appeared in prospect. Only the rifles in the grip of the two dozen men about the jail kept the now thoroughly aroused mob from rushing forward. From yelling it had changed to low fierce murmurs that bespoke a more desperate mood.

"We ought to move the men somewhere else," Steele Weir stated. "Pretty soon they'll go for arms and then we'll have real trouble."

"I arranged while you were gone to transfer them to the county seat in the next county," Madden said. "Telephoned the sheriff; he's expecting them. To-morrow we can take them to Santa Fé, out of this part of the country till time for their trial. I placed the automobile your man brought Burkhardt in from the dam and another machine back in the alley; they are there now in the shadow."

“Good. The quicker you take them, the better. They ought to be gagged when brought out. Get them here to the door; the men who are to drive should have the cars ready, engines going——”

“That’s fixed. Your superintendent will drive one car and one of the engineers the other; they can slip back there at once. Six more of the guards are to go with us.”

“All right. You know whom you want. Station them here at the door to rush the prisoners back the instant you’re ready. Have them go round to the rear on the dark side of the jail; they should gain a good start before they’re discovered.”

Madden called from the line Atkinson and the men whom he had chosen to accompany him on the night ride. A brief parley followed. Then he and two of the engineers went inside the jail, while the superintendent and one young fellow stole away in the shadows towards the spot where stood the cars.

Meanwhile the throng had grown until it filled all the space about the rear of the court house and formed a mass of human bodies on which the checkered moonlight played reaching to within half a dozen paces of the jail. A shot rang out and a bullet struck the jail. It was like a match lighted near powder, that if allowed to burn would set off an explosion. One shot would lead to others from reckless spirits, to a volley and in the end to an onslaught.

Perhaps that was the reasoning and the purpose of the man who had fired. In any case, it must not be repeated.

Weir strode forward towards the crowd.

“If that man, or any of you, want to shoot this out with me, let him show himself,” he said, threateningly and swinging the muzzle of his weapon along the line of faces.

A quick retreat on the part of those nearest marked the respect with which it was considered. Frantically they strove to push further back into the mob, clawing and elbowing.

“If you try any more shots,” he continued, speaking in Spanish as before, “those rifles will open fire.” He paused to allow this information to have

full effect. “Finally, if you attempt wrecking this jail, the three hundred workmen from the dam will march down to San Mateo and teach you proper observance of the law. If you’re really looking for trouble, those three hundred men will give this town trouble that will be remembered for twenty years.”

Standing there in the moonlight between the two parties, between the thin line of sentinels about the jail and the dense mob in front, Steele Weir’s action seemed the height of rashness. A rush of the Mexicans and he would be overwhelmed, a cowardly shot from somewhere in the rear and he might be killed. It was like inviting disaster.

If, however, he recognized his danger, he gave no sign of it. By the power of his gun and sheer boldness he faced them, calm, fearless, masterful. His unexpected advance had surprised the Mexicans, left them confused and uncertain. Wild and sinister tales concerning his prowess magnified him in their eyes notwithstanding their animosity. Now they seemed to feel his iron will beating against their faces.

During the pause that ensued Weir heard the jail door open. Madden was preparing to take his prisoners out.

“I’m not seeking trouble, but I’m not avoiding it,” the engineer proceeded, for this was the critical minute, and he sought to have all eyes focused upon him instead of upon the activity at his back. “The sheriff represents the law here in San Mateo, and I give you plain warning that every man who attempts violence to-night will be called upon to pay the account. By to-morrow the Governor may have soldiers stationed in your houses and in your streets, for the prisoners are now the prisoners of the state, arrested for stealing cattle——”

That was a happy inspiration. Had Weir stated the whole category of Sorenson’s and Burkhardt’s crimes, including murder and dynamiting, he could not have struck so shrewdly as in naming the sin of cattle-stealing. For this was a cattle country and even the most ignorant Mexican grasped the significance of this charge.

A visible stir answered the statement.

“For stealing cattle from other men”—he did not trouble to mention the fact the crime had occurred thirty years previous—“and for that and other things

Sheriff Madden has arrested them. Because they are rich, their guilt is all the worse. Perhaps they have taken cattle belonging to you, who knows? That may come out in their trial; if they have taken them, you shall have them back.”

From the rear of the grounds came the low sounds of automobile engines being started. Weir dared not look about to learn if Madden and his party were safely on their way thither. As for the Mexicans, the speaker’s words had created a sensation. For men were there who owned small herds now feeding on the range, and from anger their minds yielded to sudden anxiety; each saw himself a possible sufferer from cattle depredations; and in the minds of these, at least, thought of loss supplanted thought of Sorenson and Burkhardt.

“I helped Sheriff Madden arrest these men because they stole cattle, possibly some of your steers among them. Is that why you would like to lynch me, as I’ve heard you wanted to do?” he demanded, savagely. “Because I save your animals? Or is it because I shot that renegade Mexican whom Ed Sorenson hired to try and kill me? Ed Sorenson, yes. Sheriff Madden has the knowledge of it. Not only would Sorenson the father like to see me die because I know about his cattle-stealing, but Ed Sorenson, the son, hired that strange Mexican to shoot me from the dark because I stopped him from trying to steal a girl. Has Ed Sorenson left your daughters alone? I would save your daughters from his evil hands, as I would your cattle from his father’s.”

A man all at once pushed forth from the crowd, wrathfully elbowing his way among neighbors. He was Naharo, the Mexican who had chatted once with Martinez in the latter’s office.

“It is true,” he shouted, facing his countrymen. “I, Naharo, vow it the truth. For I saw this engineer take a young girl away from Ed Sorenson in the restaurant at Bowenville that the scoundrel intended to seduce. It is so, the truth; the engineer saved her. And are there not men among you”—his voice gained a savage, rasping note—“whose girls have been betrayed by the cattle-stealing Sorenson’s son?”

“Where is he—where is he now?” some one shouted, angrily. It might have been a father who stood in Naharo’s case.

“He lies crippled,” Weir stated. “Last night he tried to steal yet another girl from San Mateo, and fleeing when overtaken was pitched from his car and crushed against a rock. He will steal no more daughters of San Mateo.”

Sensation on sensation. The crowd fairly hummed with new excitement resulting from these disclosures. Ed Sorenson’s ways were known to most and the revelations seemed true to his character; and from believing the statements of the son to accepting those concerning the father was but a step. Cattle—girls! It began to look as if this engineer was in the right.

With half of his attention Weir was harkening for the sound of starting automobiles. He had heard the scuffle of feet when the party slipped away from the jail door into the shadows. He had almost measured their passage to the alley. Ah, and now! There was a quick grind of gears, the pop of exhausts, then a dying of the sounds as the cars left the grounds.

“You wished to kill me when you came here, but I had not then and have not now any intention of dying,” he stated. “For I have work to do—and work for you if you want it. Instead of stealing your cattle and daughters as the Sorensens did, I’ll give you jobs. We are about to begin digging canals and ditches on the mesa; I want men and teams—you and yours at good pay for a good day’s work. Our quarrel of the past need not be remembered. I have never been your enemy, only the enemy of the four men who deceived and oppressed you. And now they are gone, two dead and two off to be tried for their crimes.”

Weir stood for a moment silent, while they as silently stared at him.

“Ha, bueno, we shall work!” Naharo exclaimed.

“We shall work and build your ditches, señor,” cried a score of voices.

Then the cry swelled to a noisy chorus. The crowd began to stir and disintegrate and break into groups, gesticulating, talking, discussing all the astonishing items of news given by the engineer, from the particulars of the Sorensens’ depravity to announcement of renewed hire.

“Señor, we hold you in greatest respect,” said a man to Weir, smiling in friendly fashion.

“And also your pistol,” said a companion, laughing.

“No one will need to wear pistols here in San Mateo from now on,” was the answer. And he politely bade them good-night.

His belief was sincere. San Mateo had gained an end of violence, and henceforth his weapon would gather dust. He had triumphed. Not only had he subdued his enemies, but he had won the good will of the people.

One thing more alone remained to be won to bring him utter happiness.

CHAPTER XXXII

THE RECLUSE

As Weir drove his car homeward through the moonlight, he knew that at last the dark shadow upon his life had passed forever. Memories poignant and sad, memories bitter and stern, returned again and again to his mind; but these henceforth with time would soften and change. Of these his last visit to his father was most vivid, that day in spring that had proved their last together....

He had been there with his father for a week, and now must go. He was chopping wood that morning, with his father looking on. Steele had cast a measuring glance at the pile of wood cut, then wiped the fine dew of perspiration from his brow, buried the ax blade in the chopping-log and seated himself upon a sawn block. A smile shaped itself upon his lips. Though he never chopped wood now except on these rare visits to his recluse father's cabin here on the forested mountain side, his tall lean figure was as tough and wiry as ever, his arm as tireless, his eye as true to cut the exact line. There was yet no softening of his fibers or fat on his ribs, and there would be neither if he had anything to say about it.

From the little Idaho town in the valley below, which he viewed through the clearing before the cabin, his gaze came around to his father seated on the doorstep. Taciturn and brooding the latter had always been, but the pity and sorrow struck at the son's heart as he perceived what a mere shell of a man now sat there, gray-haired, bent, fleshless, consumed body and soul by the destroying acid of some dark secret. Even when a lad Steele Weir had sensed the mystery clouding his father's life. Like an evil spell it had condemned them to solitude here in the mountains, until Steele's youth at last rebelled and he had departed, hungry for schooling, for human society and for a wider field of action.

What that secret might be he had for years not allowed himself to speculate. Unbidden at times the memory of certain revealing looks or acts of his

father's floated into his mind:—a dread if not terror that on occasion dilated the elder man's eyes, and a steadfast driving of himself at work as if to obliterate painful and despairing thoughts, and an uneasy, furtive vigilance when forced to visit town. Once when a stranger, a short heavy-set bearded man, had unexpectedly appeared at the door, his father had leaped for the revolver hanging in its holster on the wall.

On catching a second view of the chance visitor he had exclaimed, "Not Burkhardt after all!" With which he burst into a wild laugh, the shrill mirthless laugh of a man suddenly freed of a terrible fear. However, as he returned the gun-belt to its place, his hand shook so that he pawed all around the nail on which it was accustomed to hang.

Steele Weir would never forget that moment of panic, his father's spring to the wall and following laugh—the only laugh he had heard from those lips; and though but twelve years old at the time he could not misread the episode. On another occasion he found his father kneeling at the grave under the giant pine beyond the cabin—the grave of the gentle mother of whom Steele had but dim recollections—and his father's hands were clasped, his head bowed. With an infinite yearning he had longed to creep forward and comfort him by his presence, by a clasp of the hand, but the recollection of his father's habitual chill reserve daunted him and he stole away.

On his own life the mystery had left its gloomy impress. A solitary and joyless boyhood, overhung by he knew not what danger, haunted by a parent's lurking fear and anguish, had made him a silent, cold, ever watchful man, never entirely free from the expectation that his father's sealed past at some instant would open and confront him with the terrible facts. For that reason he felt that the success he had gained as an engineer, a success won by relentless toil and solid ability, rested on a quicksand. For that cause he had welcomed engineering projects full of danger and by his indifference to that danger gained his name "Cold Steel."

Now on this day with his father he once again put the question he always asked on his visits, and with no more hope of a consenting reply than before.

"I must be going to-morrow. Won't you come along with me this time, father? I want you to live with me, so that I can look after you and be with

you. We can fix up a good cabin at the engineering camp. You're not so strong as you were; you could fall sick here and die and never a person know it. I doubt if you spend, making yourself comfortable, one dollar in ten of the money I send you. You would be interested in the building of this big irrigation project I'm to direct."

His father appeared to shudder.

"No, no," he muttered. "I've lived here and I'll die here."

"That's what I'm afraid of," Steele responded. "Afraid you may become sick and die for lack of care."

"No. I'll remain, my son."

That was conclusive. It was the answer of not only thirty years of living at the spot, but of his secret dread. Steele saw once more the stark fear in his eyes, the fear of contact with men, of venturing out into the world, of precipitating fate.

For a time his father plucked his white unkempt beard with unsteady hand.

"Where's the place you're going this time?" he presently inquired, without real interest.

"New Mexico."

On the elder's face appeared suddenly a gray shadow as if the blood were ebbing from his heart.

"Where in New Mexico?" he whispered.

"The town of San Mateo."

His father struggled to his feet. With one hand he clutched the doorframe for support. The skin of his cheeks had gone a sickly white.

"San Mateo—San Mateo!" he gasped. "Not there, not there, Steele! Keep away, keep away, keep away! My God, not San Mateo—you!"

He swayed as if about to fall full length, gesturing blindly before his face as if to sweep away the thought, while his son ran towards him.

"Father, you're sick," Steele exclaimed, putting an arm about the other. And, in truth, the elder man seemed fainting, ready to collapse. "Come, let me help you in so you can lie down. I must bring a doctor."

Steele almost carried him to the bed. On it his father sank, remaining with closed eyes and scarcely breathing.

“No doctor; bring no doctor,” he said painfully, at last. “I feel—I feel as if dying.”

“I must bring a doctor. And I have a flask of whiskey; let me pour you²⁹⁸ a little to revive your heart.”

The change the words wrought from passivity to action was startling. The elder Weir arose suddenly on elbow, glaring fiercely.

“Whiskey, never! It brought me to this, it damned my life. If it had not been for whiskey——” Without finishing the words he fell back on the bed.

The loathing, the hatred, the utter horror of his exclamation, banished from his son’s mind further thought of using this stimulant.

“But the doctor?” he inquired, gently.

“No use, Steele. I’ve been the same as a dead man for days. Just ashes. I want to die; I want to lie by your mother there under the big pine. And maybe I’ll have peace—peace.”

Steele took in his own the wasted hand hanging from the bed. He held it tight, with a feeling of infinite tragedy.

“You’ll be yourself again soon,” he said comfortingly, though without faith in the assurance.

His father’s lips moved in a whisper.

“No; my time is here at last,” said he. “But don’t go to San Mateo, Steele,—don’t go, don’t go. Oh, my God, spare me that!”

“Would you have me break my word? I never have to any man, father. I accepted this offer and signed a contract. I’m morally bound; these men are depending on me. Were you ever at San Mateo? Was it something that happened there that makes you fearful to have me go? San Mateo is a thousand miles from here.”

The face before him became like the face of a corpse. For an instant Steele’s heart went cold in the belief that his father had died under the effect of his declaration. But at last the eyelids raised, the eyes gazed at him. And all³⁰⁸ at

once the features of the harsh visage seemed softened, changed, lightened by a dim illumination.

“I see you now as you are, a man, stronger than I ever was,” he murmured. “I lived in fear, but my fear was not for myself. Had I been alone, nothing would have mattered after your mother died. But my fear was for you—and of you. I was afraid your life would be blasted; I was in terror lest you should hate and despise me when you learned the truth. So I sought to conceal it.”

“You had no need to fear that.”

“I see it now. Tell me everything or nothing as you wish about your going to San Mateo to work; it will frighten me no longer.”

Steele briefly spoke of his new work there, of the magnitude of the project and the desire he had had that his father might be with him.

“I’m proud of you,” his father said. “God knows I have not been the parent I would or should have been.”

“It’s enough for me if your heart’s easy now.”

“I feel as if I were gaining peace at last and—and I must speak. In San Mateo—ah, Steele, you will hear of me there,—you may have to fight the damning influence of my name and past, but I know now you’ll come through it. And all I pray for is that you can retain a little love for me despite everything.”

“Whatever it is I shall hear of my father, I should rather hear it from his lips than from strangers’.”

The hand in his closed spasmodically. For a long time nothing was said, and the only sound in the room was the ticking of the tin clock on the shelf busily measuring off the seconds of the old man’s failing span. To Steele it was as if his father was slowly summoning the few remaining shreds of his fortitude to reveal the cancer of his past.

“I’m a branded murderer,” he said at last, gasping.

“But you never killed a man out of mere wanton desire to slay,” Steele responded firmly. “I too have killed men in fights in Mexico. That fact doesn’t weight my mind.”

“In the line of your duty, in the line of your duty. But I was drunk. He was a friend. When I became sober, I saw him with a bullet hole in his head.”

“Do you remember nothing of shooting him?”

“Nothing, nothing.”

“How do you know you killed him?” his son demanded with inexorable logic. “What is the proof?”

A low groan escaped his father.

“Men said I had killed him. But my own mind was blank.”

“Who were the men? Were they present at the time?”

“They were four—Sorenson, Vorse, Gordon, Burkhardt.”

“Were you arrested and tried?”

“No. They helped me to escape. Because of your mother, they said, and because they said they were my friends. But I never felt they were really friends. For they were always against new-comers and wanted to keep things in their own hands. You were only three or four years old at that time, Steele, so you wouldn’t remember anything about matters there.”

“What were you doing at San Mateo, father?”

Now that the hideous past at last stood uncovered the son was able to turn upon it his incisive mind; he would drag out and scrutinize every bone of the skeleton which had terrorized his father and shadowed his own life. Facts faced are never so dreadful as fears unmaterialized. And more, ³¹he sought with all the love of a son for circumstances that would mitigate, excuse, or even justify his father’s act.

“I was ranching,” was the low answer. “I had come to San Mateo two years before from the east, bringing you and your mother and considerable money. I bought a ranch and stocked it with cattle; I was doing well, in spite of the fact I was new to the country and the business. Also I was making friends, and I had been nominated for the legislature of the Territory to run against Gordon. But I had taken to drinking with the men I met, other cattlemen, because I fancied no harm in it. And then while in a drunken stupor I killed Jim Dent.”

“Had you quarreled with him?”

“Never, never—till that moment I killed Jim. They said I quarreled with him then. But I remember nothing. Jim was my best friend; I would have trusted him with my life. Even now I can’t make it seem real I shot him, though it must be true by those four witnesses.”

“What of your ranch? Your political nomination?”

“I withdrew from the latter; that was one of the terms made by Gordon on which they were to help me escape instead of turning me over for prosecution. And my ranch and cattle, I had to deed them over to the four men too.”

“Then their friendship wasn’t disinterested,” Steele said quickly, with suspicion dawning on his face.

“They weren’t really friends, I knew that.”

“How were they to arrange your escape?”

The senior Weir seemed to shudder at the question.

“By bribing the sheriff and county attorney. I was then to leave the country at once, never showing my face again, or I should be arrested. I was still half dazed by whiskey and terror; I took your mother and you and fled this far, when my money gave out. So here I’ve remained ever since, for here I could hide and here was her grave.”

“What’s the last thing you remember of the circumstance previous to learning Dent was dead?” he asked.

“Ah, though I had been drinking I can remember clearly up to the time I stopped playing poker with Jim and the four men, for we were losing and I felt they were working a crooked deal on us somehow. I asked Jim to quit also, for though I hadn’t lost much he was losing fast and playing recklessly. But he wouldn’t drop out of the game, and when Vorse and Sorenson cursed me and said for me to mind my own business I went back to a table near the rear door and laid my head on my arms and went to sleep. When I was awake again, Vorse and Gordon were holding me up by their table and Jim was dead on the floor. I had come forward, they said, begun a big row with Dent and finally shot him.”

“Then the only witnesses were these four men who were gambling with him, who cursed you when you attempted to persuade him to drop his cards,” Steele proceeded, “one of whom was your political adversary, men who were old-timers and opposed to new-comers, who pretended to be your friends but took your ranch and cattle. It begins to look to me as if they not only killed your friend Dent but double-crossed you in the bargain. Did you look in your gun afterwards?”

“No. I was sick with the horror of the accusation, I tell you, Steele. I had no way to deny it; it seemed indeed as if I must have killed him. And from that day until this I’ve never had the courage of soul to reload my pistol, or even clean it. It hangs there on the wall with the very shells, two empty, the rest unfired, that it carried that day in San Mateo.”

Weir sprang up and crossed to the nail where hung the weapon. The latter he drew from the holster and broke open, so that the cartridges were ejected into his hand. For an instant he stared at them, but at length walked to the bed before which he extended his palm.

“Look—look for yourself!” he exclaimed hoarsely. “You never killed Jim Dent; drunk or sober, you never killed any one. You’re not a murderer. You’re the innocent victim of those four infamous scoundrels; they deceived you, they ruined your life; and their damnable fraud not only killed my mother in her youth, as I guess, by grief and despair, but has brought you now to your death too.”

His father had raised himself on an arm to gaze incredulously at the six unfired cartridges lying in Weir’s palm. Then all at once his bearded lips trembled and a great light of joy flashed upon his face.

“Innocent—innocent!” he whispered. “Steele, my son,—Helen, my wife! No stain on my soul!”

As he sank back Steele’s arms caught him. He did not speak again, but his eyes rested radiantly on his boy’s before they glazed in death. Fear had passed from them, forever.

CHAPTER XXXIII

UNDER THE MOON

Lights still were burning at headquarters when Steele Weir slowly drove his runabout up the hillside slope to the dam camp. The men who had acted as guards about the jail, except those who went with Madden, were somewhere on the road behind him, returning home in the wagons. A reaction of mind and body had set in for Weir; after the previous night's loss of sleep and prolonged exertions, after the swift succession of dramatic events, after the tremendous call that had been made upon his brain power, nervous force and will, he experienced a strange unrest of spirit. His triumph seemed yet incomplete, somehow unsatisfying.

It was as he approached the camp that he saw a slender girlish figure sitting on a rock in the moonlight. He swung his car off the road beside the spot where Janet Hosmer sat.

"What, you are still awake?" he asked, with a smile.

"Could I sleep while not knowing what was happening or what danger you might be in?" she returned. "Mr. Pollock said we must not think of returning home until quiet was restored in San Mateo. One of the engineer's houses was given to us by Mr. Meyers before he left, where Mary and I could sleep. But I could not close my eyes. So much had happened, so much was yet going on! So I came out here to be alone and to think and watch."

"And your father?"

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"He's attending the wounded Mexicans in the store."

Steel alighted and tossing his hat upon the car seat gazed out over the mesa, misty in the moonlight.

"There will be no more trouble," said he. "Sorenson and Burkhardt are Madden's prisoners, and on their way to a place of safe-keeping in another

county. Vorse is dead. The people in town have a fairly good understanding of matters now, I think.”

“How in the world did such a change of opinion occur?” Janet exclaimed.

“I had a little talk with the crowd and made explanations. The feeling for me was almost friendly when I left; what enmity remains will soon die out, I’m sure.”

Though unaware from Steele Weir’s laconic statement of what had actually occurred, the girl divined that his words concealed vastly more than their surface purport. With the general hostility against the engineer that had existed, for him to swing the community to his side meant a dramatic moment and a remarkable moral conquest.

“Your friends have always known you would win,” she said, smiling up at him.

He seated himself on the rock beside her.

“It’s but a short time ago, Janet, that I had no friends, or so few they could be counted on the fingers of one hand. Business acquaintances, yes. Professional companions, yes. Men who perhaps respected my ability as an engineer, yes. But real friends, scarcely one. And now I think I have gained some, which is the greatest satisfaction I have from all that has happened. After years the pendulum has swung to my side. Do you know the hour my luck changed?”

Janet shook her head wonderingly.

“No, I can’t even guess,” said she.

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“Well, it was that afternoon, and that moment, I found you sitting in your stalled car in the creek down there. That was the beginning. From that time things began to run in my favor and they haven’t ceased to do so for a moment since, I now see looking back over events. You brought good luck to me that day in your car.”

“What an extraordinary idea! Then at bottom you’re superstitious,” Janet replied. “I shall have to give you a new name; I must no longer call you ‘Cold Steel.’”

“I really never liked that name,” Weir said quickly. “Perhaps I was cold steel once, but I have changed along with everything else. And you’re responsible for that too.”

Janet leaned forward and looked into his eyes.

“You were never truly harsh to any one except those who deserved it,” she said. “I know! You would never have been so quick to help Mary Johnson or me, or others who needed help, if your heart was not always generous and sympathetic. Only against evil were you as steel, and in moments requiring supreme courage and sacrifice. And that’s how you gained the name before you ever came here.”

“Anyway I’ve changed,” said he. “I’m out from under the cloud which I felt always hung above me. As I say, you brought me good luck that day—and I see clearly that I shall continue to be superstitious.”

“Why, all occasion for that is past now.”

“No,” said Steele Weir. “No, less than ever. For I’m certain you hold my good fortune in your hand yet, and will continue to hold it. And that means——”

He paused, regarding her so intensely that the blood beat up into her face. There was no mistaking that look and it thrilled her to the soul.

“Yes?” she managed to say.

“It means my happiness, now and for all time to come,” he went on. “See, I shall have accomplished what I set out to do and what in justice had to be done, bringing these men to punishment—to punishment in one form or another. I shall have given my employer, the company, service worthy of the hire. I shall have rid you and San Mateo of an unscrupulous parasite in the person of Ed Sorenson, though my persecution of him now shall stop and I shall leave him enough out of the property recovered from his father to live in comfort somewhere with his mother.

“Mr. Pollock states I shall have no trouble in getting legal title and possession of most of the wealth of these four men,—I and any relatives of the dead Jim Dent who can be found. For thirty years’ accumulated interest charges owing me will swallow up all the men’s properties. That, however, is only a material victory. I shall have relieved Johnson of fear of financial

constraint; and saved his daughter from a serious mistake. I shall have started Martinez on the road to success—and I should not be surprised if he prospered, became the leading attorney in this county, was elected judge and so on.

“In a way, too, I shall have helped to remove the oppressive weight of these men, Sorenson, Burkhardt, Judge Gordon and Vorse, with their sinister influence, from this community and region. They have always held the natives in more or less open subjection, financial, political, and moral. There should be a freer air in San Mateo henceforth. The people will have a chance to grow. They no longer will feel the threat of brutal masters always over them; and with the completion of the irrigation project and the infusion of new settlers they will become better citizens.

“I see all this,” he concluded. “It pleases me; it gives me cause for satisfaction. But it doesn’t give me the happiness I want, or the love. That is alone in your hands to bestow.”

Janet felt herself trembling; she could not speak.

“I think I felt the stirring of love from the moment I saw you there at the ford,” he exclaimed. “Last night when I knew that wretch had carried you off to the mountains, I could have torn him limb from limb. That was my love speaking, Janet. If I should have to go through life without you—oh, the thought is too bitter to dwell on!—then I should think life not worth living. But I have imagined that you might have for me a little——”

Janet swiftly clasped his hand with her own.

“I love you,” she cried softly. “I was sitting here when you came because I loved you. If I am necessary to your happiness, you also are necessary to mine. I honor you for what you have done and love you for what you are, a strong true heart.”

“Ah, Janet, you give me the greatest joy in the world,” he whispered. “Love—that is more than all.”

His arms drew her to his breast. Her lips went to his in consecration of that love. Their hearts beat the rapture of that love.

Over the silent peaceful mountains the moon spread its effulgent light. Over the mesa that was no more to know the fierce sound of strife. Over the

town, at last free of its avaricious masters, free of the savage spirit of an outlaw time. Over the Burntwood River flowing in a shimmering band to the horizon. Over the camp where centered so many men's plans and labors. And over the lovers, chief of all, that light fell as in a silvery halo.

THE END

*** END OF THE PROJECT GUTENBERG EBOOK IN THE SHADOW
OF THE HILLS ***

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